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The Fate of the Dead

A dissertation presented

by

Jacob Hoerger

to

The Department of Government

in partial fulfillment of the requirements

for the degree of

Doctor of Philosophy

in the subject of

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Harvard University

Cambridge, Massachusetts

May 2023

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The Fate of the Dead

Efforts to redress historical injustice have come to the forefront of political contestation around the world. Some believe these efforts constitute an attack on historical figures who were the perpetrators of injustice. The purpose of this dissertation is to argue that, while there may be other grounds to object to redress measures, the worry that they harm past perpetrators is unfounded.

To prepare the argument, I examine a line of thinking that emerged in the twentieth century about how it is possible for the living to help and harm the dead *victims* of past injustice. This involves attempting to manipulate the web of meaning of which both the living and dead are a part in order to change the significance of the suffering of the dead. I draw here on the work of Walter Benjamin and Saidiya Hartman. I leverage their insights to then consider the question of past *perpetrators*.

In response to the objection that past perpetrators are being harmed by the living, some argue that the dead can simply have no effect on the living and that the living can have no effect on the dead. Many contemporary advocates of redress would reject this because, as I have just said, it would curtail living peoples' ability to attend to dead *victims* of past injustice. However, once one grants that people in the past can be helped and harmed by the actions of living people, how does one prevent a clash between the will and interests of the dead victims and those of the dead perpetrators?

One response is to say that by committing acts of injustice, the dead perpetrators forfeit their claims to be respected by living people. For a variety of reasons, this is unlikely to be persuasive to those who care about the dead perpetrators. To name just one: Given that moral reasoning changes over time, it might strike some as unfair to condemn many for actions and beliefs whose wrongness they could not have known the full extent of at the time.

I accept that living people can maintain an attachment to past perpetrators. However, rather than believing that this attachment will reinforce the status quo, I argue that by viewing past perpetrators as capable of redemption, one gains a powerful reason to work to mitigate the negative effects of the dead's wrongdoing. If past perpetrators were to know what the living now know about their unjust actions, either they would choose for living people to redress their actions on their behalf or they would still insist on their errant ways and truly would forfeit the right for living people to hold fast to them. This argument establishes the general principle that efforts to redress the actions of past perpetrators enhance rather than threaten their legacy.

I develop this argument in seven chapters. In Chapter 1, I examine the history of the concept of "historical injustice" and explain how it is related to the concept of "redemption."

In Chapter II, I explain that to fully address the politics of redemption, especially as it pertains to the perpetrators of injustice, it is necessary to move beyond the view that redress efforts are either "material" or "symbolic."

In Chapter III, I turn to the work of Walter Benjamin as inspiration for a theory of how to help the dead. In Chapter IV, I focus on the work of Saidiya Hartman to understand how the dead may be *harmed* by the living. Both of these thinkers were primarily concerned with addressing

the unjust suffering of victims of historical injustice. This is important in its own right. Additionally, I examine how their arguments may be applied to past perpetrators.

In Chapter V, I argue that it is possible to believe in the redemption of past perpetrators of injustice in a way that supports rather than hampers efforts to redress their wrongdoing.

In Chapter VI, I analyze the notion of "never again" to show one way in which efforts to redeem past perpetrators can be developed in alignment with attention to past victims.

Finally, in Chapter VII, I suggest my argument about past perpetrators opens up an underappreciated view on living peoples' relationship to the past as a whole, a view I refer to as "left conservatism."

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To Marit

Chapter I: Historical Injustice and the Politics of Redemption

1. New and Old Thinking

"All the new thinking is about loss/In this it resembles all the old thinking," writes Robert Hass in the poem "Meditations at Lagunitas."[1] This dissertation concerns itself with a form of "new thinking," the body of writing about historical injustice. I aim to put this literature in conversation with a form of "old thinking," reflection on the idea of redemption.

The background question that guided the development of this project is as follows: are societies characterized by grave historical injustices doomed? (As Jesse McCarthy puts it, "does the shadow of disaster ever finally recede?"[2]). The intuition that has guided my response is that, if the past can harm living people, as it manifestly can, perhaps it is possible for living people to do something about the past. If this is true, then living people might interpret the mission to redress historical injustice in part—but by no means in full—as an opportunity to redeem human history. (In this dissertation, I conceive of "redress" very broadly: any action that is undertaken self-consciously to correct past injustice and its legacies).

My understanding emerges out of an attempt to explicate Walter Benjamin's enigmatic statement that living people have a "weak messianic power" over the dead.[3] I aim to take this

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[1] Hass, *"Meditations at Lagunitas*."

[2] McCarthy, *Who Will Pay Reparations on My Soul?*, 37.

[3] Benjamin, *Illuminations*, 254.

notion, which might come across as abstract, overly religious, befitting one with a savior complex, or in other ways problematic and show how, on the contrary, it can direct a concrete and defensible course of action for those implicated some way in historical injustice.

My analysis is grounded in efforts to attend to the lives and suffering of *victims* of past injustice; however, the more specific contribution of this dissertation is to respond to an objection that critics of redress measures raise on behalf of past *perpetrators*. Some claim that efforts to engage in redress actions represent an attack on historical figures who committed injustice. This objection is raised in response to many different actions, such as removing statues, revising curricula, renaming buildings, and so forth. Perhaps the most prominent expression of this objection was when former president Donald Trump declared during his Fourth of July Speech at Mount Rushmore in the summer of 2020 that "our nation is witnessing a merciless campaign to wipe out our history [and] defame our heroes."[4]

My thesis is that the specific argument that one harms past perpetrators by redressing their wrongs is incorrect. I believe past perpetrators *are* redeemable—but granting this should lead one to work to redress their errors, not to maintain the status quo. Furthermore, while there may be other reasons to oppose redress efforts, my argument establishes an even higher bar that such reasons will have to clear. Namely, they will have to show why, in opposing redress efforts, they are forestalling the redemption of the figures to whom they claim to have attachment.

To make this argument, this dissertation will explore the basic question of how it is possible to help and harm the dead. It must show why it is the case that efforts to redress past

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[4] Trump, "Remarks by President Trump at South Dakota's 2020 Mount Rushmore Fireworks Celebration."

wrongdoing help and do not harm dead perpetrators. In this introductory chapter, I situate the attempt to redeem past perpetrators within the context of the broader rise in thinking about historical injustice.

First, I will examine the history of the concept of "historical injustice" (Section 2) and the related idea of the "Guilted Age" (Section 3). If humans have wronged each other since time immemorial, why only recently have large-scale attempts arisen to attend to that wrongdoing? Critics of redress efforts might suppose that this rise is pathological. I will respond to this objection by analyzing several factors that may legitimate its rise, and I will attempt to refute several alternative deflationary genealogies proposed by critics.

Next, I will examine the concept of "redemption" and discuss the under-studied notion of *politics* centered around redemption (Section 4). Then, I will detail why I think the exploration of the redemption of past perpetrators is valuable (Section 5). Finally, I will preview the argument of the rest of the dissertation (Section 6).

2. A History of "Historical Injustice"

Two Definitions of Historical Injustice

The 1854 anti-slavery publication *Anthologies for Freedom*, compiled by Julia Griffiths, contains an entry entitled "Visit of a Fugitive Slave to the Grave of Wilberforce" by William Wells Brown. In the opening, Brown describes a trip to Trafalgar Square, where he came across a statue of Lord Nelson. "I was on the point of turning away, when I perceived among the figures (which were as large as life) a full-blooded African, with as white a set of teeth as ever I had

seen."[5] Brown then contrasts the position given to an African in the Lord Nelson landmark to what he had observed in the U.S.:

> Some years since, while standing under the shade of the monument erected to the memory of the brave Americans who fell at the storming of Fort Griswold, Connecticut, I felt a degree of pride as I beheld the names of two Africans who had fallen in the fight, yet I was grieved but not surprised to find their names colonized off, and a line drawn between them and the whites. This was in keeping with American historical injustice to its colored heroes.[6]

Brown's choice of the phrase "historical injustice" in this passage is noteworthy. According to the Google Books archive, before Brown's usage, "historical injustice" referred to cases in which specific living individuals did not have the proper evaluation of specific dead individuals. For example, in an 1813 publication called the *Eclectic Review,* the reviewer of a volume by John Galt about Cardinal Wolsey writes, "If we accept Mr. Galt's representation, the general and established opinion of Wolsey's character must be an unequaled instance of historical injustice."[7] This use of the term, which implies something like slander against an individual, almost always took place in the context of biography. The proper response to a historical injustice in this understanding was to attempt to correct the historical record. In 1899, for example, one learns that Richard Biddle, upon reading an account of Sebastian Cabot and his family in the *Biographie Universelle*, "immediately recognized many of its statements were incorrect. He determined to right a great historical injustice. He gathered authorities, drew up his

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[5] Brown, "Visit of a Fugitive Slave to the Grave of Wilberforce," 70.

[6] Brown, 71.

[7] "Review of The Life and Administration of Cardinal Wolsey," 612.

brief, and in 1831 published his *Memoir of Sebastian Cabot*."[8] This meaning of the expression continues to the end of the twentieth century, but it has become virtually eclipsed by a second meaning, according to the Google Books archive.

That second meaning, which is familiar today, refers to past acts of violence or exploitation inflicted on entire peoples, not just mischaracterizations of specific individuals. This use of the expression starts to be seen with more frequency in the second half of the nineteenth century. For example, in 1869, a writer in *Blackwood's Edinburgh Magazine* writes: "Historical injustice is a very different thing from injustice for which the present generation is responsible. If we had to reverse all the injustice done by our ancestors, we should have enough to do. How many landlords would remain in peaceable possession of their estates?"[9]

The passage from Brown quoted above is the first instance I can find in English of "historical injustice" being used to refer to groups of people, not just individuals. And Brown's use also seems to blend both definitions. In keeping with the first definition, Brown is concerned in part with the way the present remembers and memorializes the dead. But by invoking a collective perpetrator, America, that also existed in the past, Brown seems interested not just in the way America has remembered black people but in other injustices it has committed against them. By combining both senses of historical injustice, Brown suggests there is a relationship between "historical injustice" and "injustice for which the present generation is responsible." It is worth noting that, for Brown, this is not necessarily because the present generation has *benefited*

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[8] Winship, "Some Facts about John and Sebastian Cabot," 417.

[9] "Cant: A Monologue in the Vapours," 196.

from the past or because of what it has *inherited* but in the way that the present relates to the dead *through memory*.

One might find the first definition of historical injustice fairly trivial in its original context of arguments over biography. But the idea that the living can wrong the past in the way they relate to it is worth emphasizing, especially when, as in the case of Brown, it is taken in conjunction with the second definition of historical injustice. While the second definition puts distance between present individuals and the perpetrators, the first definition puts pressure on living people to acknowledge what Jeffrey Blumstein has called "the moral demands of memory."[10] And just as living people can wrong the dead through acts of historical injustice in the first sense, so too, as figures like Benjamin will maintain, is it possible for the living to help the dead through the vehicle of remembrance. Finally, the original definition of "historical injustice" as slander against historical figures is important for this dissertation because it is what opponents of redress measures often invoke against those attempting to redress historical injustice. (Recall the Trump quotation about the defamation of heroes).

The Rise of Historical Injustice Discourse

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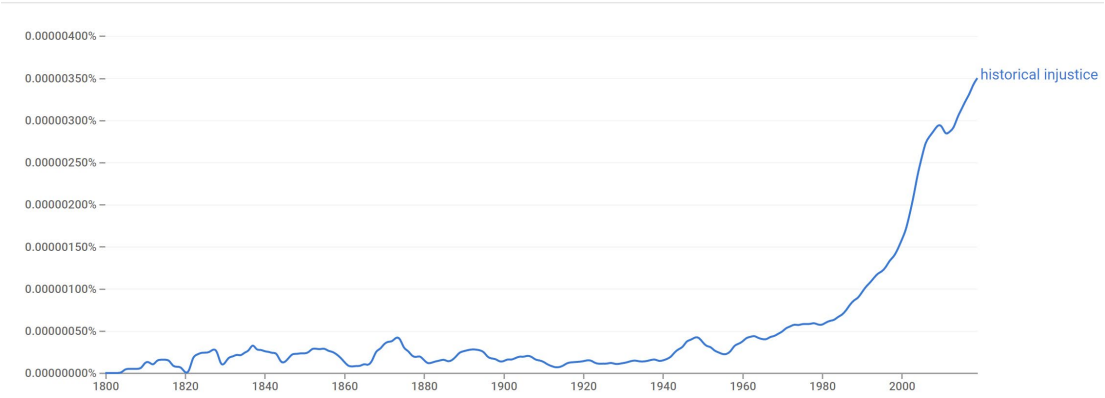
[10] Blustein, *The Moral Demands of Memory*.



Until the later part of the twentieth century, on occasions when the term "historical injustice" was used, it was never the main element in a discussion. The first instance in which "historical injustice" takes a central place in a scholarly or political piece of writing seems to be a 1978 speech by Thabo Mbeki entitled "The Historical Injustice." Mbeki was a South African politician who would go on to become the country's president following Nelson Mandela. In his address, delivered in Ottawa, Canada, and later published in the African National Congress's journal *Sechaba*, he begins by noting that "Modern political science recognizes the fact that social systems are founded on definite historical origins."[11] This means that "All societies therefore necessarily bear the imprint, the birth-marks of their own past." The speech, which details from a Marxist perspective the history of classist and racist violence in South Africa, is an appeal to the Liberals in Canada for their support in overthrowing apartheid.

The first purely scholarly treatment using the locution seems to be Jeremy Waldron's oft-cited 1992 article "Superseding Historic Injustice." In the essay, Waldron argues that aboriginal peoples do not necessarily possess present claims to land that was acquired through unjust means

[11] Mbeki, "The Historical Injustice."

by sole virtue of the violence inflicted upon them in the past. Instead, their rights may be "superseded" by subsequent considerations. He concludes the piece as follows:

> First come, first served.' 'We were here first.' These simplicities have always been unpleasant ways of denying present aspirations or resisting current claims of need. They become no more pleasant, and in the end no more persuasive, by being associated with respect for aboriginal peoples or revulsion from the violence and expropriation that have disfigured our history.[12]

In the 30 years since Waldron's piece was published, an immense wave of academic publications has come out on the subject of historical injustice, with over 1,500 published since 2021 alone, according to Google Scholar. The cachet that the phrase has come to enjoy can be seen in the fact that Vladimir Putin was quoted as justifying the invasion of Crimea in 2014 on the grounds of "historical justice."[13] As I will discuss below, individuals and groups had earlier thought about what we now call "historical injustice" without that particular locution. Additionally, other analogous terms have been used, such as "past injustice." But the contemporary debate has emerged and organized itself around the term "historical injustice," and, through this consolidation, the scholarship has developed recognized issues, problems, and paradigms.

Examining the Concept

There are a few points to note about the expression "historical injustice" itself. First, there is some disagreement over whether to call it "historic" (as Waldron did) or "historical" (as most

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[12] Waldron, "Superseding Historic Injustice," 28.

[13] Reuters, "Russia's Putin Says Taking Crimea Righted Historical Injustice."

today do). My preference is for "historical" because "historic" can also mean "unprecedented," and one might wish to avoid that connotation.

Second, I think it is important to note that the discourse of historical injustice emerged at a time when many other adjectival versions of justice were coming onto the scene. There have always been multiple forms of justice. Aristotle, for example, differentiated between "arithmetic" and "distributive" justice. But today there are many more forms: global justice, social justice, economic justice, environmental justice, occupational justice, and so forth. (Recently there has been scholarship on "circadian justice," [14] "algorithmic justice,"[15] and "citational justice."[16]) One can imagine a critique of this proliferation of "justice talk" along the lines of Mary Ann Glendon's complaint about "rights talk."[17] I do not mean to disparage adjectival forms of justice, but it is nevertheless important to recognize how much we live, in Katrina Forrester's phrase, "in the shadow of justice."[18] One question that arises from this is whether historical injustice or any other adjectival form of justice is a stand-alone theory or whether they require a larger theory of justice to buttress them.

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[14] White, "Circadian Justice."

[15] Acolin and Kim, "Algorithmic Justice and Groundtruthing the Remote Mapping of Informal Settlements."

[16] Kwon, "The Rise of Citational Justice."

[17] Glendon, *Rights Talk*.

[18] Forrester, *In the Shadow of Justice*.

Third, there is significant disagreement over what the site of justice should be for historical injustice. Is historical injustice a matter to be decided by the judicial system? By a political process? Or by something else, such as works of art?

Fourth, it is interesting that almost all the discussion is about historical *in*justice, not historical justice. While relatives of victims often do wish to seek out justice for the deceased, it is an open question whether justice is at all possible for mass atrocities. If a collective atrocity like the Atlantic slave trade might constitute, in David Scott's term, "evil beyond repair" is one still speaking of justice or something altogether different?[19]

Fifth, many different types of cases have been given the label "historical injustice," from slavery to colonialism to sexual violence to religious persecution and more. One must be careful not to commit an additional wrong by using an umbrella term to refer to so many injustices in a way that ignores their complexities. It is certainly true that responses to one atrocity affect responses to others. For example, as Ashraf H. A. Rushdy notes, France's efforts to come to terms with the actions of the Vichy government during World War II eventually put pressure on the country to examine other crimes in its past and ultimately led to an official apology for the slave trade.[20] Similarly, precedents from one type of case may be used to bolster other causes. Thus Ta-Nehisi Coates draws on the example of Germany's payments to Israel after the Holocaust in "The Case for Reparations" as an argument for reparations for racial injustice in the

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[19] Scott, "Preface: Evil Beyond Repair."

[20] Rushdy, *A Guilted Age*, 36–37.

U.S.[21] But this does not mean that each case of historical injustice should be assumed to have similar dynamics. Frank B. Wilderson III argues that comparisons between types of oppression, specifically between black and non-black people of color, "mystify."[22] It is also the case that what might work as a solution in one context might be counterproductive in another. For example, a truth and reconciliation commission might be an apt resolution to one kind of conflict, but it might not be helpful for another.

The Guilted Age

The academic debate about historical injustice is one component of a larger trend in intellectual and political history that has been variously called the "Guilted Age,"[23] the "Age of Apology,"[24] and the "Age of Regret."[25] If we leave the specific term "historical injustice" on one side and look at the various practices that respond to past injustice such as affirmative action, reparations, official apologies, taking down or putting up monuments, changing doctrines, and so forth, we see that all of these actions have increased significantly since the beginning of World

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[21] Coates, "The Case for Reparations."

[22] Wilderson, "Afro-Pessimism & the End of Redemption."

[23] Rushdy, *A Guilted Age*.

[24] Gibney et al., *The Age of Apology*.

[25] Olick, *The Politics of Regret*.

War II. For example, race-based affirmative action began in the U.S. in 1944.[26] The Indian Claims Commission, which adjudicated land disputes between Native American tribes and the U.S. government, began in 1946.[27] The Catholic Church has issued around 100 papal apologies, all of them since World War II.[28] Indeed, just as NGOs have tracked countries' scores on indexes such as democracy and economic inequality, one can imagine a new benchmark to judge countries by the extent to which they have attempted to confront the injustices they have committed.

The "Guilted Age" label is admittedly catchy, but it obscures some key points. First, framing the period as the "Guilted Age" puts the focus on the perpetrators of past injustice or their inheritors rather than the victims. (This also tends to make the focus rather Euro-centric). There are times when it is appropriate to be perpetrator-centric, as I will argue below. In this case, however, it discounts the efforts of victims and their relations to seek justice well before doing so became part of the general consciousness. Ana Lucia Araujo's work shows that, in the Americas, efforts to secure financial reparations for slavery took place long before the Age of Apology began.[29] By focusing only on the increased receptiveness amongst perpetrators and

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[26] Boris, "Fair Employment and the Origins of Affirmative Action in the 1940s."

[27] Rosenthal, *Their Day in Court*.

[28] Accattoli, *When a Pope Asks Forgiveness*.

[29] Araujo, *Reparations for Slavery and the Slave Trade*.

their descendants to such claims that began around World War II, one might distort the historical pedigree of redress efforts.

Second, there is the question of whether guilt is the right thing to focus on. Certainly, in post-Nazi Germany, influenced by works such as Karl Jaspers' *The Question of German Guilt*, guilt took on a central role in how individuals conceptualized their relation to past injustice.[30] But there has also been resistance to the idea that living individuals should have guilt for something they did not themselves do. While much of this backlash to guilt in the U.S. is driven by white Americans who do not want to be implicated in the wrongs of their ancestors (or other white predecessors), several prominent black thinkers have pushed back as well. For example, Condoleezza Rice recently remarked that "One of the worries that I have about the way that we're talking about race" is "somehow white people now have to feel guilty for everything that happened in the past." Rice continued, "I don't think that's very productive."[31] Rice's comments were echoed by John McWhorter, who has argued that the focus on guilt is unnecessary and can often lead to virtue signaling. My view of guilt is part of a wider view of "reactive attitudes" in this dissertation, namely that reactive attitudes underdetermine actions. Guilt can cause people to do many laudable things, but it can also cause those who feel guilty to do strange and counterproductive things. I am inclined to focus on the actions done as opposed to being, in McWhorter's words, excessively "soul-focused." As I will argue later, however, I think some

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[30] Jaspers, *The Question of German Guilt*.

[31] McWhorter, "I'm With Condoleezza Rice About White Guilt."

things go on within peoples' self-understanding that are important. However, I am not convinced that reactive attitudes such as guilt are the ones to be focused on.

Third, another way that the term "Guilted Age" is misunderstood is that guilt is not the dominant emotion of the age. There are more dissenters than proponents of guilt. One of the most well-known examples is *The Tyranny of Penitence* by Pascal Bruckner.[32] Part of the right-wing backlash to former president Barack Obama in the U.S. was frustration with his "apology tours," and his successor issued apologies only rarely and usually facetiously. Nostalgia, rather than guilt, seems to be—in the U.S., at least—dominant.[33] After the 2021 gubernatorial election in Virginia, Jason Morgan penned a "goodbye" to the Guilted Age.[34] Whether the period that began with World War II embodies a lasting trend or a passing phenomenon is still to be determined.

Just as "historical injustice" masks previous discussion in the Age of Apology, the Age of Apology masks previous discussion of past evil. In recent years, there has been a growing body of scholarship on approaches to historical injustice *avant la lettre*. Spinner-Halev's contention that "the idea of historical injustice never occurred to people in the nineteenth century (or earlier)" is almost certainly not true (even, again, if they did not use that particular phrase).[35]

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[32] Bruckner, *The Tyranny of Penitence*.

[33] Levin, *The Fractured Republic*, 2–3.

[34] Morgan, "Goodbye, Guilted Age."

[35] Spinner-Halev, *Enduring Injustice*, 22.

Some scholars have tried to use figures in the traditional canon to show those on the political right that they really should be in favor of measures to redress historical injustice. Examples include Bernard Boxill's treatment of John Locke[36] and Michael Griffin and Daniel Philpott's treatment of Thomas Aquinas.[37] On the other hand, conservatives have looked to past thinkers to dispute the novelty of historical injustice discourse and thus try to diminish contemporary enthusiasm for redress measures. An example of this is Michael C. Hawley's investigation into thinking about historical injustice in Cicero.[38] But much of the most important historical work in this area is ongoing. I believe that it is fair to say that, while the novelty of historical injustice is sometimes overstated, the challenges that it poses to traditional theorizing are still ones to contend with.

3. Explanations for the Guilted Age

Despite such antecedents, there is a clear inflection point in measures addressing historical injustice shortly after the start of World War II. Humans have committed terrible deeds against each other since time immemorial. But an intense focus—critics would say obsession—on past injustice is relatively recent. So why now? How has the imperative to address the past become for many, in the words of Roy L. Brooks, a "self-evident truth"?[39] There is currently no

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[36] Boxill, "A Lockean Argument for Black Reparations."

[37] Griffin and Philpott, *The Politics of Penance*.

[38] Hawley, "Cicero on the Problem of Unjust Origins."

[39] Brooks, *Atonement and Forgiveness*, xiv.

systematic treatment of this question, although many authors have made helpful suggestions about part of the story. And while I cannot claim to offer a comprehensive picture here myself, I do want to synthesize the discussion as I am able. James Campbell has suggested three explanations for the rise of the Guilted Age: the collapse of belief in future progress (following John Torpey), the proliferation of the discourse of trauma, and the politics of recognition.[40] I agree these are important components, and I will add to them four more: heightened moral awareness (in other words, the opposite of the decline of progress narrative), path dependency, secularization, and human rights discourse. I will discuss each of these historical factors below with an emphasis on progress (or its demise) and secularization.

The Guilted Age is a global trend; it affects every continent (except, perhaps, Antarctica). I want to stress that there is no one path that every person interested in coming to terms with the past has traveled. Some of the explanations are in tension with each other. The point of giving so many different explanations is to show it is a complicated development that cannot be explained—or explained away—with a single line of thinking. Which of the motivations I will detail—and I am sure there are others that I have overlooked—will vary with the advocate. For example, James Forman, author of the 1969 "Black Manifesto" demanding reparations from churches and synagogues across the U.S.,[41] was likely inspired by different ideas than those

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[40] Campbell, "Universities Confronting Slavery: Questions and Critiques."

[41] SNCC Digital Gateway, "Jim Forman Delivers Black Manifesto at Riverside Church."

which motivated Pope John Paul II's efforts at the reconfiguration of historical memory.[42] An effort to explain both at the same time will likely not succeed.

Why is understanding all this history important? As we will see in the cases of figures like Torpey and Wilfred McClay, critics of efforts to redress historical injustice (both on the left and the right) often begin with a deflationary historical argument. If critics can show that the rise in efforts to redress historical injustice rests on some kind of pathology, they can discredit those efforts. In the absence of a thorough history, misleading history proliferates. While I am not going to argue that one single path has led to the rise of the Guilted Age, I hope that pointing to the existence of several pathways serves as legitimation. In another work, I plan to argue that previous thinkers in the Western Canon, particularly Plato, did not adequately address issues of historical injustice. Thus, my overall aim is double-edged: I hope to show there was a genuine need for new thinking about past wrongdoing and that that new thinking was legitimate.

Progress—Or Progress' Collapse?

"It is not difficult to identify the time and place where reparations and other forms of redress for past injustice gained respectability," [43] Brooks writes. "That transformation took place after the Holocaust." Why did the Holocaust, rather than another large injustice, trigger it? Brooks points to the Allies' use of film to document the atrocities in the death camps, which allowed images of the horrors to reach a mass public in a way that prior injustices had not. The

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[42] Accattoli, *When a Pope Asks Forgiveness*.

[43] Brooks, *Atonement and Forgiveness*, xiv.

result of the response to the Holocaust was, in Brooks' words, a "heightened morality" around the world.[44]

A similar position is argued for by Spinner-Halev but for a different reason. He writes that "the idea of historical injustice makes sense when viewed through the lens of progress."[45] When progress is triumphant for some, but not for all, there is greater attention on the areas in which progress has fallen short. He writes that "the idea of historical injustice did not occur to earlier liberals since they assumed injustice was so prevalent. But when justice actually has some success, then stark injustices stand out."[46] This logic about justice is reminiscent of Alexis de Tocqueville's comment about equality that "the desire for equality always becomes more insatiable as equality is greater."[47]

In the course of my argument, I will complicate both of these thinkers' accounts. As I will discuss in Chapter III, for some leftists in Europe like W.H. Auden, the Molotov-Ribbentrop Pact, not the Holocaust, was the decisive event. But there is a more direct challenge to both of their views, namely that it is the erosion of the belief in progress—not progress's fulfillment, that has led to a backward-looking perspective on justice.

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[44] Brooks, *Atonement and Forgiveness*.

[45] Spinner-Halev, *Enduring Injustice*, 49.

[46] Spinner-Halev, 50.

[47] Tocqueville, *Democracy in America*, 513.

Torpey was among the first to give a sustained examination of the pedigree of the concept of historical injustice. Torpey is somewhat critical of efforts to come to terms with the past and views them as a symptom of the "collapse of the future."[48] In his eyes, when the left, out of exhaustion, ceases to imagine new possibilities for the future, it turns its gaze back toward past wrongs. Coming to terms with the past thus represents a kind of 'second best' politics.

Some even less charitable interpreters try to give a sociological explanation for the predominance of memory politics in the U.S. For example, Richard Epstein argues that it represents little more than an effort for activists to find an "encore" to the civil rights movement: "It is an effort to reinvigorate the old struggle for civil rights by appealing to an issue on which it is possible once again to assert a profound moral unity."[49]

There is a way to interpret Torpey's arguments in a progressive direction, however. One could accept that progress is almost complete, as various end-of-history narratives have it. One could also accept that the gains of the civil rights movement were more important than the issues pursued by memory activists today. But it does not follow that memory activism is illegitimate. Spinner-Halev has something like an end-of-history view:

> My argument is that the idea of historical injustice makes the most sense through the lens of a liberal narrative of progress, one that has been predominant in much of Western political life. Rarely do those involved in this debate argue for wholesale changes in the economic and political structures of liberal democratic states; they assume that the current political and economic structure is more or less sound but needs to do better with

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[48] Torpey, "An Avalanche of History: The 'Collapse of the Future' and the Rise of Reparations Politics."

[49] Epstein, "The Case Against Black Reparations," 1191–92.

exceptional cases. My argument suggests the framework of progress is the right one in which to see historical injustice.[50]

The debate about the history of historical injustice is of relevance to those interested in the doctrine of progress as a whole. On the one hand, there is any number of groups that stand in a better position than they did a century ago.[51] On the other hand, humans have committed terrible crimes under the banner of "progress."[52] The debate about historical injustice figures into this larger debate because it deals with the persistence of injustice (recall McCarthy: "does the shadow of disaster ever finally recede?"), moral change (do we have a better moral standpoint than our ancestors?), and political change (do we possess a political solution to the question of violence our ancestors did not?). In the end, I hope to take something from each side. Spelling out how this might look is a theme that runs through the whole of this dissertation, but it emerges especially at the end of Chapter VII.

Secularization

Another challenge to historical injustice discourse was put forward by Wilfred McClay in his essay "The Strange Persistence of Guilt,"[53] which received a wide audience after its major claims were repeated by David Brooks in the *New York Times*.[54] McClay's argument centers on

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[50] Spinner-Halev, *Enduring Injustice*, 55.

[51] Reed Jr. *The South*.

[52] Allen, *The End of Progress*.

[53] McClay, "The Strange Persistence of Guilt."

[54] Brooks, "The Strange Persistence of Guilt."

Western societies' incomplete attempt to adopt moral relativism. By throwing off its "metaphysical straitjacket," Western civilization tried to liberate itself from the oppressive pangs of conscience. If nothing is good or bad, no one can be censured for anything. But instead, McClay observes, our age is more overtaken by guilt than ever before. People today are far more aware of how their actions have been predicated on and contribute to the destruction and dehumanization of others. This is supposed to be troubling. In fact, according to McClay, the only way people today know how to cope with it is by going to extreme lengths to show that they are victims of history and thus not to blame for the rotten structures they inhabit. (At the same time as the proliferation of knowledge has made people more aware of others' pain, it provides them with avenues to claim the status of a sufferer). Hence, McClay says, the Manichean culture of hyper-victimization, in which every relationship is seen as one between an oppressor and an oppressed. People are doomed to remain in it, he argues, unless they return to the metaphysical framework and practices within which their moral vocabulary once made sense. The fact that people feel guilty shows they still have their Judeo-Christian moral reflexes. They should use this fact as an encouragement to recover the rest of the framework.

This argument has major problems. For one thing, it is not clear that sin and atonement are religious categories that became secularized rather than the other way around. McClay often uses the metaphor of a "moral economy" and notes that "guilt" is derived from language surrounding monetary debt. So, he also seems to treat it as something to be thought of in economic and thus secular terms. Second, his story does not take into account the changing character of the guilt that people seem now to be experiencing, namely, guilt for the actions of their forebears. Jews and Christians have not traditionally atoned for the sins of their ancestors, or *at least not in the manner of today's penitents*. Third, it is not clear that the kinds of atonement

that McClay is encouraging people to reengage in are effective in the way that contemporary advocates now want. It is not clear that private atonement addresses the public problems that are at stake. Fourthly, McClay skips over the fact that some religious institutions have themselves been quite engaged as part of the Age of Apology. Most notably, as mentioned above, Pope John Paul II broke centuries of Vatican tradition to issue official apologies for past actions by church members.[55] Other recent examples of prominent religious institutions adopting such supposedly secular modes of "coming to terms with history" include the report by the Southern Baptists Convention, the largest Protestant denomination in the U.S., on its slaveholding past[56] and the ongoing efforts at the Jesuit Georgetown University to redress its sale of enslaved people.[57] In 2022, Pope Frances traveled to Canada to issue a public apology for the abuse and forced assimilation perpetrated by the residential school system on indigenous communities.[58] Lastly, there is the fact that many of the people McClay is discussing were not raised in Judeo-Christian traditions and so the "moral reflexes" that cause the phenomenon he describes can be acquired elsewhere.

That said, I agree with McClay that examining religious attitudes is extremely important in diagnosing where thinking about historical injustice emerged from. I will soon discuss how a

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[55] Accattoli, *When a Pope Asks Forgiveness*.

[56] Gjelten, "Southern Baptist Seminary Confronts History Of Slaveholding And 'Deep Racism.'"

[57] Georgetown University, "Georgetown Reflects on Slavery, Memory, and Reconciliation."

[58] Associated Press, "The Pope Visited Nunavut for the Final Apology of His Canadian Tour."

lot of our thinking about these matters is colored by religious terminology and concepts in a way that can make things difficult for us. There is rhetorical power in calling, for instance, slavery or the genocide of indigenous people "America's Original Sin," yet it is not self-evident what might follow from that designation.

That said, we should be more particular about the kind of religious beliefs we have in mind rather than simply invoking the "Judeo-Christian" tradition as a whole. For example, if you believe in a God who will punish past sinners for their crimes and reward people who, though the victims of injustice, were nevertheless good people, then you may have very good reason to not be so vexed about atrocities committed in the past. On the other hand, if you believe in a God who counts on humans to play some role in the redemptive process, you will end up in a different position. Such is the case with Benjamin, who says the living possess a "weak messianic power" to address the catastrophes of previous generations.[59] Thus, one should look carefully at the particular religious ideas—what were their understandings of God, the afterlife, eschatology, redemption, and so on—that feed thinking about historical injustice rather than painting with broad (and inaccurate) brush strokes, like McClay.

There is another kind of deflating secularization story having to do not with guilt but, like Torpey's account, with hope. A Catholic acquaintance of mine who visited the Auschwitz-Birkenau memorial told me he found the memorial plaque there disturbing. The plaque reads: "For ever let this place be a cry of despair and a warning to humanity, where the Nazis murdered about one and a half million men, women, and children, mainly Jews from various countries of Europe." What is new about our era, the friend told me, is that we have given up hope and

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[59] Benjamin, *Illuminations*, 197.

instead are left with despair. In his view, obsession with the past is a kind of self-indulgence in our hopelessness.

My instinct is to say to my acquaintance about hope the same thing I said about guilt (and the same thing I would say to pessimists about pessimism). Lack of hope can cause people to do sometimes perverse things, but it can also be extremely motivating. Trying to regulate such emotions strikes me as counterproductive. But it nevertheless shows the importance of developing one's self-understanding about the origins of interest in redressing historical injustice, otherwise skeptical onlookers will impose inadequate narratives onto ongoing action.

Rise of Trauma Theory

Another explanation for the rise in concern with historical injustice is the spread of theories of trauma.[60] According to Jeffrey K. Olick, the modern origins of the idea of "trauma" are in response to railway accidents in the nineteenth century, but the concept began especially important in the twentieth century.[61] Theories of trauma hold that terrible events that one has experienced have a profound role in shaping future mental states and actions. Thus, just as individuals need to come to terms with their past to live healthy lives, so too do groups need to come to terms with their collective pasts. Because this issue has been discussed at length elsewhere,[62] I will not dwell on it here.

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[60] Rechtman and Fassin, *The Empire of Trauma*

[61] Olick, "Turning Points and Myths of German Memory."

[62] Felman, *The Juridical Unconscious*; Akinyemi, "Historical Trauma Compounds Experiences of Racial Injustice"; Bell, *Memory, Trauma and World Politics.*

Path Dependence

A related factor that has not received the attention it deserves is the adoption in the social sciences of theories of path dependence. Whereas a theory of trauma explains how past actions have contemporary psychological repercussions, the theory of path dependency focuses on the way that political, economic, and social structures are shaped by the same. In the words of Philip Arestis and Malcolm Sawyer, path dependence is a way of saying that "history matters."[63] Eric Nelson notes that thinkers like Jean-Jacques Rousseau did not draw the connection between original unjust expropriation in the state of nature and current unjust conditions.[64] By the late twentieth century, that connection was one that many did make. (Recall Mbeki's previously mentioned comments). According to Kenneth Arrow, path dependency theory emerged out of specific cases in the early twentieth century,[65] but, as Ian Greener writes, it only became a formal topic of study in the later part of the century.[66] Contrary to past economic theories, which hold that market forces will dynamically reshape themselves, path dependence theory holds that markets will lock into inefficient options due to institutional inertia. When applied to political circumstances, this means that past injustices create cycles of "enduring injustice," to use Spinner-Halev's term.

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[63] Arestis and Sawyer, *Path Dependency and Macroeconomics*, 2.

[64] Nelson, *The Theology of Liberalism*, 135.

[65] Arrow, "Increasing Returns."

[66] Greener, "Theorising Path Dependence."

Politics of Recognition

Another element that has played an important role in the rise of thinking about historical injustice is the politics of recognition. The classic text exploring this idea is Charles Taylor's 1992 work with that subtitle,[67] but the idea has antecedents in thinkers including Jean-Paul Sartre and Frantz Fanon.[68] According to James Campbell, Taylor contrasts older models of recognition which were universal to more recent movements which call for the valuing of particular identity groups.[69] Campbell speculates that, in addition to viewing politics more in terms of collective identity, recognition necessitates the acknowledgment of the history of a people. The backward-looking interest in exploring group history emerges out of this.

A related but perhaps more sociological explanation for the rise in redress politics is that many groups who would be the subject of such measures have fought to remove obstacles to their full membership in political communities. In many cases, as the political clout of historically oppressed groups has increased, so has their ability to make demands and be heard on a national and international stage.

Rise of Human Rights Doctrines

Finally, some people attribute the rise of historical injustice concerns to the spread of human rights discourse. "The proliferation of such [redress] demands may represent a global

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[67] Taylor, *Multiculturalism and "The Politics of Recognition."*

[68] Kruks, *Retrieving Experience*.

[69] Campbell, "Universities Confronting Slavery."

tribute to the strength of human rights doctrine," Dinah Shelton comments.[70] Truth and reconciliation commissions often frame their missions as discovering past human rights abuses. Robert Meister tackles the memory regime and human rights discourse as two parts of the same post-war ideological apparatus.[71] In this context, the post-war concept of a "crime against humanity" plays a key role.

4. What is Redemption?

Whereas "historical injustice" is a relatively recent and straightforward concept, the idea of redemption is both old and multifaceted. The Oxford English Dictionary lists 14 different meanings for the verb "to redeem," many of which are interesting in their own right but I am unable to discuss here.

It is important to note that redemption sometimes refers to perpetrators of injustice and other times to victims. When it refers to perpetrators, it usually refers to the deliverance from sin. That is, one is redeemed when one accounts for one's acts of wrongdoing in a relevant way. Or, for some, the redemption of sin is only achieved through the intervention of the divine. At the same time, one speaks of the redemption of victims as well. There, redemption could mean making good a loss. Redemption of perpetrators and redemption of victims do not follow the same logic, although they are connected. In this dissertation, I will use insights developed by thinkers interested in the redemption of victims and apply them to the case of the redemption of perpetrators.

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[70] Shelton, "Reparations for Historical Injustices," 428.

[71] Meister, *After Evil*.

The variety of meanings of "redemption" makes it important to be clear about what exactly one has in mind when using the word. For example, if one has in mind the definition "to restore to a former good state," many will dismiss efforts to redeem the dead with the reply that there are some evils one can suffer that cannot be returned to wholeness. However, if one's view of redemption is something less demanding, perhaps simply "to elevate," then one might judge that redemption is possible. My development of this line of argument will come in Chapters III and IV.

One may also speak of redemption of many different types of things. For example, one can redeem a country, a tradition, or a heritage. In what follows, I will only speak about the redemption of *individuals*. For the moment, that is for pragmatic reasons: exploring the redemption of other areas would require many different arguments from the ones from those I discuss here. In Chapter VII, however, I will explain why I think there is a more principled reason for this focus on individuals solely.

In a conversation about redemption, one might be worried about the attempt to put what is often thought of as a religious term in a secular (or, as I would prefer to say, post-secular) framework. Some might say that we should be trying to give non-religious ethics a chance instead of trying to smuggle ill-fitting religious notions into our thinking. On the other hand, others will point to the retention of religious sources of inspiration as a sign that we need to stick fast to a genuinely religious worldview and that incomplete secularization will result in confusion. For different reasons, both sides will reject the attempt to "secularize" redemption as mixing incompatible ingredients.

Such objections or obstacles are endemic to much of the discussion about historical injustice, infused as it is with "religious" concepts such as sin, guilt, penance, and so forth. (We

saw this worry with McClay's argument). Nevertheless, I think it is possible to do so without ignoring important distinctions. My goal is not to make either vocabulary immune to criticism but to see both as potentially truthful.

To speak more concretely, I have little patience with those who claim that redemption is only possible through a single religious doctrine.[72] I believe my understanding is compatible with—and perhaps even required by—certain understandings of the relationship between the living and the divine. Yet I believe it can also be accepted by those who do not see the world within a religious framework at all. At the same time, it will also be incompatible with some religious worldviews.

Sean Kelly has argued that both the religious and secular ideas of redemption are inadequate. According to Kelly, in both the Judeo-Christian religious tradition as well as in Enlightenment thought the idea of redemption relies upon "a market-economical interpretation of the self."[73] Instead, Kelly suggests, one should look to the concept of "dignity." Kelly's account suffers from what I have explained above—try to take a single view of redemption and use it to stand in for all accounts of redemption. Rather than the conception of self-ownership that Kelly suggests lies behind the idea of redemption, my account focuses on redemption through the embeddedness of individuals in a historical community.

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[72] Haines, *Redemption in Poetry and Philosophy*.

[73] Kelly and Taben, "Interview with Sean D. Kelly."

Politics of Redemption

Politics centered around the concept of redemption has a rich and complicated history as well. Many political movements in the twentieth century were explicitly positioned as trying to redeem past eras of oppression. This kind of rhetoric can be found across the world, from Asia to the Middle East to Africa. For example, Mao Zedong was called China's "savior" who would make up for the Century of Humiliation. In Ghana, Kwame Nkrumah was known as "the Redeemer." These types of movements have not traditionally been examined in books about historical injustice, but I believe that mass political movements are one way of coming to terms with the past alongside more frequently analyzed projects like reparations and apologies. Though I support some aspects of these movements, in Chapter IV I will examine some limitations to comprehensive efforts to enact redemption for large-scale past crimes.

The politics of redemption can also include several unequivocally troubling cases. Most notably, anti-Reconstruction advocates in the Southern U.S. called themselves the "Redeemers." (For a different reason, the U.S. as a whole has long been thought of as a "redeemer nation").[74] Scholars have also included authoritarian regimes such as Nazi Germany as belonging to the

[74] Tuveson, *Redeemer Nation*.

politics of redemption.[75] More recently, the concept of redemption has been applied to the rise of right-wing populism[76] and Russian territorial aggression.[77]

In the past few decades, the "politics of redemption" has found a prominent place on the American left. Articles and books about the politics and rhetoric of redemption have been written about a range of left-wing figures such as Martin Luther King Jr.,[78] Cornel West,[79] and Barack Obama.[80] Bryan Stevenson's best-selling 2014 book *Just Mercy* about confronting America's racially biased history through an exploration of imprisonment and the death penalty carries the subtitle "A Story of Justice and Redemption."

But this tight association between the American left and redemption seems to be changing. A well-known moment that epitomizes this shift was the campaign event in New York City on September 9, 2016, during which Hillary Clinton told the crowd:

> You know, to just be grossly generalistic, you could put half of Trump's supporters into what I call the basket of deplorables. Right? They're racist, sexist, homophobic,

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[75] Kershaw, "Hitler and the Uniqueness of Nazism."

[76] da Silva and Vieira, "Populism and the Politics of Redemption."

[77] Cederman, Rüegger, and Schvitz, "Redemption through Rebellion."

[78] Bobbitt, *The Rhetoric of Redemption*; Rosenbloom, *Redemption*.

[79] Cowan, *Cornel West*.

[80] Marshall, "Dramatic Catharsis"; Renshon, *Barack Obama and the Politics of Redemption*; Stanage, *Redemption Song*; Stiles and Kitch, "'Redemption for Our Anguished Racial History.'"

> xenophobic, Islamophobic – you name it…. Now, some of those folks – they are irredeemable[81]

For many on the left, the idea of redemption has come to seem naïve, overly optimistic, and ignorant of deep-rooted problems. Whereas just a few years earlier journalists were asking if the U.S.'s racist history had been redeemed because of the election of a black president, now the question increasingly being asked is whether the U.S. as a whole is irredeemable.[82]

The same year Clinton gave her "deplorables" speech, Frank B. Wilderson III published an essay declaring the "end of redemption," a theme he explored further in his 2020 work *Afropessimism*.[83] Wilderson has at least two important arguments against redemption. First, quoting Cecilio M. Cooper, he notes that black people are often made the "vector" of redemption for other groups.[84] Secondly, he says that redemption does not apply to black people because their experience is characterized by absence, not loss. Redemption, for Wilderson, is "anti-black."[85]

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[81] Time, "Read Hillary Clinton's 'Basket of Deplorables' Remarks on Trump Supporters."

[82] Gordon, "Is America Redeemable?"

[83] Wilderson, "Afro-Pessimism & the End of Redemption."

[84] Wilderson, *Afropessimism*, 2.

[85] Wilderson, "Afro-Pessimism & the End of Redemption."

Meanwhile, writers on the right have begun to embrace the language of redemption more forcefully, particularly when it serves as an answer to "cancel culture." [86] It is also increasingly used in the realm of criminal justice reform.[87]

5. Why Should One Care About Perpetrators?

Many of these recent debates have posed the question of whether *historical* figures who have committed crimes are redeemable. In this section, I will explain why I think this question is important to address. Before that, however, let me acknowledge two important worries about my area of interest.

First, one might insist that it is far more important to work towards the redemption of victims of past injustice than of the perpetrators. I do not disagree with that. A victim-centric approach in most cases is the most sensible. And I do not want to ignore that the proper response to violent past perpetrators is often anger, disappointment, resentment, disgust, and many other strong feelings.

Second, one might worry that efforts to redeem the past, in general, do little to help living victims of injustice or prioritize the dead over the living. Dara Horn argues in *People Love Dead Jews* that fascination with Jewish death is coextensive with "little respect for Jewish lives, as they continue to unfold in the present."[88] A similar point has been made repeatedly when it

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[86] Connelly, "Cancel Culture vs. Redemption Culture."

[87] Withrow, "Red State Redemption."

[88] Horn. *People Love Dead Jews*, frontmatter.

comes to the legacy of the slave trade. Reflecting on the attitude of William Wilberforce towards an enslaved African girl murdered on the ship *Recovery*, Hartman notes that "she was more useful dead than alive."[89]

If any of these two objections end up applying to my argument, then I should surely wish to abandon it. My position is not that we should focus our energy less on the victims and more on the perpetrators, or more on the dead than on the living. My analysis only arises as a response to the counterargument that the focus on the victims harms the perpetrators in a troubling way. Those making this counterargument rarely have a worked-out understanding of what it means to harm the dead perpetrators. I aim to show that, if one understands correctly what it means to be concerned for the fate of the dead perpetrators, then one will support redress measures for the victims as well, or at least will not think this particular objection is a reason not to pursue them. I also want to show how concern for past perpetrators can lead to action that benefits living individuals who are affected by the legacy of past injustice. I want to show how attention to the redemption of past perpetrators complements efforts to attend to both past and living victims of injustice. In sum, I view the arguments I am making as compatible with and indeed complementary of other facets of the discussion about historical injustice.

Another reason that I am focusing on the question of redemption of past perpetrators is simply that I agree with much of what has been established about efforts to attend to past victims. By contrast, there is less that has been said about past perpetrators. I will not ignore the

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[89] Hartman, *Lose Your Mother*, 150.

question of victims, however, but rather use it to inform the way I think one should approach past perpetrators.

In what follows, I will lay out six separate additional reasons one might have to think that it is worthwhile to investigate the fate of dead perpetrators.

Leverage

Many people do not initially pair attachment to past perpetrators with a concern for their victims. Scholars and activists have tried to leverage these attachments with perpetrators and turn them into attachments to the victims. [90] Often, these attempts fall into an "asymmetry" strategy. That is, they try to catch people in the act of supporting perpetrators and argue that consistency dictates they should support the victims too. In other words, they try to use the perpetrators as a way of helping the victims. I sense that the asymmetry strategy tends to work better as an instance of rhetoric than as a tool of persuasion. Anecdotally, one response is often simply to turn the logic around and say that those accusing others of asymmetrical thinking have an asymmetry of their own, only focusing on the negative elements of history at the expense of the positive.

Universal Salvation

If you subscribe, like Benjamin in my reading, to some idea of universal salvation (*apokatastasis*), then you might think a theory of redemption has to cover all people regardless of their status as victims or perpetrators. Another way of reaching this conclusion is if you hold the Platonic belief that no one knowingly commits an act of wrongdoing. Such positions deny that

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[90] Coates, "The Case for Reparations"; Abdel-Nour, "National Responsibility"; Macintyre, *Is Patriotism a Virtue?* Wheeler, "Reparations Reconstructed."

some are abjectly immoral and beyond saving. I do not endorse these views entirely in what follows, but they are important to note.

Preponderance of Perpetrators

It is the case that the number of those who have perpetrated injustice in some form in human history is much larger than the number of those who are only victims. Depending on what actions and beliefs you consider unjust, the ratio of perpetrators to victims is extremely high. One might go so far as to say that almost every person who has ever lived has performed actions or held beliefs that many would now find objectionable. This in itself may be a reason to wonder what should befall perpetrators.

Self-Interest

Given the number of people in history whom we now judge to have perpetrated significant evil, it is also understandable to ask: how are we to know that we are not any better? I do not believe we act with a more finely attuned moral compass. There are many actions we can think of that we perform regularly as a society that we can easily imagine future generations thinking are wrong (similar to how we now consider things our forebears did were wrong). Mass incarceration is one prominent example in the contemporary U.S. Contributions to climate change, which disproportionately affect the most vulnerable populations, are another. Or the example regularly given in philosophy classes: eating factory-farmed meat. So, what is one to do about the likelihood that one is gravely wrong about important moral issues but seemingly unable to stop doing them? To know how one might want to be treated by someone in a different temporal position, one should likely want to know how one relates to other perpetrators, particularly ones in the past.

This thought also presents a challenge for a writer. Knowing the ideas you have and the language you use may turn out to be unhelpful, counterproductive, or worse—sometimes quite

soon—why should you risk bringing more error into the world? Is it not better, as Socrates suggested, to stay out of the rain?

Yet this form of quietism—choosing not to write—is also fraught. Conversation with others, especially with those outside one's epistemic bubble, is one of the best ways to improve one's viewpoints. Countless times while engaging in this project I have changed my arguments after receiving feedback from my peers, advisors, and strangers. Not exposing one's ideas can keep you from learning and keep you stuck in your incorrect views. Furthermore, writing seems to be required because many of the ideas one wants to study only become clear through sustained effort.

Judgments about Living Perpetrators.

If one believes, with Stevenson, that we are "more than the worst thing we have ever done,"[91] then why should this not also apply to figures who are dead? Investigation into the status of past perpetrators might help clarify one's position regarding contemporary figures who have committed acts of injustice. The question of what to do about perpetrators of grave injustices is especially pressing for those interested in more radical approaches to addressing mass incarceration.

Preservation of Agency

Morality would be little more than a stab in the dark if there were no meaningful connection between the desire to be moral and actual deeds. Yet, as I have said, we know of legions of people who came before us who had seemingly good intentions but who committed all manner of atrocities. The preponderance of historical injustice seems to be a direct threat to human agency.

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[91] Stevenson, *Just Mercy*, 17.

Crucial to a moral scheme like Immanuel Kant's is the idea that human beings can tell when they have broken the moral law. But that does not seem to be the world we live in. New moral facts and changing epistemic environments work to, in Barbara Herman's words, "upset the reasonable confidence of normal agents."[92]

As Herman suggests, responding to this unsettling of confidence requires "going beyond the ordinary resources of good character."[93] Where does that leave one?

6. The Argument

The purpose of this dissertation is both to explore how to benefit and harm the dead and to leverage arguments that have been developed in the context of exploring how the living can help victims of injustice to show how the living are helping rather than harming past perpetrators by trying to redress their acts of wrongdoing. In what follows, I will summarize the aim of each chapter.

Chapter II: Beyond the Material-Symbolic Reparations Dichotomy

I first will try to show how efforts to attend to the dead involved in historical injustice deviate from common understandings of what redress or reparations require. I will argue that the way many Americans understand reparations—as "cash flowing from some Americans to others in race-conscious ways meant to redress the racial wrongs of the past" (Frum)—is incomplete.[94] Rather, many advocates of reparations regard cash payments to the descendants of victims of

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[92] Herman, *Moral Literacy*, 107.

[93] Herman, 121.

[94] Frum, "The Impossibility of Reparations."

injustice as part of a larger political project. I will consider how to conceptualize reparations as such a project. I argue against the familiar binary opposition between "material" and "symbolic" reparations. Instead, I use the term "interpretive dimensions" of historical injustice to capture the idea that reparations can entail, at least in part, a reworking of how individuals interpret their world, including their relationships and moral obligations to others, in the light of past wrongdoing. I will canvass both conservative and left-wing objections to such interpretive dimensions and then lay out several reasons for nonetheless holding interpretive dimensions to be valuable. Moving past this distinction provides a way for living people to think about legitimate actions to affect the dead that do not follow the juridical model. Second, they allow the living to work on behalf of the dead perpetrators in a way traditional forms of redress might not allow.

Chapter III: Can the Living Help the Dead?

In Chapter III, I will consider whether it is possible for the living to help the dead. First, I will examine the context and meaning of Walter Benjamin's essay "Theses on the Philosophy of History." Benjamin is often cited by those engaged in issues of historical injustice for his description of history as a series of catastrophes. But his proposal for what to do about the catastrophic past—that the present generation possesses a "weak messianic power" to redeem the dead—has been much less examined in the literature. I will examine Benjamin's argument in light of more recent approaches to helping the dead. In the end, I will consider whether his arguments about the redemption of past suffering might be applied to the redemption of past sins.

Chapter IV: Harming the Dead

Hartman takes some of Benjamin's themes and applies them to the context of Atlantic slavery and its legacy. Hartman theorizes the dangers of inflicting even more violence upon the dead in trying to attend to them. This bind, she says, is inescapable. However, she navigates

around it with a technique she refers to as "critical fabulation." I will examine critical fabulation as a form of aesthetic redemption. Finally, I will compare the arguments Hartman makes about harming dead victims of past injustice with the arguments made by those who think past perpetrators are being harmed by contemporary redress efforts.

Chapter V: Are the Perpetrators of Past Injustice Redeemable?

This chapter, which will examine what should be done for past perpetrators, is the most important chapter of the dissertation. In it, I will criticize what I call "status quo redemption," which attempts to argue for the redemption of the past while leaving present conditions in place. I will consider three alternative ways of arguing that living people have a charge to redress the sins of the perpetrators in a way that does not harm them, explaining the strengths and weaknesses of each. After canvasing an informal representation approach and a public-identity re-empowerment approach, I will conclude that a counterfactual approach is most likely to succeed.

Chapter VI: The Normativity of "Never Again"

The goal of this chapter is to respond to the worry that victims of past injustice will be used simply as tools for the redemption of the perpetrators. In it, I will focus on one way that the efforts to redeem perpetrators might work in tandem with efforts to redeem the suffering of victims, past, present, and future. I will highlight the issue of the non-repetition of violence, as embodied in the slogan "never again." The idea that past wrongdoing creates an imperative in the present not to repeat those evils has been important for those working on the legacy of the Holocaust and the legacy of slavery, as well as many other cases. However, the idea of "never again" has also come in for criticism, and its normative foundations are underexplored. What I call the "informational interpretation" of "never again" says that what one gets from the past is a

lesson and nothing else. Against that, I will argue that dedication to non-repetition with an eye toward redemption is a way that living individuals can concretely attend to the dead.

Chapter VII: Left Conservatism

Finally, I will contextualize efforts to address past perpetrators within a broader view of living people's relationship to the past. Arguing for a position I am calling "left conservatism," I will emphasize the importance of connecting with the past in a way that prioritizes past cruelty. I will try to show how this disposition fits in with traditional conservative understandings of the relationship between the present and the past. I will argue for an alternative interpretation of the Burkean social contract, one that involves not just gratitude towards the past and responsibility towards the future but a responsibility towards the past and gratitude towards the future. I will conclude the dissertation with a reexamination of the doctrine of progress in light of the possibility of working toward the redemption of past actors.

Chapter II: Beyond the Material-Symbolic Reparations Dichotomy

1. Introduction

This chapter attempts to lay out where the project of redeeming perpetrators of past injustice fits into the landscape of current thinking about how to redress historical injustice in general. I argue one needs to move past many current ways of conceptualizing redress—particularly the material-symbolic reparations binary—to adequately theorize ways of redeeming past figures.

According to David Frum, "if *reparations* mean what most Americans reasonably interpret it to mean—cash flowing from some Americans to others in race-conscious ways meant to redress the racial wrongs of the past—then it's a disastrous idea for all groups in society."[1] The starting point for this chapter is that the "reasonable" interpretation Frum ascribes to most Americans is largely incorrect. For one, almost no one argues that reparations for slavery and Jim Crow should flow from *individual* Americans; rather, it is usually argued that the federal government and other institutions should pay them out. (Notably, black Americans' tax dollars would also go toward reparations). Secondly, as Olúfhemi O. Táíwò notes, many advocates of reparations do not favor payments going to *individual* descendants of victims.[2] Thirdly, and most importantly for this essay, for many advocates of reparations, the call for monetary payments to the descendants of victims of past injustice is inseparable from a broader political program. (The most prominent view that focuses on a material-payment-only program is that of Desmond

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[1] Frum, "The Impossibility of Reparations."

[2] Táíwò. *Reconsidering*, 3.

Jagmohan).[3] It is only when viewed as a larger political project that redress can be seen to include methods of acting on the dead in the way that I favor.

Such an expansive position can be found in the writing of a range of authors. For example, Audley Moore wrote in her 1969 essay "Why Reparations?" that "the Reparations Committee, is seeking relief in money damages for the victims of these injustices with which to begin a program of rehabilitation. It is, further, the desire of the Committee that every well-meaning and patriotic American, whatever his position in life, do his utmost by word as well as deed, to help this long overdue and just effort to erase the blot and stigma from the unfortunate past of America's history."[4] In Moore's activism, trying to repay the financial debt of slavery and Jim Crow and the undoing of the legacy of those injustices go hand in hand. Something similar is true for many other advocates of reparations. For example, for William A. Darity, Jr. and A. Kirsten Mullen, "the work of national memory and national consciousness is an essential component of an effective program of black reparations."[5] Ta-Nehisi Coates, in "The Case for Reparations*"* (to which Frum was responding), writes that "what I'm talking about is more than recompense for past injustices—more than a handout, a payoff, hush money, or a reluctant bribe. What I'm talking about is a national reckoning that would lead to spiritual renewal. …

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[3] Jagmohan, "Reparations without Reconciliation,".

[4] Moore, "Why Reparations?" 4.

[5] Darity Jr. and Mullen, *From Here to Equality*, 269.

Reparations would mean a revolution of the American consciousness".[6] Likewise, Charles P. Henry, alluding to a speech by Martin Luther King Jr., writes that "reparations could be the beginning of a true revolution in values."[7] Robin D. G. Kelley has reviewed the history of reparations movements and concluded that "it was never entirely, or even primarily, about money."[8] Building off this, Táíwò writes that reparations are nothing less than the project of "worldmaking."[9] Outside of the U.S., the Caribbean Reparations Commission (CARICOM) put forward a 10-point reparations plan that addressed a range of issues such as confronting public health crises, eradicating illiteracy, psychological rehabilitation, and a program to build "bridges of belonging" between Caribbean nations and Africa.

The projects I have just mentioned are different in many ways, but what they share is that their aims go beyond compensation. Conservatives responding to the call for reparations have largely ignored or downplayed dimensions of reparations projects that go beyond cash transfers and instead have been focused solely on the question of material distribution. For example, none of the prominent opinion pieces opposing Coates's "The Case for Reparations" bothered to respond to his charge that fellow citizens practice "patriotism à la carte" when they cling to the exemplary moments of the country's past while remaining silent about the presence of violence

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[6] Coates, "The Case for Reparations."

[7] Henry, *Long Overdue*, 178.

[8] Kelley, *Freedom Dreams*, 114.

[9] Táíwò. *Reconsidering Reparations*, 20.

or injustice.[10] This does not mean that arguments cannot be made against the broader project, as I will explain below, but simply that critics of reparations have seldom engaged with what advocates of reparations programs are actually proposing.

To be sure, conservatives in the U.S. are not the only ones who have ignored the broader aims of reparations movements. Influenced by both liberal egalitarianism and legal discussions, there are also many thinkers on the left, particularly in academia, who have treated compensation or economic redistribution as the sole objective of reparations. Indeed, it has been noted that the vast majority of academic literature on historical injustice has been focused on the *distributive* effects of past wrongdoing at the expense of effects of other kinds of effects.[11]

I contend that those engaging in the redress debate should take the broader picture seriously. To do this, I will argue that the usual way of presenting the broader issue—as a choice between "material" and "symbolic" reparations—is inadequate. Instead, I will discuss what I will call the "interpretive" dimension of redressing historical injustice. By that, I mean how historical injustice should cause citizens to reinterpret their relationship to their history, to their state, to other citizens, and to their life projects. In other words, how does past wrongdoing change the way members of society "see" the world, its history, and its potentialities? Part of this reinterpretation is inseparable from a change in the material conditions of the world, and so I will

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[10] Coates, "The Case for Reparations;" Epstein, "The Case against Reparations;' Williamson, "The Case Against Reparations;" Bykofksy, "The Case Against Reparations."

[11] Pogge, "Historical Wrongs," 118.

not oppose the "interpretive" dimensions to some other kind of dimension in the way material reparations have often been contrasted with symbolic reparations.

First, I will explain my choice of terminology (Section 1). The two sections after that will canvas conservative (Section 2) and left-wing (Section 3) arguments against the interpretive dimensions as I understand them. Then I will explain what I take to be the key advantages of focusing on the interpretive dimensions (Section 4). In conclusion, I will consider how the issue of reparations can avoid being sidelined in popular discourse (Section 5).

Ultimately, I will argue in this essay that the case for monetary payments in some form is strengthened by a commitment to some of the broader aspects of a reparations program, just as the case for those other elements is strengthened by a commitment to monetary transfers. This argument allows one to see how attention to dead victims and perpetrators themselves might be involved in redress efforts.

2. Conceptualizing Reparations: Beyond Material vs. Symbolic

Any progress on reparations that comes is not to be driven by academic writing. But one thing that can be offered is conceptual clarity. The most common way of thinking about reparations advocacy is as a contrast between material reparations and symbolic reparations. Why this is the case is not immediately apparent. It does not seem to be a distinction that a single author began championing. Rather, it appears to have crept into the discourse casually. According to the Google Books archive, the use of the term "symbolic reparations" seems to have begun being prominent in the 1990s.

In traditional Christian understandings of penance, there is a distinction between restitution and satisfaction: reparation of the inequality in things and the reparation of inequality

in actions and passions.[12] For Aquinas and the tradition following him, it is acts of satisfaction that take priority. This is a reverse of our current material-symbolic binary that comes up in many recent different works, where the material component is favored.[13] In any case, this distinction has some intuitive sense. Material reparations are understood to comprise actions like payments to descendants, land transfers, affirmative action, and more. Symbolic reparations then entail official apologies, changing monuments, renaming, education efforts, and more.

For many, splitting things up this way makes the symbolic dimension a clear second option, with the phrase "merely symbolic" not far from people's tongues. (Doris Sommer writes that many consider symbolic reparations to be a "bad joke.")[14] Adolph L. Reed has argued that the ambiguity of what is meant by the term "reparations" leads actors to seek the least onerous method of fulfilling the obligation to make reparations: namely, symbolic reparations. He writes facetiously, "elites will always prefer symbolic gestures to material ones: 'Let's see, should we give them college tuition and affordable housing or a heartfelt apology and a few monuments and plaques? Hmmm, which will it be, which will it be?'" [15]

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[12] Griffin, *The Politics of Penance*, 62.

[13] Araujo, *Reparations for Slavery and the Slave Trade*; Meyer, "Reparations and Symbolic Restitution;" Naidu, "Symbolic Reparations;" Greeley et al., "Repairing Symbolic Reparations."

[14] Sommer, "Symbolic Reparations, a Good Joke."

[15] Reed "The Case Against Reparations."

But whether you give priority to material or symbolic reparations, the distinction does not withstand scrutiny. First, the material dimension of reparations contains a "symbolic" dimension within it. Margaret Urban Walker, for example, has argued that acts of material recompense contain within them an "expressive" function that acts to convey "a vindicatory message" to victims and to gesture toward the relationship that was violated by the act of wrongdoing.[16] Furthermore, material reparations are often objected to, not for how they would alter citizens' bank accounts, but rather for what paying reparations to victims would *mean* for the integrity of the party paying them. David Horowitz argues that reparations for slavery and later racial injustices in the U.S. would jeopardize American heritage. He writes that "for all America's faults, African Americans have an enormous stake in their country and its heritage. It is this heritage that is really under attack by the reparations movement."[17] Similarly, but from a different part of the political spectrum, Hartman expresses that she is "agnostic" about reparations partly because of the meaning inherent in the process of appeal. "I had grown weary of pleading our case and repeating our complaint. It seems to me that there is something innately servile about making an appeal to a deaf ear or praying for relief to an indifferent and hostile court or expecting remedy from a government unwilling even to acknowledge that slavery was a crime against humanity."[18]

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[16] Walker, "The Expressive Burden of Reparations."

[17] Horowitz, "Ten Reasons Why Reparations for Slavery Is a Bad Idea for Blacks – and Racist Too," 48.

[18] Hartman, *Lose Your Mother*, p. 166.

According to Hartman, the violence of slavery is not limited to the financial damage the institution has caused. "The irreparable violence of the Atlantic slave trade resides precisely in all the stories that we cannot know and that will never be recovered. This formidable obstacle or constitutive impossibility defines the parameters of my work." Accordingly, she writes, "it would not be far-fetched to consider stories as a form of compensation or even as reparations, perhaps the only kind we will ever receive."[19] This view is far different from the mainstream view that understands reparations merely as cash payments.

At the same time, actions that would normally be placed in the "symbolic" category carry implications for material experience. This is true because creating art, monuments, museums, and such requires paying people money. But in another way, webs of meaning that members of a society inhabit have direct effects on the way people are harmed. Alasia Nuti has argued for the interconnection between what she calls "banal" and "radical" forms of violence.[20] For example, she writes, there is a direct connection between negative racial stereotypes about black people and the criminalization of race. Confederate monuments, to use another example, have been shown to negatively affect the communal belonging, equality, and well-being of black Americans.[21] To consider such things as "merely symbolic" is to disregard lived experience.

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[19] Hartman, "Venus in Two Acts," 4.

[20] Nuti, *Injustice and the Reproduction of History*.

[21] Barczak and Thompson, "Monumental Changes;" Britt, Wager, and Steelman, "Meanings and Impacts of Confederate Monuments in the U.S. South;" Nuti, *Injustice and the Reproduction of History*.

Finally, certain issues—for example, the debate about indigenous land—do not fit clearly within the material-symbolic opposition at all.

So, if the material vs. symbolic distinction is unhelpful, how should one talk about reparations in a way that takes the full scope and complexity of demands into account? Torpey has attempted to conceptualize various redress measures. He offers a concentric circles model for thinking about options. In the innermost circle is transitional justice, and then, further out from there, are circles for compensation, apology/regret, and finally "communicative history," which he glosses as "memory, memorials, historical consciousness."[22] Elsewhere, Torpey defines communicative history as "history-writing that emerges from consultation and agreement among the various parties to a particular past, based on the notion that they are the ones (most) directly affected by the history in question".[23]

According to Torpey, this category of communicative history is the most symbolic and has the "least momentous impact on public policy."[24] It is an inelegant locution modeled on Jürgen Habermas' notion of "communicative action." Torpey further describes communicative history as "the search for a past about which all the (putative) participants can agree."[25] Torpey believes that the last category is the one that has the most focus on the victims and their

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[22] Torpey, *Politics and the Past*, 6.

[23] Torpey, *Making Whole What Has Been Smashed*, 49-50.

[24] Torpey, *Making Whole What Has Been Smashed*, 51.

[25] Torpey, *Making Whole What Has Been Smashed*, 57.

descendants, not the perpetrators. Yet several things should be required of perpetrators having to do with the way they interpret history. And it is characteristic of the field that Torpey gives less time to communicative history compared to the other circles in his diagram.

If communicative history is not a satisfactory way of thinking about what I am interested in here, it might be natural nonetheless to look for one in Germany's process of addressing its Nazi history. Much has been written about the "German model" of *Vergangenheitsbewätigung*, or "working through the past" and its potential to apply to the U.S. as well.[26] And the German case is a good one to point to when making my argument. After all, Germany initiated cash reparations payments in the 1950s, but it still took their culture many decades to confront their history in other ways. My reason for not using the term *Vergangenheitsbewätigung* is practical: I do not think that picking a difficult-to-pronounce German word will help advance debates in the U.S., even if the larger messages of that movement might.

Instead, I propose to refer to the "interpretative" dimensions of redressing historical injustice. By this I mean how one sees one's place in the world in the light of past injustice. Different actors and theorists have emphasized various interpretive dimensions to redressing historical injustice, including:

- How one understands one's personal story as connected to past evil
- How one views one's relationships with the dead who were implicated in that evil
- How one views one's relationship with a fellow citizen as mediated by past evil

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[26] Neiman, *Learning from the Germans*.

- How one contests narratives or "controlling images" (to use Patricia Hill Collins' term)[27] that have arisen because of past evil
- How one addresses the precognitive aspects of one's viewpoint, the imagination, or implicit biases, which have arisen because of past evil
- How one teaches political history as well as intellectual history in the light of past evil
- How one understands one's collective narrative in the light of past evil (e.g., "Never Again")
- How one renegotiates monuments, museums, place names, and so forth in light of past evil
- How one adjusts political regimes and laws that are implicated by past evil

This is only a partial list. Monetary payments may be a part of many of these aspects of interpretation. For example, one might think that for citizens to adequately relate to each other as equals as mediated through history requires a certain degree of monetary parity. The reparations demands put forward by CARICOM are a good example of a program that embraces many interpretive elements that also require a significant financial investment. Another example is Harvard University's commitment of $100 million to redress the legacy of its ties to slavery, a payment the school, for political reasons, insisted was not reparations.[28]

One might think that this list is so expansive as to cover everything, but that is not the case. For example, compensatory payments under a tort model would not be considered

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[27] Collins, *Black Feminist* Thought, 85.

[28] Hartocollis, "Harvard Details Its Ties to Slavery and Its Plans for Redress."

"interpretive." Courts cannot impose changes of outlook from perpetrators, so the interpretive dimensions would go beyond a mere juridical understanding of past injustice. The pure "debt" model, in other words, does not involve the interpretive dimension at all.[29] Under some conceptions of reparations, average citizens would be as unaffected by the expressive dimension of reparations as they are when state funds are used to pay for, for example, corn subsidies in Iowa. Furthermore, advocates of the juridical model possess what Nelson has called "sudden onset libertarianism." That is, they advocate for respecting the rights claims of the dead, but only in the circumscribed area of justice in rectification. I do not think the issue of rights to the dead exhausts the reasons the living have to care for them, and in some cases to reduce the matter to that can even be insulting. Furthermore, I think the difficulties that theorists have had in pursuing the juridical case are a reason for trying something like the view advocated for here instead.

If the pure debt or rights-based juridical models do not satisfy me, I have also left reactive attitudes off this list. I do not think reactive attitudes are unimportant. It is a legitimate question whether an individual feels guilt, shame, pride, and so forth about past actions. However, the interpretation of history and its meaning for one's lifeworld is different. The focus on the question of the feeling of guilt, for example, might not be as decisive as current attention to it would seem. The feeling of guilt underdetermines what actions one takes. Guilt can be a powerful motivator for redressing historical injustice, but, as I have said in Chapter I and as Peter Sichrovsky shows in his interviews with the children of Nazis, it can also be the catalyst for

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[29] Brooks, *Atonement and Forgiveness*.

many strange or counterproductive responses.[30] Many critics of the focus on reactive attitudes argue that they are things that individuals have little control over, unlike the focus on the interpretive dimensions. Thus, the "interpretive" label demarcates a conceptual space between purely juridical responses to past wrongdoing and one concerned purely with reactive attitudes. I suggest this space deserves increased attention by academics who study historical injustice philosophically, although political actors have been exploring and contesting it for quite some time.

3. The Right's Case Against the Interpretive Dimensions

In the next two sections, I will consider objections to what I'm calling the interpretive dimensions that have emerged in the course of the debate about reparations. To say there is a debate about reparations is perhaps misleading, as "debate" usually implies some kind of parity between sides. While over a dozen books have been published making the case for reparations, not a single conservative author has published a full-length treatment opposing reparations that takes into account the views of the aforementioned books put forward by left-wing authors. *Reparations: Pro and Con* by Alfred L. Brophy presents both sides of the issue, but there is nothing that would constitute a thorough response solely from the right.[31] What does exist on the right comes often not in the form of academic publications. Therefore, to understand the positions that are important on the political right, it will mean engaging with writing that is not traditionally considered academic. This is partially a function of political sociology – there are

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[30] Sichrovsky, *Born Guilty*.

[31] Brophy, *Reparations: Pro and Con*.

many fewer conservatives than liberals and radicals in academia and the ones who are there often do not choose to write about controversial topics.

In my view, at least ten distinct arguments are common amongst conservatives opposed to material reparations. They are 1) that reparations are akin to welfare,[32] 2) that living persons bear no responsibility for past crimes,[33] 3) that reparations are racist or discriminatory,[34] 4) that precedents do not apply in the case of slavery and/or Jim Crow,[35] 5) that the debt has already been paid,[36] 6) that a reparations program would be impossible to administer,[37] 7) that reparations would cause racial resentment,[38] 8) that reparations would harm the character of the

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[32] "Moral Bankruptcy," *The Daily Collegian*.

[33] Kane, "Why the Reparations Movement Should Fail."

[34] Horowitz, "Ten Reasons Why Reparations for Slavery Is a Bad Idea for Blacks – and Racist Too."

[35] Epstein, "The Case Against Black Reparations."

[36] Tracinski, "America's Field of the Blackbirds."

[37] Flaherty and Carlisle, "The Case Against Slave Reparations."

[38] Williamson, "The Case against Reparations."

recipients,[39] 9) that too much time has elapsed,[40] and 10) that living people are not eligible for redress.[41] Each of these arguments has been well responded to in the pro-reparations literature, but as I have indicated, few of those who oppose reparations appear to have read it.

I start this section with a summary of the state of play on reparations understood simply as cash payments for two reasons. First, I want to note that when it comes to the interpretive dimension, there is at least more of a conversation than there is about the monetary-payments-only understanding. For example, there have already been multiple books challenging the *1619 Project*, while none directly challenge monetary payments to the descendants of the victims of slavery. These books do not recognize that a reevaluation of the way the U.S. teaches history is an automatic effect of past wrongdoing. But at least they are having more of a conversation.

Secondly, many of the same arguments are employed when it comes to the interpretive dimensions. For example, the argument that the interpretive dimensions of reparations are themselves racist has been argued at length by John McWhorter in *Woke Racism*.[42]

It is also important to see how the interpretive dimension puts other of these arguments on the defensive. For example, the argument that contemporary white Americans bear no

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[39] Frum, "The Impossibility of Reparations."

[40] Epstein, "The Case Against Black Reparations."

[41] Hillard and Graham. "The Other Case against Reparations."

[42] McWhorter, *Woke Racism*.

responsibility for the past ("I never owned slaves") is challenged by those focusing on the interpretive dimension if it is argued that many white Americans possess racist attitudes or biases. But I am most interested in this section in the additional arguments that supporters of a reparations program broadly conceived have to contend with. I will cover four main ones here.

1. **Illiberal**: One of the biggest objections is that it is illiberal to try to force a change in citizens' attitudes or self-understandings. Often, those with indoctrination concerns argue that it should be up to parents, not the state, to determine what kinds of things children are learning, and this argument has been influential in shaping conservative attitudes towards the teachings that fall under the umbrella of "Critical Race Theory."[43]
2. **Presentism**: If the first worry is being untoward towards living individuals, the second big objection to revisionism is that it is untoward toward the past. While advocates of reparations are sometimes concerned with how history haunts the present, this objection worries that in response living individuals are haunting the past.[44] Instead, the objectors advocate epistemic humility rather than condescension when it comes to dealing with the past. The idea that living individuals can harm the dead will be discussed at length in Chapter IV.
3. **Demoralizing**: A separate argument is that it is demoralizing for living white Americans to have to engage in the interpretive dimensions. By turning past figures

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[43] Moschella, "Critical Race Theory, Public Schools, and Parental Rights."

[44] Epstein, "The Case Against Black Reparations."

into ‘monsters,’ living individuals are deprived of aspects of their history, which leads to an erosion of identity and esteem.

4. **Aesthetic:** Finally, there is sometimes an aesthetic argument against revisionist efforts. That is, the change to new terminology or visual culture is simply uninspiring, clunky, or ugly. It leads to "ridiculous language constructs," as the Association for the German Language remarked about the German movement adding a “gender star” in an attempt to make masculine words gender neutral.[45] Reactionary writers in the United States enjoy making fun of the “word salad” engendered by newly devised acronyms such as DEI.[46]

These are not the only criticisms that have been made, but they show that broadening the focus from strictly monetary payments to descendants requires engaging in different kinds of thinking than have usually been dealt with in the reparations literature. Focus on familiar puzzles regarding proximate cause, counterfactuals, status quo ante, and non-identity need to give way to philosophical and political attention on other sorts of objections as well.

4. The Left’s Case Against the Interpretive Dimensions

Conservative objections to the interpretive dimensions of redressing historical injustice are only part of the discussion. Some of the biggest opponents of such measures are actually on the left. In this section, I will canvass some of their reasons for opposition. As the reader will see,

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[45] Johnson, “Gender Neutral Wording is Making German Ridiculous, Asserts Association.”

[46] Lind, “The End of Progressive Intellectual Life.”

many issues raised are reflective of issues that the left has been debating for quite some time. Again, I will focus on four distinct objections.

1. **Cheap:** Perhaps the most natural objection is that the interpretive dimension might be "cheap." That is, working towards it is not worth much. Zadie Smith, for example, has said that, compared with changing structures, "I think changing hearts and minds is much cheaper … it's much easier. … and it's much less frightening."[47] The idea of interpretive dimensions being cheap can be meant in at least two ways. First, recalling what Reed said, the price tag for interpretive actions might simply be less than a compensation scheme. But what Smith argues is that they may also be not as effective at challenging harmful realities. She writes that "prejudice is most dangerous not when it resides in individual hearts and minds but when it is preserved in systems."[48]
2. **Root Cause:** This brings us to a second, related worry, which is that some parts of the interpretive dimension do not get at the root cause of contemporary problems. Táíwò, for example, writes,

> In placing material welfare first, I don't presume that cultural or spiritual needs are unimportant. We need recognition, we need acknowledgment, and we need good relationships with the people around us. But I do presume that we need to eat and protect ourselves from premature death and suffering, more than we need vindication—whether in cultural narratives, textbooks, or fancy academic

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[47] *NPR*, "Big Tech Comes to Washington + A Conversation with Zadie Smith."

[48] Smith, *Intimations*, 87.

journals. I presume that protection against mass displacement is a more fundamental need than the need for reconciliation with our neighbors. While such reconciliation might complement or strengthen such protection, the reverse is not true: without housing security, neighborly reconciliation becomes trivial to meaningless.[49]

3. **Crowding Out:** Some argue further that interpretive needs get in the way of the more central business. Political capital is limited, and what one spends in one area takes away from what one can focus on in others. This is an old theme on the left and has been much debated.[50] One memorable intervention is that of Richard Rorty, who argues that a reformist political left has been supplanted by a "cultural left." Rorty writes that "there is a dark side to the success story I have been telling about the post-sixties cultural Left. During the same period in which socially accepted sadism diminished, economic inequality and economic insecurity have steadily increased. It's as if the American Left could not handle more than one initiative at a time — as if it either had to ignore stigma to concentrate on money or vice versa."[51]
4. **Easy to Get Wrong**: Finally, there is often a worry that the interpretive dimension is easy to get wrong. There has been much criticism of specific monuments, for example for being disrespectful. To cite one example, in the city of Munich, the "stumble stone"

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[49] Táíwò. *Reconsidering Reparations*, 140.

[50] Fraser and Honneth, *Redistribution of Recognition?*.

[51] Illing, "Richard Rorty's Prescient Warnings for the American Left."

monument project was banned because a city leader thought it did not do honor the memory of the dead. A criticism leveled against some attempts at commemoration is that they are not sufficiently "victim-centered."[52] Dara Horn vividly depicts an example of 'getting it wrong,' in her account of the memorialization efforts of the Jewish community in Harbin, China, where local officials seem more interested in attracting Jewish money for economic development than in paying tribute to the injustices faced by the Harbin Jews. (The view that commemoration efforts are done simply for economic, social, or political capital is a criticism shared by both the left and right).[53] I will focus on this worry more in Chapter IV when I examine the way that attempts to redress past injustice might inadvertently harm the original victims.

5. The Case for the Interpretive Dimensions

Just because the interpretive dimensions may miss the mark in particular instances does not mean they are all bad. In this section, I will lay out some reasons why the interpretive dimensions should be of greater concern. I will not answer each of the objections I have laid out. Instead, I want to advance a few theses.

1. **Synergy:** The success of cash payments might ultimately depend on the success of the interpretive dimensions. Whether cash payments for past injustice succeed will depend in no small part on the way that members of society understand their meaning. I mean this both for their likelihood of being implemented at all and whether they will achieve their purpose when they are enacted. Joan Wallach Scott writes that "reparations … is less a

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[52] Greeley et al., "Repairing Symbolic Reparations."

[53] Horn. *People Love Dead Jews*, 26-27.

literal demand for financial repayment of debt (though for some it surely also is that) than it is a defiant rereading of the history of the United States." Accordingly, "for Americans, the hardest part of paying reparations would not be the outlay of money. It would be acknowledging that their most cherished myth was not real."[54] How Americans understand the myth will shape how they understand money paid. Furthermore, agreement on the interpretive dimensions can be a gateway to an agreement on cash payments. This is straightforward. Persuading people to make payments is easier when members of society have come to believe that supporting measures to enact racial justice is called for because it is part of the national narrative to redress the legacy of slavery.

2. **Interpretive Harms:** Sometimes interpretive harms require interpretive solutions. There are aspects of a past injustice that might seem to be inadequately measured in solely financial recompense and instead must also be tackled by an interpretive element. Again, recall Hartman's statement that "The irreparable violence of the Atlantic slave trade resides precisely in all the stories that we cannot know and that will never be recovered." To put this concretely, consider the example of cemeteries of the enslaved. Around the country, tens of thousands of burial sites of the enslaved have been neglected, looted, and destroyed because the country has not prioritized their preservation. Whereas Confederate cemeteries have received government funding for over 100 years for their preservation, there has been no similar amount of attention to the graves of those

[54] Scott, *On the Judgment of History*, 73-74.

enslaved in Confederate states.[55] To rectify this injustice certainly requires a lot of money, but it is hard to see how this injustice can be conceptualized in the traditional way that reparations have been thought of. When one accounts for the harm that results from the lack of care and respect given to these burial sites in an interpretive rather than a merely juridical way, it seems easier to imagine how the discrepancy might become an urgent problem for a wider swath of Americans.

3. **Harmed Groups**: Considering the interpretive dimensions expands and transforms the nature of groups considered for redress. Conservative critics of reparations sometimes worry that paying reparations to descendants of enslaved persons in the U.S. would open the door for other wronged groups to seek payment. I think that considering the interpretive dimension would give a way to open the door for a more holistic consideration of past injustice. Consideration of the interpretive dimension might create an avenue for more nuance, for example, when considering the differential experience of subsets of groups (e.g., black women). It could also open up more thinking about historical injustice against women as a whole, whom Simone de Beauvoir describes as "heirs to a weighty past."[56] The same goes for the oppression of LGBTQ+ members of society, those with disabilities, or other groups as well. Different identity groups that have faced oppression will require different responses, and consideration of the

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[55] Palmer, "For the Forgotten African-American Dead."

[56] Beauvoir, *The Second Sex*, 2.

interpretive dimensions allows this to be done with more specificity. While not every case may lead to cash payments, perhaps every group's history should be something that is included in individual and national narratives and thus addressed in an interpretive way.

4. **The Place of the Dead:** One cannot pay money to the dead, but there are other ways in which the living can relate to the dead through interpretive dimensions that might be important. I believe the focus on the redemption of the dead points us to an under-analyzed element of the debate about historical injustice. One recurring issue is whether considerations of justice should be forward-looking or backward-looking.[57] Forward-looking views ask how to achieve the desired distribution given circumstances at present; past considerations—whether a given distribution was arrived at justly, for example—do not add anything to the calculation. Backward-looking theories, on the other hand, take into account the historical causes of current distributions in deciding what distributions there should be in the future. My approach, based on a reading of Benjamin and Hartman, is unorthodox in that it represents an even more drastic sense in which a theory of justice might be backward-looking: a theory might be concerned not just with the historical roots of contemporary problems but rather with doing something for the past actors and, especially, past victims themselves. This avoids some of the problems familiar to normal backward-looking accounts like the non-identity problem and proximate cause. Very few

[57] Kennedy, Brooks, and David, "A Conversation on Reparations"; Nozick, *Anarchy, State, and Utopia*.

people would dispute the original victims are deserving of something … if the fact that they are dead could be overcome. I will return to this in the following two chapters.

5. **Religious Views**: The interpretive dimension is where there is potentially the most chance for dialogue with religious traditions. I do not think it is an accident that some of the most prominent organizations engaged in work on historical injustice are religious organizations. As I have indicated, many religious principles such as sin, repentance, love, and redemption are involved in the interpretive dimensions. Mobilizing these concepts in the service of redressing past wrongdoing is an important way of connecting with ideas held by more conservative members of society. Emphasizing the interpretive dimensions of redressing past injustice is a way to do this.

6. Instagram Socialism

Derek Thompson has argued that the concentration of left-leaning, extremely online, young individuals in coastal cities has resulted in a brand of politics he calls "Instagram socialism":

> Instagram socialism usually functions as a crowd-sourcing exercise to brand widely appealing ideas in their most emotional and viral—and, therefore, most radical—fashion. Thus, major police reform (a popular idea) is branded "Abolish the Police" (an unpopular idea); a welcoming disposition toward immigrants (a popular idea) is blurred with calls for open borders (an unpopular idea); and universal health care (a popular idea) is folded into socialism (an unpopular idea).[58]

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[58] Thompson, "Why Big-City Dominance is a Problem for Democrats."

Thompson does not discuss reparations, but is something similar true about reparations politics? Certainly, that is what opponents of such measures say. Right now, there has been action taken on reparations programs in liberal pockets of the U.S. But it does not currently have mainstream American appeal, according to polling.[59]

Factoring in the interpretive dimension to redressing historical injustice makes reparations more demanding in one sense. (Recall Charles Krauthammer's wish for a one-time reparations payment that would put an end to all litigation of the past).[60] Instead, the interpretive dimension calls for more issues to be addressed. A remaking of the whole world, as Táíwò describes, is even called for. And yet, in another sense, the interpretive dimension makes working on the past more accessible because it does not put everything solely on the agenda of a national body such as Congress to deliver. My hope with this chapter is that in achieving a better degree of conceptual clarity and avoiding the pitfalls of the material vs. symbolic dichotomy, one might develop a greater sense of the possibilities of doing one's part in the larger effort to, in Moore's words, "help this long overdue and just effort to erase the blot and stigma from the unfortunate past of America's history."[61] Almost all of the actions I have detailed under the heading of "interpretive" have been and are being pursued with vigor in the U.S. It is important for those writing about historical injustice to update their conceptual categories accordingly.

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[59] Cornish, Mehta, and Hale, "Recent Polling Data Shows Why Nearly 2/3 Of Americans Oppose Cash Reparations."

[60] Krauthammer, "A Grand Compromise."

[61] Moore, *Why Reparations*, 4.

Furthermore, taking into account this broader understanding of redress will legitimate the goal of subsequent chapters of devising ways to affect the dead involved in historical injustice. This is especially true when it comes to thinking about how one might address past perpetrators. While it is accepted that one might benefit the descendants of victims as a way to improve the standing of the original victims, it is not clear whether punishing descendants of perpetrators will fulfill an analogous effect, and it is sure to be met with controversy. Furthermore, focusing simply on "atoning" for the dead has significant conceptual[62] and practical challenges.[63] Considering the interpretive dimension will introduce alternative strategies for attending to the status of past perpetrators.

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[62] Storey, "Deconstructing Political Apologies."

[63] Brooks, *When Sorry Isn't Enough*.

Chapter III: Can the Living Help the Dead?

1. The "Wicked Doctrine"

W. H. Auden concluded his poem "Spain" about the country's civil war with the lines "History to the defeated/May say Alas but cannot help nor pardon."[1] Years later, he disowned the ending: "It would have been bad enough if I had ever held this wicked doctrine, but that I should have stated it simply because it sounded to me rhetorically effective is quite inexcusable."[2] By holding history's judgments to be definitive, he said, his error was "to equate goodness with success."

What would it mean, contra Auden's original assertion in "Spain," that history may help the dead? Is it not too late? In this chapter, I argue that it is not too late to help the dead, but nor, as I will explain in Chapter IV, is it unproblematic. To develop a theory of posthumous help, I will first turn to the work of Walter Benjamin. Benjamin's 1940 essay "Theses on the Philosophy of History" has been particularly fruitful for scholars and activists interested in historical injustice.[3] Indeed, "our contemporary sense of the past as a site in need of a rescue mission can be traced to Walter Benjamin," writes Jesse McCarthy.[4] But, as McCarthy notes,

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[1] Auden, "Spain"

[2] Shenker, "W. H. Auden Dies in Vienna."

[3] Torpey, *Making Whole What Has Been Smashed*; Scott, *On the Judgment of History*; David, "Extraordinary Justice."

[4] McCarthy, *Who Will Pay Reparations on My Soul?*, 41.

those who have been eager to share Benjamin's diagnosis have not generally followed him in exploring the "rescue mission" he proposes. Benjamin wrote at a time before many current approaches to the Guilted Age became widely adopted. Accordingly, he was not a theorist of reparations. His approach may cause people to think differently about a topic for which many writers theorize with an eye toward a predetermined solution. And unlike many contemporary accounts of redress, particularly liberal ones, Benjamin gives a picture where redressing past wrongdoing is not just another component of justice among many but potentially the guiding mission in one's life, a mission that Benjamin thinks is tied up with the central drama of the cosmos itself.

In this chapter I will first lay out an account of how it may be possible to help the dead, drawing on suggestions from Benjamin as well as several contemporary authors (Section 2). My approach differs from prominent accounts in the grief studies and historical injustice literatures because it focuses on how to alter the *meaning* of past lives as opposed to fulfilling the wishes of those now deceased or promoting their welfare. I will then examine three ways in which Benjamin suggests such a change in meaning can come about: through recognition, through writing alternative history, and through political action. Then, I will examine a few concerns with weak messianic power (Section 3). Subsequently, I will canvas Benjamin's thoughts about who amongst the living should help the dead (Section 4). Next, I ask whether what I have established regarding Benjamin's thoughts on helping deceased victims of injustice could also apply to past perpetrators (Section 5). Finally, I will consider in what way messianic power can be described as "weak" (Section 6).

2. Why the Dead May Not Really Be Dead

In her obituary of Auden, Hannah Arendt writes that she thinks Auden really did initially believe the "wicked doctrine" because "this was the doctrine everybody believed in during the twenties and thirties." According to Arendt, "The Hitler-Stalin pact was the turning point for the left; now one had to give up all belief in history as the ultimate judge of human affairs." One exception to this was Benjamin, who had always taken issue with this doctrine of history as a judge. He had criticized this kind of theory of history as early as 1914,[5] but the news of the pact and surrounding capitulations to Hitler caused him to develop his misgivings into one of the most prominent twentieth-century attacks on the doctrine of historical progress.

One can see the "Theses" as the culmination of his philosophy of history; he wrote (perhaps ominously) that the "Theses" were "dearer to me than life itself."[6] Benjamin aimed his essay at historical positivism in a number of its forms: 1) the view of historicists like Ranke who aim to see the past "the way it really was" and for whom history was (in Traverso's words) "a closed continent, a definitively finished process,"[7] 2) the doctrine of progress that prevented people from contemplating the catastrophe of history because they were expecting the future to produce better outcomes—Lowy notes that "Here one thinks especially of Hegel's theodicy, in

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[5] Mosès, *The Angel of History*.

[6] Jennings, *Dialectical Images*, 46.

[7] Traverso, *Left-Wing Melancholia*, 222.

which every ruin is necessary for the triumphal march of reason,"[8] and finally 3) vulgar Marxism, which became too docile and too self-assured because it believed it was moving with the current of history and therefore that victory was guaranteed.[9]

The key claim I want to investigate occurs at the beginning of the essay. Before examining it, a note about my approach to Benjamin's text is necessary. Two reasons why scholars have not focused much on Benjamin's "rescue mission," are that he gives few specifics and is quite hard to pin down. Adorno wrote that Benjamin "hardly ever showed his own cards."[10] Furthermore, the "Theses" were not intended for publication because Benjamin believed "that would throw wide open the doors to enthusiastic incomprehension.."[11] (This contrasts with his friend Bertolt Brecht who hung a sign on the neck of a wooden donkey in his windowsill that said "Even I must understand it.").[12] And Lowy writes that "any attempt at systematizing [the "Theses'"] mode of 'thinking poetically' (Hannah Arendt) is, then, problematical and uncertain."[13] Perhaps influenced by such warnings, many commentators on

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[8] Lowy, *Fire Alarm*, 64.

[9] Lowy, *Fire Alarm*, 85.

[10] Eiland and Jennings, *Walter Benjamin*, 4.

[11] Lowy, *Fire Alarm*, 17.

[12] Eiland and Jennings, *Walter Benjamin*, 452.

[13] Lowy, *Fire Alarm*, 4.

Benjamin simply rely on direct quotations. While this preserves Benjamin's enigmatic style, it leaves unaddressed some of the conceptual difficulties his work raises. In the present work, at the risk of "enthusiastic incomprehension," I want to try to spell out in a (hopefully) digestible fashion how Benjamin might inform practice today, noting the difficulties where they arise. I rely less on the text "speaking for itself" than on questions one might ask about it as well as their relation to the insights of more recent scholars. I do not aspire to be a part of what Susan Buck-Morss calls the "Benjamin cult" but am simply interested in how his vision can enhance the current conversation about past wrongdoing.

In Thesis II, Benjamin writes: "Like every generation that preceded us, we have been endowed with a weak Messianic power."[14] This power, he explains in the next thesis, prevents the finality of suffering because "nothing that has ever happened should be regarded as lost for history."[15] And in Thesis IV he continues by speaking of a "retroactive force" that "will constantly call in question every victory, past and present, of the rulers."[16] My aim in what follows is to explicate what "weak messianic power" is and how it is possible to retroactively do work on the past.

This postulation of weak messianic power has both continuity and discontinuity with the doctrine of progress it is meant to replace. Both the doctrine of progress and the doctrine of weak

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[14] Benjamin, *Illuminations*, 197.

[15] Benjamin, 197.

[16] Benjamin, 198.

messianic power involve an appeal to posterity. Diderot had exclaimed "Oh holy and sacred Posterity! Support of the unhappy who are oppressed, you who are just and who are not corrupted, who avenges the virtuous, unmasks the hypocrite, and tames the tyrant; sure and consoling idea, never abandon me! Posterity for the philosopher is the other world of the religious man."[17] While it looks like Diderot's wish could be fulfilled by either a progressive author or by the Benjaminian historian, there are two important differences. Firstly, for Diderot posterity was an inevitable witness whereas the posterity that Benjamin believes can save the past is contingent and relies on people in the future working "against the grain." Secondly, Diderot needed the future for the future's ability to correct the false judgment of the present. What posterity delivers chiefly is justice. As I will discuss later, for Benjamin, there is this component as well, but also an element of interpersonal connection. It is not just that justice is rendered but that the past and present enter into community with one another.

The first reaction readers are likely to have to the doctrine of retroactive effect is, to quote Michael Rosen: "How could 'Posterity' ever 'do' anything?"[18] Is it not the case that, as Horkheimer famously insisted to Benjamin in 1937, "The dead really are dead"?[19] Communicating with the dead might perhaps strike modern readers as the stuff of fantasy or science fiction.

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[17] Quoted in Rosen, *The Shadow of God*, 14.

[18] Rosen, 14.

[19] Lowy, *Fire Alarm*, 31.

The ontological status of the past—and in particular what it means to say that the past is "present" in the present, or vice versa—is a deep and complicated one, as David Armitage has discussed.[20] Many interested in historical injustice dismiss the idea of action on the dead from the start because of their views on this. I will not present a full refutation here of the idea that dead people simply have no purchase on the living when they are dead, whether they are simply figments of the mind of the living or any other deflationary accounts. (In case it interests the reader, I believe my view about the ontological status of the dead can be summarized in the view expressed in Kurt Vonnegut's *Slaughterhouse-Five*: "All moments, past, present, and future, always have existed, always will exist." One can "look at all the different moments just the way we can look at a stretch of the Rocky Mountains.")[21] While, as Armitage notes, many who object to presentism in history do so precisely because they believe in duties to the dead, I hope to show how one can embrace a form of presentism precisely out of regard for duties to the dead.[22]

My discussion is only initiated by those who object to the dead being harmed. Posthumous action is the premise of the whole conversation. I could simply say in response that "the dead are really dead," but I think the reply is much more persuasive when one continues with the premise that they are not, strictly speaking.

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[20] Armitage, "In Defense of Presentism."

[21] Vonnegut. *Slaughterhouse Five*, 34.

[22] Armitage, "In Defense of Presentism," 79.

There is a rich tradition, which Benjamin is a part of, of insisting that the dead are not really dead. Examples of ways in which living people do things that speak of a connection with the dead include fulfilling deathbed promises, building memorials, not spreading lies about the dead, and posthumous pardons.

One contemporary source of the idea that it is possible for the living to connect with the dead is the discipline of grief studies. According to this literature, grief resolution "involves maintaining healthy bonds between the living and the dead."[23] Tom Attig writes that "our lives can be shaped at least in part by feelings of responsibility to the deceased or to the commitments that we shared and undertook with them''.[24] Similarly, Josie Fisher develops an interest-based theory whereby "the dead can be harmed by having their interests thwarted and, conversely, they can be benefited by having their interests promoted."[25] The obvious objection to this view is that the dead cannot *experience* anything. This has led some to argue that there is a metaphysical problem in claiming the dead can be harmed or benefited by having their interests violated posthumously. Fisher gets around this by noting that it is still possible to harm living persons without them being aware of it. Experience of a harm is not a prerequisite to harm. "When the same kind of action affects the interests of someone who no longer exists, that the person is dead

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[23] Fisher, "Harming and Benefiting the Dead," 567.

[24] Fisher, 567–68.

[25] Fisher, 558.

cannot be relevant."[26] This echoes Aristotle's idea that "both evil and good are thought to exist for a dead man, as much as for one who is alive but not aware of them."[27]

Fisher's paradigmatic case is the organ donor:

> Ingrid feels very strongly about becoming an organ donor and she has made it known to her parents that if the situation arises she wants to donate her organs. Her parents agree to ensure her wishes will be followed. Ingrid is killed in a motor vehicle accident and her parents refuse consent for organ donation thereby thwarting her interest. Ingrid has been harmed by her parents' actions because she had an interest antemortem that continues to exert a claim after her death that her parents have thwarted posthumously. If, on the other hand, Ingrid's parents had ensured her interest in becoming an organ donor was fulfilled, she would have been benefited by her parents' action.[28]

Zofia Stemplowska's analysis of what she calls "symbolic reparations" goes a step further. (Stemplowska, recalling the discussion of Chapter 2, presents "symbolic reparations" as a kind of back-up option to material redress, though she goes on to say she thinks it is not "merely symbolic"). In a footnote, she explains that "We affirm the moral status of a person when we guide or are prepared to guide our actions because the people are sources or repositories of value."[29] While Stemplowska thinks one respects their value by fulfilling their

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[26] Fisher, 560.

[27] Aristotle, *Complete Works of Aristotle,* 1738.

[28] Fisher, "Harming and Benefiting the Dead," 562–63.

[29] Stemplowska, "Duties to the Dead" fn. 6.

wishes, similar to the Fischer account, I think her account goes beyond that in the way that it is about the person, not just their capacity for having interests, that it is important. Attending to the dead because the person is valuable in themselves is another way of saying that the dead "matter" to us.

Michael Ridge broadens the scope of what we can do for the dead to include benefiting their general welfare, not just fulfilling specific interests. He puts forth this proposal in the context of advocating for a scheme of reparations. Wishing to avoid the non-identity problem and the problems with inheritance accounts that affect proposals to pay reparations to *descendants* of original victims, Ridge proposes instead a theory of redress that works through the *original* victims. He summarizes his argument:

> The main ideas here are (i) that duties of reparation require us to benefit the victims of our injustices, (ii) we can benefit the dead by promoting the satisfaction of their desires, and (iii) most people strongly desire that their descendants flourish. So, if a collective agent (like the United States) owes a duty of reparation to the dead victims of a historical injustice (like slavery), then the collective could provide reparations by benefiting the descendants (through programs like affirmative action).[30]

Putting the arguments of Fisher and Ridge together, we might consider that approaches to helping the dead might focus on fulfilling specific interests that the dead held in life or trying to benefit them by increasing their well-being post-mortem (even when the dead did not specifically authorize an increase in their welfare). An action might achieve both goals, such as when a child finishes writing a book that a parent wanted them to continue working on after the parent's death. (This kind of act is the focus of Samuel Scheffler's argument about the important

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[30] Ridge, "Giving the Dead Their Due," 42.

of the afterlife).[31] One might benefit a deceased person without their fulfilling an interest, for example, when one publishes to great acclaim the work of a friend who wanted you to burn their book. One can imagine fulfilling an interest of the deceased that one thinks might have no benefit to them, such as when one fulfills an unusual request. Imagine, for example, that your friend was an astronomy enthusiast and wanted their ashes sent to space. Doing so would fulfill their wish, but one would not consider it beneficial for them. Finally, one might perform actions that are not interests the dead had in life nor benefit them.

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[31] Scheffler, *Death and the Afterlife*.

	Benefit	No Benefit
In Their Interest	Finishing a parent's book	Sending ashes into space
Not In Their Interest	Not burning a manuscript	Burying a young child

The final category is most interesting to me. It is important to consider because many victims of historical injustice did not leave behind any discernible explicit wishes and might be dead for so long that conceivable ways to benefit them in the way Ridge has in mind are implausible. Furthermore, we will add an additional challenge by considering how it is possible to attend to the dead when there is a real conflict between the explicit interests or general welfare of the dead and what the living wants to do.

Before we get to the difficult case, however, let us consider simply the case where there is no interest or benefit possible. Rosen employs the label "humanism" to designate the idea that an action has to be good for a human being for it to be considered good. He rejects this idea by pointing to the case of burying a dead body.[32] Let us also suppose in this case the body is of someone very young so that they did not communicate to the living before death that they wanted to be buried. Rosen says one should treat the body with dignity even though doing so cannot be said to bestow any benefit upon them. Thus, there is such a thing as a duty without a beneficiary.

The power of Rosen's claim is that there is a sense that actions may be good by being performed, as it were, from a kind of cosmic perspective (what he calls "in the shadow of

[32] Rosen, *Dignity*, 129.

God.”)[33] I believe this is an important idea, and often I think about the charge to redress historical injustice as a way of trying to restore order to the cosmos. For those to whom the goodness and justice of the world are important, it might be intolerable to live in a universe in which injustice simply becomes forgotten and unaddressed. This “duties without beneficiaries” approach is one way in which one might understand how one can perform actions concerning the dead that do not directly fulfill their wishes or improve their lot.

However, I do not think this is the only way one should think about how one treats the dead. For one, the notion of duty might seem far too cold to capture the way that people relate to the dead. Usually, one’s relationship is related to feelings or grief, anger, guilt, and more. Rosen does not talk about how one’s duty to the body is any different if it is a family member or a stranger, a victim or a perpetrator. Therefore, to complement Rosen’s argument, I want to put forward a view that conceives of individuals not as monads but rather as agents enmeshed in a web of meaning to explain how actions might indeed have a beneficiary, but not in the direct way that Ridge described.

To explain this, I will draw on a series of lectures given by Susan Wolf in 2007. Wolf argues that “throughout most of its history, moral philosophy has ignored the dimension of meaningfulness. Indeed, most philosophers have failed to notice it altogether.”[34] She defines it as

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[33] Rosen, 142.

[34] Wolf, *Meaning in Life and Why It Matters*, 35.

"an attribute lives can have that is not reducible to or subsumable under either happiness, as it is ordinarily understood, or morality."[35] Her examples are as follows:

> When I visit my brother in the hospital, or help my friend move, or stay up all night sewing my daughter a Halloween costume, I act neither for egoistic reasons nor for moral ones. I do not believe that it is better for me that I spend a depressing hour in a drab, cramped room, seeing my brother irritable and in pain, that I risk back injury trying to get my friend's sofa safely down two flights of stairs, or that I forego hours of much-wanted sleep to make sure that the wings will stand out at a good angle from the butterfly costume my daughter wants to wear in the next day's parade. But neither do I believe myself duty-bound to perform these acts or fool myself into thinking that by doing them I do what will be best for the world. I act neither out of self-interest nor out of duty or any other sort of impersonal or impartial reason.[36]

According to Wolf, these are acts of love. "According to the conception of meaningfulness I wish to propose, meaning arises from loving objects worthy of love and engaging with them in a positive way."[37]

Wolf notes that meaning has both a subjective and an objective element. The subjective element is that according to which "each person to find his or her passion and pursue[s] it."[38] The objective element is that meaning can be found by being part of something "larger than oneself."

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[35] Wolf, 3.

[36] Wolf, 4.

[37] Wolf, 8.

[38] Wolf, 13.

Wolf's teaching about meaning, and especially the component of finding something larger than oneself, is reminiscent of a quotation from the Coen Brothers' movie *A Serious Man*. In the movie, a rabbi eulogizes a victim of a car accident, Sy Ableman, and reflects on the idea of *L'olam ha-ba*, the world to come:

> *L'olam ha-ba*... is in the bosom of Abraham. *L'olam ha-ba* is in the soul of this community which nurtured Sy Ableman and to which Sy Ableman now returns. That's right, he returns. Because he still inspires us Ableman returns. Because his memory instructs us Ableman returns. Because his thoughts illuminate our days and ways Sy Ableman returns. The frivolous man may vanish without a ripple but Sy Ableman? Sy Ableman was a serious man...[39]

I believe that the idea of disappearing "without a ripple" helps illuminate Benjamin's view and that it is based on a similar conception of the human community as the eulogy just quoted. However, what I would add is that whether or not past persons disappear "without a ripple" depends not only on what they accomplished in their own life but also on what the living do to maintain the dead as part of their world. This is not to say that living people *make* the lives of the dead meaningful, or that *all* meaning is relational, but rather that meaning can be produced both for the living and for the dead through our engagement with their stories. That the dead do not "experience" this connection is something that is not important, as I have already discussed. And while Wolf primarily focuses on meaning coming from "projects of worth," I believe her ideas can be applied as well to instances of suffering that seem on the surface to be senseless. This discussion does not settle all the complicated questions that may arise concerning meaning. One could, for example, dispute that meaning is a vital part of human life like how Galen

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[39] Coen and Coen, *A Serious Man*.

Strawson argues that not everyone needs to live their life according to a sense of narrative.[40] At present, I will just take it as given that meaning is an important part of life.

I should note that this argument does not mean to prove that there is an obligation that all past lives should have a presence amongst the living. Just as Laura Valentini has argued that lack of social relationships amongst the living is only unjust when it is due to factors "that are irrelevant to one's being a good participant in social relationships," so too might one have concern in this respect only with those who have been excluded from the human community by being victims of historical injustice.[41]

If it is the case that the living can be part of the meaning-making process for the dead by weaving our own stories with theirs, it is also the case that the living can *alter* the meaning of the dead's lives through their actions. To explain this, it is helpful to turn to an argument by Robert Sparrow in the essay "History and Collective Responsibility." Sparrow starts with the premise that "the nature of current events is indeterminate and will only become clear with hindsight."[42] To judge our present efforts, we ought to consider how these events will look to people in the future. For instance, "whether or not a struggle for socialism today represents a brave attempt to keep the red flag flying, or a pathetic clinging to a failed ideology, depends at

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[40] Strawson, "Against Narrativity."

[41] Valentini, "What's Wrong with Being Lonely?"

[42] Sparrow, "History and Collective Responsibility," 346.

least in part on whether or not it succeeds sometime in the future."[43] So too, as regards the ethical determination of both our past and present actions and projects, we are always awaiting the judgment of history. He writes that this "should alter the way in which we perceive the present, and in particular its duration, so that past events become present for us."[44]

What does it mean for past events to become present for us? Sparrow explains that this process "draws our attention to the ways in which events at different points in a chronology relate and condition each other in determining the ethical character of each."[45] We know from experience that the way that history judges is generally not in isolated events. "Instead, we see patterns, periods, and series of events. We impose a structure on the past which unifies and relates its constituent elements. We group actions into trends, construct explanatory narratives, and postulate causal chains. We write histories of peoples, nations, religions, epochs, classes, or social mores."[46] In other words, events always appear against a backdrop. Therefore, if we are interested in thinking about how we will be seen, we ought to contemplate ourselves against our historical backdrop. "Knowing that we will be viewed in the context of our history forces us to

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[43] Sparrow, 346–47.

[44] Sparrow, 347.

[45] Sparrow, 345.

[46] Sparrow, 347.

consider ourselves in relation to that context, and doing so may alter our own perception of our current ethical circumstances."[47]

Sparrow, writing for an Australian audience, goes through a brief history of relations between the nation of Australia and the indigenous peoples on the continent. Using the judgment of the future as a guide "encourages us to see that the time in which we confront the question of the nature of race relations in Australia is not the fleeting gap between yesterday and tomorrow but a historical moment that extends to encompass the entire history of those relations."[48] He narrates a history from the original invasion and dispossession, the limiting of indigenous land rights, extermination, the denial of basic equality in citizenship, the denial of Aborigines' ability to determine their own identity, and then the deliberate destruction of language and culture. Sparrow's purpose is to argue for the continuity between present people and past perpetrators.

I want to use his insights to vindicate the belief that actions by the living alter the meaning of the dead. Because we are part of the same web of meaning as our forebears, our actions shape the ethical character of their actions and vice versa.

The focus on meaning is an improvement over the interest account of Fisher and the welfare account of Ridge for several reasons. First, as I have discussed, it is not always possible to discern what the interests of the dead are, especially people who left scant evidence (we will discuss this concerning Hartman below). The welfare account, as formulated by Ridge, is also

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[47] Sparrow, 354.

[48] Sparrow, 354.

limited because it works through descendants. Not every person in the past has descendants, and as Wheeler notes, one's interest in one's descendants generally fades over time.[49] An approach that focuses on meaning allows one to consider dead people about whom one knows little and who lived in the distant past as well as recently. It insists that though we may live in different societies from them, we are not part of a different world entirely. I am not saying that meaning is the most important thing about life, but only that it is among the important things and that it is something that can be attended to when other options are not available. By altering the meaning of the past through action in the present, I argue that we are wielding Benjamin's weak messianic power.

Now that I have sketched out a Benjamin-inspired understanding of the power the living have over the dead, let me return to Benjamin himself. First, I want to justify another interpretive choice I am making. Perhaps the most well-known interpretive problem of Benjamin's "Theses" is the question of the relationship between materialism and messianism introduced by Thesis I. Lowy lays out three schools of thought:[50] 1) that the essay is a materialist essay (espoused by commentators like Tiedemann), 2) that the essay is steeped in messianism (Scholem), and 3) that there is a contradiction between the two components of the essay (Habermas). Lowy proposes his own, fourth interpretation, shared by others such as Jennings, which is that Benjamin is *both* materialist and messianist.

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[49] Wheeler, "Reparations Reconstructed."

[50] Lowy, *Fire Alarm*, 21.

I want to pursue a fifth option. My interest here is to try to extricate Benjamin's theory of redemption from some of the baggage associated with *either* pole of messianism or materialism. Both ideologies can be conversation-stoppers in their own way, and I want to ensure that unsympathetic readers are not turned off at the start. I suggest the core of Benjamin's message can be preserved with or without strong intuitions about messianism and materialism. I fear Benjamin with either of those elements intact will forfeit his appeal. Instead of taking my cues from leftist politics or religion, I am following Richard Wolin in emphasizing his views on aesthetics that might be more ideologically palatable and, I would contend, philosophically plausible. [51]

While the key text for the mature articulation of Benjamin's theory of redemption is the "Theses on the Philosophy of History," the theme of redemption runs throughout his work. For Benjamin, the possibility of redemption began as a principle of art criticism. Jennings writes that Benjamin's "career might be said to represent the protracted attempt to articulate the manner in which literature in general and specific works in particular hold within them the key to man's understanding of the world and its history."[52] Eiland and Jennings demonstrate that already in his 1919 dissertation one finds "the assumption that all meaningful criticism intends the redemption of the work's 'truth content.'"[53]

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[51] Wolin, *Walter Benjamin*.

[52] Jennings, *Dialectical Images*, 4.

[53] Eiland and Jennings, *Walter Benjamin*, 108.

In his work as a critic, which he considered his highest calling, Benjamin placed "decisive importance" on the idea of a work's afterlife."[54] In particular, he believed that the meaning of a work of art was not fixed by the author but is something that is produced anew in each subsequent engagement with it. Eiland and Jennings note that "this renewal and transformation of the works' "life" is carried out by a set of readers".[55] It is also achieved through translations of works of art, something which Benjamin practiced, and which he thought could supersede the original works.[56]

The central insight, that the meaning of a work or a life is not fixed but rather depends on what happens after it, is what he would eventually transfer into the realm of politics. This doctrine of "retroactive effect" no longer makes historical time "appear irreversible."[57] Indeed, "what came after can modify what came before," Stéphane Mosès summarizes.[58] "Nothing is lost forever."[59]

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[54] Eiland and Jennings, 112.

[55] Eiland and Jennings, *Walter Benjamin*.

[56] Eiland and Jennings, 158.

[57] Mosès, *The Angel of History*, 121.

[58] Mosès, 122.

[59] Mosès, 125.

To be sure, in his early thought, Benjamin held the realm of art to be a special one for the pursuit of truths, a thought he attributed to Goethe.[60] Benjamin wrote in 1921 that "Truths … can be expressed neither systematically nor conceptually – much less with acts of knowledge – but only a work of art is the proper site of truth."[61] Redemption then meant both the redemption of particular works of art and of genres, as with the genre of the *Trauerspiel*. Through the Arcades project, however, Benjamin expanded this focus on redemption to the realm of history, attempting to redeem Paris of the nineteenth century by taking into his scope all its discarded elements.

Finally, at the end of his life, Benjamin expanded the scope of redemption even further to cover the whole human past. Benjamin writes that "remembrance can make the open-ended (happiness) into something concluded and the concluded (suffering) into something open-ended."[62] The past never abandons the present; it haunts the present and cannot be separated from it. The past remains with us and, consequently, can be reactivated. Again, nothing is definitively lost.[63] I emphasize that this process is a two-way street: the past conditions the present, and the present can infuse the past. Jeanne-Marie Gagnebin comments on "the concern to rescue the past in the present, thanks to the perception of a resemblance that transforms them

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[60] Eiland and Jennings, *Walter Benjamin*, 164.

[61] Eiland and Jennings, 119.

[62] Wolin, *Walter Benjamin*, xlix.

[63] Traverso, *Left-Wing Melancholia*, 222.

both: it transforms the past because the past takes on a new form, which could have disappeared into oblivion; it transforms the present because the present reveals itself as being the possible fulfillment of that earlier promised—a promise which could have been lost for all time, which can still be lost if it is not discovered and inscribed in the lineaments of the present."[64]

While it is true that the "Theses" do not pick up his discussion of art explicitly, my approach is to read his understanding of aesthetic redemption forward into them.

What action must one take to shift the meaning of past injustice in a salutary direction? As I have said before, Benjamin says little about practicalities. He wrote that asking about the where and when of redemption "poses questions to which there are no answers."[65] Still, we can try to discern a few things he could have meant. In my view, Benjamin indicates three general ways of redeeming the past: recognition, alternative history, and political action.

Recognition

The most basic kind of redemption that the present generation can give to the dead is through observation and understanding.[66] Benjamin writes in the "Theses" that "the true picture of the past flits by. The past can be seized only as an image which flashes up at the instant when it can be recognized and is never seen again."[67] Without this process of recognition and

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[64] Lowy, *Fire Alarm*, 41.

[65] Benjamin, *Illuminations*. Quoted in Eiland and Jennings, *Walter Benjamin*, 661.

[66] Rosen, *The Shadow of God*, 15.

[67] Benjamin, *Illuminations*, 198.

assimilation, Benjamin continues, the past is lost: "For every image of the past that is not recognized by the present as one of its own concerns threatens to disappear irretrievably." This kind of intergenerational politics of recognition is an idea that one finds in several authors at the time. For example, Horkheimer writes of Bergson that "Human consciousness alone can become the site where the injustice suffered can be abolished, the only agency that does not give up on it…"[68] This idea recalls the earlier writing of Guy de Maupassant, who wrote that "Our memory is a more perfect world than the universe: it gives back life to those who no longer exist."[69] This is a theodicy of sorts; past suffering is alchemized into the present in the form of understanding about the victimized subject. Past suffering is not "lost" to history; when we remember it and take something from it, that can be a source of consolation.

After Martin Luther King, Jr. was assassinated, Robert Kennedy wrote: "Even in our sleep, pain which cannot forget falls drop by drop upon the heart until, in our own despair, against our will, comes wisdom through the awful grace of God."[70] For Benjamin, however, it is not just God's grace but human activity as well that works to translate pain into wisdom. This is my first main takeaway from Benjamin's approach: redressing past wrongdoing contains within it a component of understanding and communion with the past. A situation where one harms another without learning from it will lead to situations where there is future harm, and that will make the original wounds fester. What is more, it will be doing a disservice to the original

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[68] Lowy, *Fire Alarm*, 31.

[69] Martine, *A Memory Called Empire*.

[70] Carpenter, "In Tragedy, Kennedy Quoted Aeschylus."

victims. If you take knowledge from their suffering, it changes the meaning of that suffering. It is no longer strictly speaking "in vain" in the same way. By contrast, history as written by the victors prevents the suffering of the victims from acquiring a meaning that can be learned from. The "awful grace" is preempted. Such an understanding of the relationship between the living and the dead can be said to be aesthetic because, as J.M. Coetzee and Arabella Kurtz discuss, it mimics the viewpoint of the reader of the novel whose ability to survey the entirety of the story gives them a power of judgment over the book to redress wrongs when they happen through their consciousness of their story as a whole.[71] It may be wondered when one is recognizing the dead whether one is trying to redeem the dead per se or merely their suffering. I believe the two are interrelated. Surely saying that the dead's suffering is important is a way of saying the dead themselves are important. However, views like Stemplowska's which only address the dead and not their suffering seem to me to be inadequate because it is by transforming the meaning of the dead's suffering that the living are most able to have a "purchase" on the dead. In Chapter VI, I will try to work out how this is possible through an understanding of "never again," which is specifically focused on redeeming the suffering of the dead.

Alternative History

However, if the first method of redemption is too nebulous to be satisfying, then the second is perhaps more familiar: redemption through writing alternative history. The "Theses" are repeatedly addressed to "chroniclers" and "historians" and contain a polemic on how history should be written, specifically, in a way that does not turn the documents and stories into tools of the ruling class. The main thrust is the hitherto historians have been historians of the victors,

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[71] Coetzee and Kurtz, *The Good Story*.

while Benjaminian historians should chronicle both the high and the low and document the dependency of culture upon barbarism. As Traverso notes, "a large current of Marxist historiography – from British "history from below" to Indian "subaltern studies" – has adopted this fruitful methodological approach."[72] In the next chapter, I will show how Hartman's approach extends Benjamin's insights and pushes the boundaries of what historians can do to relate to the dead.

Political Action

The final means of enacting redemption that Benjamin hints at is political action. The three things I have listed are interrelated. Recognition might spark a new way of seeing and writing the past which might spark new political action. But the processes may also be distinct. It should be said that Benjamin was always "somewhat skeptical of politics as a solution for human problems."[73] And he had a "policy of refraining from direct commentary on contemporary politics."[74] Benjamin himself was only politically active for a brief time as a young man from 1913-1914,[75] and he later claimed he did not join the Communist Party because he enjoyed traveling too much.[76] As Traverso writes, "It would be very difficult to imagine Benjamin

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[72] Traverso, 26.

[73] Wolin, *Walter Benjamin*, 13.

[74] Eiland and Jennings, *Walter Benjamin*, 526.

[75] Eiland and Jennings, 51.

[76] Eiland and Jennings, 273.

metamorphosed into an activist or a political leader."[77] This apolitical bent has led to accusations that he offers "Illusory consolation for real historical suffering."[78] Stemming from this, "[Benjamin] has become a kind of Che Guevara for a portion of the intelligentsia that feels it must talk the talk but cannot begin to imagine how to walk the walk." writes McCarthy, before pivoting: "The truth is that his writing is not hard to understand: it is hard to look at directly. It is undeniable that the intellectual culture of the present has come to relish that part of Benjamin's work without committing to, or taking seriously, his anarchist and messianic call for a revolutionary politics."[79]

I do not find his calls for revolutionary politics as clear or as unproblematic as McCarthy (or Lowy) claims. Benjamin did not 'walk the walk' himself. The one direct reference in his "Theses" to revolution used for redemption of the past is his allusion to the French revolutionaries invoking the memory of Rome in their rhetoric ("The French Revolution viewed itself as Rome reincarnate").[80] But did the French think they were helping the Romans who were oppressed or their own people? This would seem to make Benjamin like those who Marx ridicules in "The 18th Brumaire of Louis Bonaparte."

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[77] Traverso, *Left-Wing Melancholia*, 229.

[78] Wolin, *Walter Benjamin*, 182.

[79] McCarthy, *Who Will Pay Reparations on My Soul?*, 43.

[80] Benjamin, *Illuminations*, 205.

3. Concerns with Weak Messianic Power

Benjamin's proclamation that each generation has a messianic power will strike some as impious or even absurd. But giving humans a role to play in the drama of salvation is not an unprecedented move. Strands of the Jewish tradition speak of a collaboration between humans and divinity. Lowy notes that "according to Buber, for Hasidism God does not wish for redemption without the participation of human beings: the human generations have been granted a 'cooperative force,' (*mitwirkende Kraft*), an active messianic force."[81] A cooperationist religious view comes close to Benjamin's idea. What is distinctive for Benjamin is that this cooperative power is directed toward history, not just contemporary society in the way some liberal Jewish actors believe the cooperationist view today.

God is not required for this. One might think that because humans are too weak to redeem the past entirely, a divinity must perform the rest. Or one might think that we should just do our best—the whole of the universe is better than if we do nothing. Or we might be able one day to do better than we can do now. There are a lot of ways it could be interpreted. The important thing is that we do what we can in the present with the power that we do have for those in the past who have a claim on us.

Another reason one might think the dead do not need our redemption is if you believe the dead will be blessed in heaven after their death, so there is no need for extra redemption for their non-afterlife selves. So, perhaps Benjamin's account, rather than being God-optional, has to reject certain theological concepts. Indeed, this may explain the reluctance of people of certain theological views to subscribe to worldly action in pursuit of the redress of historical injustice.

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[81] Lowy, *Fire Alarm*, 122 fn 27.

At this point I want to consider an objection that would be fatal to the whole redemption enterprise: Why does the past need redemption at all? In German thought before Benjamin, figures like Kant held that we do not have a right to reward from God, only that justice requires that there be punishment.[82] It is in human freedom, not happiness, that the goodness of the world consists. Human freedom is its own kind of reward. What leads Kantians to religion is not the thought that good people deserve to be rewarded with happiness by a just God, but that there is something intolerable about a world in which the wicked go unpunished. So why is our task to help the dead, not simply to punish the oppressors?

I believe Rosen gives a good answer to this when he describes the "alienation of impersonality" problem regarding theodicy.[83] If one makes God too abstract, then one loses the interpersonal connection to the agent of justice. Victims become cut off from love. Redemption of the sort Benjamin describes restores that missing connection, allowing individuals to once again 'feel home' as part of the larger universe.

Finally, a worry might linger that nothing really can make the past "citable" in its entirety. Jennings argues that Benjamin does not believe there is a source of hope within the bounds of human history. He writes, "There is nothing in Benjamin's work that warrants reference to a *promesse de bonheur*, nothing that opens the door even a crack to the hope for

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[82] Kant, *Religion within the Limits of Reason Alone*.

[83] Rosen, *The Shadow of God*, 24.

worldly betterment."[84] Instead, change comes from without: "History can only be stopped or eliminated, not altered for the better"[85]. My interpretation is not so drastic. As Gordon writes, "radical hopelessness also serves as an opening for hope."[86] However, some like David Scott claim that repair is simply impossible.[87] Feldman likewise seems to argue that redemption is impossible.[88] Arguably, some might suggest our very attempts to redeem the past are insulting as they diminish the scope of what happened by trying to make it something positive. This would result in an aestheticization or banalization of catastrophe. It is an important challenge to face for anyone engaging in this kind of work, one that I will take up in subsequent chapters.

4. Who Should Help the Dead?

That it is possible to help the past is only the beginning. Just as in the debate over reparations, there is much discussion about who will pay and who can benefit, one might wonder as well about who the people are doing and being acted upon by this messianic work. In this section, I will consider specifically on whom the responsibility to help the dead falls.

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[84] Jennings, *Dialectical Images*, 61–62.

[85] Jennings, 81.

[86] Gordon, "Benjamin; or, The Ambivalence of Secularization," 39.

[87] Scott, "Preface: Evil Beyond Repair."

[88] Felman, *The Juridical Unconscious*.

In the discussion of reparations, there is much debate about who needs to pay. Depending on the account, the answer is the federal government, institutions that were once involved in unjust activity, or (not as often as opponents would think) contemporary citizens who benefited from or are in some other way connected to the original perpetrators. Another difference between Benjamin and, say, Ridge, is that for Ridge in many of these cases, the collective agents who performed the original injustices no longer exist, which provides another check on the potential proliferation of reparative duties. When the perpetrator of injustice no longer exists, there is nobody to whom a debt of reparations can be attributed. Benjamin does not believe this. Even in the absence of the collective agent who committed the wrong, the present generation must still try to redress the wrong done to victims.

For Benjamin, the question of who needs to do the redeeming looks much different. He was an "Enlightened critic of a world gone wrong."[89] the "Last European," insulated from self-accusations. Recall that he says the weak messianic power passes to *each* generation. This would seem to support a reading that it is the responsibility of *everyone* to engage in reparative acts.

An alternative to this (and to Benjamin's) account would be to say that there is a special responsibility for perpetrators to redeem the victims of their injustice. So non-Jewish Germans would be tasked with redeeming Jewish lives, and so forth. But such an account would simply be parasitic on the juridical model that Benjamin is eschewing.

If one accepts that everyone should be attempting to redeem, it does not give one much guidance on who should be redeeming particular evils. That is not a moral choice but one of

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[89] Eiland and Jennings, *Walter Benjamin*, 584.

practical wisdom. The downside, of course, is that it might be an extra burden on those who still live with the contemporary legacies of injustice. It sometimes seems in Benjamin like the oppressed class must take on the heaviest burden. Alternatively, at times his analysis might seem to lead to a situation in which each group simply decides to redeem its own victims and ignore those whom it has victimized. That would seem inadequate. But again, I think this is a practical concern, not a challenge to the theory as such.

Finally, I want to suggest that one way to think about Benjamin's theory of weak messianic power is to use a distinction Lon L. Fuller makes about the morality of duty vs. the morality of aspiration.[90] Summarizing Fuller's work, John E. Murray, Jr. writes:

> The morality of duty lays down the basic rules without which an ordered society is impossible. Essentially, its language is that of the Ten Commandments, "Thou shalt not." It condemns men for failing to respect the basic requirements of living in society. A failure to fulfill one or more of these requirements would be a wrongdoing. On the other hand, the morality of aspiration is the morality of excellence, of the fullest realization of human powers. A failure to realize one or more of these powers would not be wrongdoing, it would be a shortcoming or a failure to actualize potential.[91]

Apply this to Benjamin, one would not punish someone for failing to exercise one's weak messianic power, but one could certainly criticize them for a "failure to actualize potential."

5. Pardoning the Dead

Recall the end of Auden's poem that he later found wicked: "History to the defeated/May say Alas but cannot help nor pardon." Thus far I have been considering the possibility of helping the dead. But what of the living's ability to pardon? Or more generally, what might a

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[90] Fuller, *The Morality of Law*.

[91] Murray, "Introduction to the Morality of Law."

Benjaminian approach to the perpetrators look like? My full account of this will wait until Chapter V, but in what remains of this chapter I want to argue that it is not obvious that Benjamin would have foreclosed the question. To do so, I will discuss whom Benjamin thought it was possible to redeem. I believe there are three candidates for what Benjamin intended by the scope of those whom he thought weak messianic power could save: the few, the oppressed classes, and (potentially) all the dead. I will discuss them in turn and explain why I lean toward the latter view.

Helping the Few

Perhaps proof of weak messianic power is the "afterlife" of Benjamin himself. He has enjoyed a posthumous career that exceeds his own life. Whether this is (as has been suggested) because of the lingering guilt his friends felt over their failure to save him from the Nazis is not my concern. What would be concerning would be if his theory would enable us to redeem the Benjamins of the world but not others. Horkheimer remarked that "Benjamin is one of the few people whose intellectual power makes it imperative that we not allow them to sink."[92] If Benjamin's theory enabled us only to prevent the Benjamins from sinking, that would be unattractive.

Yet, at times it does seem that Benjamin is limiting his thoughts on redemption to a few people, to "the small skip or crack in the continuous catastrophe."[93] Again, what Benjamin chose to devote his work to does not help us understand the question of who ought to be redeemed. He

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[92] Eiland and Jennings, *Walter Benjamin*, 521.

[93] Habermas, Brewster, and Buchner, "Consciousness-Raising or Redemptive Criticism," 38.

wrote about Kafka, Baudelaire, and Goethe, not exactly the people we think of today as victims of historical injustice. Slavery, colonialism, patriarchy, and other modern issues to which his work is applied were not primary concerns of his.

Helping the Oppressed Classes

In other passages, he seems to give a privileged place to the proletarian class or oppressed class. However, I believe it is wrong to count only the defeat of, say, past socialist efforts as the object of redemption. In some cases, the aristocracy has been defeated and forgotten. One should not only single out victims who align with one's political allies. In many cases, indeed, it is not clear which group is the victim and which are the victors. Those who were victims in one case go on to victimize in the next. (This is not, however, always the case in all scenarios).

Helping All the Dead

So let us consider the broadest option. There is an equivocation in Benjamin's writings, and it centers on an interpretive question about *apokatastasis*, a concept that appears on occasion in his work. *Apokatastasis* can mean two different things.[94] The first is simply universal salvation. The second meaning of *apokatastasis*, however, is the return to an original time or "primal history."[95] Jennings favors the second interpretation, and while that may be more plausible as a reading of Benjamin (consider his use of Kraus's quotation "The origin is the goal" to open Thesis XIV), it seems less attractive as a matter of political theory. The reason I favor the universal meaning is that Benjamin writes in Thesis III that "nothing that has ever happened should be regarded as lost for history. To be sure, only a redeemed mankind receives the fullness

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[94] Lowy, *Fire Alarm*, 36.

[95] Eiland and Jennings, *Walter Benjamin*, 478.

of its past – which is to say, only for a redeemed mankind has its past become citable in all its moment." On one reading, making the past "citable" might entail working to ensure there are no past people who are treated simply as voids because of their crimes.

6. What is "Weak" about Weak Messianic Power

The downside of the expansive reading is that it means potentially redeeming, for example, even the worst Nazis or the cruelest enslavers. A Platonist (in the sense that one believes all acts of wrongdoing are simply the result of deficiencies in knowledge) may accept that, but it will not be palatable for many people. Yet, even if one takes the capacious view of *apokatastasis*, it does not mean that one needs to save everyone. In accounts that try to benefit the victims of past injustice, there is often a caveat put on the scope of who they are. For example, Ridge argues that the force of reparative duties to the dead diminishes over time because our ability to benefit the dead by benefiting their descendants diminishes over time. In Benjamin, there is a different stipulation, which we can see when we understand why the type of messianic power Benjamin espouses is "weak." A variety of interpretations have been given. According to Giorgio Agamben, it is because, like Christ, there is strength in weakness.[96] According to Wolin, it is because its success is anything but assured. A more straightforward view, in my opinion, is that it is weak simply because it is beyond the powers of each generation to remember and redeem all the past. There will be many who would seem to be lost to history. What of the person enslaved by the Hittites, to use a canonical example? What redemption is possible for them? Lowy writes that "so long as the sufferings of a single human being are

[96] Lowy, *Fire Alarm*, 33.

forgotten there can be no deliverance."[97] Because each generation on its own is not capable of redeeming the whole past, one has to hope that there will be others who come along later to finish the job, whether these others be human or divine. Thus, the weakness of messianic power necessitates it being a cooperative enterprise where each generation does its part. In the words of *Pirkei Avot* 2:16, "it is not your duty to finish the work, but neither are you at liberty to neglect it."

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[97] Lowy, 34.

Chapter IV: Harming the Dead

1. *Even the Dead*

At the end of a visit to Yad Vashem, Israel's Holocaust museum, one emerges out of the harrowing tunnel-like exhibit to a panoramic view of Jerusalem. According to the architects of the museum, recently updated in 2005, the layout is aimed at "metaphorically linking the Holocaust to the country's founding and spirit of optimism." The idea that one might connect past injustice to a contemporary political regime or movement is one way of interpreting Benjamin's work. (Recall his observation about the French Revolution and Rome). As I discussed in Chapter I, many political movements of the twentieth century understood their motivation in part to be connected to past injustice.

I believe however that attempting to enact redemption on such a comprehensive scale is a potentially fraught endeavor. Dwelling on the case of Israel for one moment—and leaving aside questions of the effects of the redemption narrative on contemporary actors or the historical question of just how much Zionism was motivated by the desire to redeem victims of the Holocaust—it is fair to wonder whether connecting the dead to such large-scale political projects is even good for the deceased victims themselves. At least four worries come to mind. 1) Does the State of Israel have a right to claim the victims of the Holocaust, even though not all victims were Zionists? 2) Can a large-scale political movement "redeem" the dead with enough precision to respect the particular injustices suffered by victims? 3) Is the redemption of the dead diminished if the redeeming actor commits injustices in the name of helping them? 4) Does tying redemption to a particular political state make the act of redemption vulnerable if something happens to the state?

For reasons such as these, I am interested in seeking avenues of redemption that are not as sweeping as those that tie redemption to a particular large-scale political movement. Instead, I look to venues such as history, the arts, or local politics as the key sites of redemption. But even in these venues, there are many ways in which redemption can go wrong. In this chapter, I will examine how living individuals can harm the dead, especially in smaller-scale settings.

To do this, I will turn to the work of Saidiya Hartman. Roughly a half-century after Benjamin, Hartman's writing on the "afterlife" of slavery has inspired a new wave of historians and political actors interested in how history can "attend[] to the dead."[1] She is currently a professor at Columbia University, and her work spans three major books—*Scenes of Subjection* (1997), *Lose Your Mother* (2007), and *Wayward Lives, Beautiful Experiments* (2019)—and a series of articles and interviews. In the previous chapter, I sketched out a Benjaminian theory of redemption; here I try to show how the work of Hartman offers an important supplement to Benjamin's account. I think it would be unfair to characterize Hartman's work as criticizing Benjamin because we do not know where he would have taken his ideas had he continued to live. Still, I think Hartman goes beyond Benjamin in important ways.

Benjamin's friend, Bertolt Brecht, published in 1935 the poem "Questions from a Worker Who Reads."[2] The poem consists of a series of queries about historical events such as "Who built Thebes of the 7 gates?/In the books you will read the names of kings./Did the kings haul up the lumps of rock ?" One aim of the poem seems to be to get the reader to focus on the fact that

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[1] Hartman, *Lose Your Mother*, 18.

[2] Brecht, "Questions from a Worker Who Reads."

many of the great achievements of history came on the backs of common people who go unmentioned in the history books. The poem concludes "Every page a victory. Who cooked the feast for the victors? Every 10 years a great man. Who paid the bill?/So many reports. So many questions." This poem is very much in line with Benjamin's "Theses" as I hope is clear to the reader. However, Brecht leaves these simply as questions. What subsequent historians like Hartman and many others have done is take these questions of Brecht and Benjamin and deliver very concrete answers through writing detailed history, as I have alluded to in the previous chapter. It is for this reason in particular that Hartman's contribution to Benjamin's project is very important.

Benjamin and Hartman have been treated in conversation in the past,[3] and there are likely to be more comparisons as the secondary literature around Hartman continues to grow. Hartman references Benjamin several times in her work.[4] For example, Hartman in multiple places expresses her desire to "brush history against the grain."[5] Her most extensive engagement is in the introduction to her first book *Scenes of Subjection*, where she quotes Benjamin's "Theses" several times without naming him (as if to suggest the reader does not need to be told where the lines come from). She ends the introduction with Benjamin's statement that "Only that historian

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[3] Valdez, Coleman, and Akbar, "Law, Police Violence, and Race"; McCarthy, *Who Will Pay Reparations on My Soul?*; Glick, "Progress Notes."

[4] Hartman, *Lose Your Mother*, 213.

[5] Hartman, *Wayward Lives, Beautiful Experiments*, 34; Hartman, *Scenes of Subjection*, 11.

will have the gift of fanning the spark of hope in the past who is firmly convinced that *even the dead* will not be safe if the enemy wins."[6]

I will focus in this chapter on how Hartman expands on this notion that the living can harm the dead. However, Hartman shares other key themes with Benjamin as well. She describes herself as a "historian of the multitude, the dispossessed, the subaltern, and the enslaved."[7] For example, she is interested in figures like Harriet Powell, who "has been credited with nothing: she remains a surplus woman of no significance, a nobody deemed unfit for history and destined to be a minor figure."[8] Like Benjamin, her interest in the past is professional and personal: "as both a professor conducting research on slavery and a descendent of the enslaved, I was desperate to reclaim the dead, that is, to reckon with the lives undone and obliterated in the making of human commodities."[9] Her work *Wayward Lives, Beautiful Experiments* arguably does for early twentieth-century black American city life something akin to what Benjamin envisioned with his Arcades Project. They are both concerned not just with the peak moments of

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[6] Hartman, Saidiya, *Scenes of Subjection*, 14.

[7] Hartman, *Wayward Lives, Beautiful Experiments*, xiii.

[8] Hartman, 225.

[9] Hartman, *Lose Your Mother*, 6.

history but history in its entirety and its everyday modes, what Hartman calls the "terror of the quotidian and mundane rather than the shocking spectacle."[10]

The shared starting point between Benjamin and Hartman—that the dead may be still harmed further by the living—echoes the original meaning of historical injustice that I discussed in Chapter I, namely that living individuals may commit "historical injustice" against the dead by the way they treat their memory and legacy. Before discussing her theory of harm, let me briefly note her perspective on helping the dead. As I have discussed, Benjamin refers to an act of helping the dead as "redemption." At times, Hartman is reticent to describe what she is interested in as "redemption," although she does use the term positively on occasion. In *Lose Your Mother*, reflecting on the rise of Pentecostals in Africa, Hartman wrote:

> What we shared was the wish to resurrect the dead. I wanted to redeem the enslaved and they wanted to give the repentant a new life. The congregants were steadfast in their belief, whereas I wavered and doubted. My pessimism was stronger than my longing. In my heart, I knew my losses were irreparable.[11]

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[10] Hartman, *Scenes of Subjection*, 4.

[11] Hartman, *Lose Your Mother*, 54.

Later in the same book, she writes that the past is "irredeemable,"[12] and in *Scenes of Subjection,* she writes that her aim is not to try to retrieve the past.[13] As I mentioned in Chapter I, the term "redemption" has baggage that Hartman perhaps might wish to avoid. One might instead use words like "help," "attend," or "care" to refer to what she wants to do to the dead. (Incidentally, the Swahili name "Saidiya" that Hartman chose for herself means "helper.") She also describes the process of writing as a kind of "love letter" to the past: "for decades I had been obsessed with anonymous figures and much of my intellectual labor devoted to reconstructing the experience of the unknown and retrieving minor lives from oblivion. It was my way of redressing the violence of history, crafting a love letter to all those who had been harmed, and, without my being fully aware of it, reckoning with the inevitable disappearance that awaited me."[14]

Whereas Benjamin's differences to many contemporary scholars of historical injustice can be attributed, at least partially, to the fact that he wrote just as the Guilted Age was emerging, Hartman's distance from traditional debates about historical injustice (both vis a vis American debates about reparations and European ones about working-through the past) is a deliberate choice. I quoted in Chapter II from her 2008 work *Lose Your Mother,* where she writes that she is "agnostic" about reparations partly because of the meaning inherent in the process. "I had grown weary of pleading our case and repeating our complaint. It seems to me that there is something innately servile about making an appeal to a deaf ear or praying for relief to an

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[12] Hartman, 233.

[13] Hartman, *Scenes of Subjection*, 75.

[14] Hartman, *Wayward Lives, Beautiful Experiments*, 31.

indifferent and hostile court or expecting remedy from a government unwilling even to acknowledge that slavery was a crime against humanity."[15] Three years prior, she participated in a group that called itself the Redress Project that produced a special issue of *Representation* entitled "Fugitive Justice." Hartman (along with Stephen Best) describes the project as follows:

> This is not a volume on reparations (on that discourse's structural account of slavery and certain knowledge of what the slave is); nor is it a volume on remembering and working through historical trauma. Rather, what this volume represents is the attempt to interrogate rigorously the kinds of political claims that can be mobilized on behalf of the slave (the stateless, the socially dead, and the disposable) in the political present.[16]

Rather than address questions such as "who owes what to whom?" Hartman and Best are more interested in examining the question of what ''cannot be fully restored.''[17] Hartman and Best propose to investigate questions such as "what is a slave?" "What is the time of slavery?" as well as:

> Why is the history of reparations for slavery, to paraphrase Robert Westley in this volume, a history of a nonevent, a history of events either too recent to deserve the name of history or events that reverse contemporary expectations about reparations? And extending from this last question, why is the appeal for redress one that seems always to arrive too late, and to be marked by a note of belatedness and insufficiency?[18]

Hartman's approach might be an interesting one for those who see a kind of deadlock in current conversations about redress, even for those who agree with the main lines of those arguments.

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[15] Hartman, *Lose Your Mother*, 166.

[16] Best and Hartman, "Fugitive Justice," 5.

[17] Best and Hartman, 8.

[18] Best and Hartman, 3–4.

Hartman is a theorist who is concerned not just with what should be done but also about why centuries-long efforts to redress the injustices of slavery have consistently been met with silence, bad faith, and willful ignorance.

Hartman is a clearer writer than Benjamin in some ways, and there is less secondary work on her at present, so that makes it more of a priority to let her words speak for themselves. However, her writing also presents several interpretive challenges. First, she writes using many different genres: textual analysis, personal narrative, philosophical account, and "critical fabulation," to which I will devote a section below. Negotiating between these genres requires some interpretive decisions to be made. Additionally, many of her most thought-provoking ideas take the form of questions, not arguments. It is not always clear what her answers to her questions are. In what follows, I will focus attention on her three main books as well as several key essays and interviews to understand how her analysis of the relations between the living to the dead might best be reconstructed.

One final point to note is the difference between Benjamin's and Hartman's attitudes toward their contemporaries. Benjamin was very concerned about his status among the critics of Europe and his approach to the quotation of others was often one of creative destruction. That is, he liked to take quotations out of context and repurpose them to create new meanings. Hartman, on the other hand, is much more self-conscious about creating a community of scholars around the afterlife of slavery and often uses quotations from others for that purpose. It is thus distorting to treat her work in isolation from contemporaries such as Stephanie M. H. Camp, Christina

Sharpe, Katherine McKittrick, Tiya Miles, and more.[19] I have not been able to capture that intertextuality in my analysis, but that is a task for a future project.

Before I discuss Hartman's views on harming the dead, I will return to a point I made in Chapter I about treating multiple cases under the umbrella of "historical injustice" by examining the way that responding to antisemitism and the Holocaust might be related to efforts to redress racism and slavery (Section 2). Next, I will detail several ways that Hartman thinks that contemporary historians err when they approach the dead (Section 3). Then, I will consider Hartman's method of "critical fabulation" used to write in awareness of such harms (Section 4). Finally, I will canvass the arguments that those who think contemporary redress measures harm past perpetrators might use in light of Hartman's insights (Section 5).

1. "Learning from the Germans"

As I have discussed, "historical injustice" can be used to describe a large number of disparate cases. My analysis in this dissertation has tended to draw from just two cases: the Holocaust, and particularly the Jewish response to it, and the Atlantic slave trade, particularly African American reflections on it. I am interested in these two cases primarily because they are arguably the primary reference points for how Americans now think about mass atrocity. Second, as I will mention below, their history shares some points of intersection. They both have a relationship—albeit a complicated one—to Judeo-Christian thought which will help connect with the concept of redemption. Finally, this comparison has arisen because I am treating two thinkers who have complementary ideas, one primarily interested in each case. (Though I do not

[19] Okeowo, "How Saidiya Hartman Retells the History of Black Life."

do this to make Benjamin or Hartman the sole spokespeople for people reflecting on these events).

A comparison between the afterlives of these two cases has been the subject of a large body of literature. [20] In focusing on these two cases I do not wish to diminish the importance of other historical injustices. I also wish not to overlook important differences between the two. Finally, I agree with Olúfẹmi O. Táíwò that injustices are global in scale, and so there are limitations in examining these issues with a focus on how nation-states react to their past.[21]

The history of the racial oppression of black Americans and anti-Semitism are deeply intertwined in some respects. In *Hitler's American Model*, James Q. Whitman shows that Hitler had praise for the U.S.'s mistreatment of its black citizens and that the Nuremberg Laws and other racist codes owed partial inspiration to the government-sanctioned racial oppression of black Americans.[22] At the same time, the rise of the Nazis changed how many in the U.S. thought about race. Americans began to see U.S. racial dynamics reflected in the Nazis' actions and vice versa. Historian Lawrence Reddick, for example, compared the treatment of black people in the South to "the most vehement outbursts against the Jews today."[23] Likewise, historian Arthur Schlessinger went on a trip through the South in 1942 and reported that it

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[20] Neiman, *Learning from the Germans*; McCarthy, "Vergangenheitsbewältigung in the USA."

[21] Táíwò, *Reconsidering Reparations*.

[22] Whitman, *Hitler's American Model*.

[23] Thomas, "Review of The Repressible Conflict, 1830-1861, by Avery Craven," 348.

seemed like the "literal truth" that black people "could not be worse treated by Hitler than they are by the southerners today."[24] Such comparisons also came to the forefront when many black Americans competed in Germany at the Olympics in 1936.

Actors and thinkers in the Civil Rights Movement used the Holocaust to attack white hypocrisy in condemning racism abroad while supporting it at home. And many Jews who undertook actions in solidarity with the Civil Rights Movement attributed their motivation to the need to respond to the evils of the Holocaust.[25]

The shared religious heritage of both Jewish and black thinkers has also been a source of productive interaction, with the most famous example being the influence of Martin Buber on Martin Luther King Jr.

But as Enzo Traverso has noted, the "Jewish modernity" that produced thinkers such as Buber is over.[26] Jews have become more and more indistinguishable from white liberals or white conservatives of other faiths. There is still a lot of bridge-building work between Jewish and black people (for example, *Jews and Blacks* by Cornel West and Michael Lerner),[27] but currently, relations are more precarious than ever, as recent events have made clear.

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[24] Schlesinger, "Letter to Parents," xxviii.

[25] Heschel, *Insecurity of Freedom*.

[26] Traverso, *The End of Jewish Modernity*.

[27] Lerner and West, *Jews and Blacks*.

Writing on historical injustice regarding the Holocaust and the Atlantic slave trade oscillates between universalism and exclusionism. That is, is each mass atrocity *sui generis* or does it express something larger about humankind? As David Scott has noted, many thinkers, especially Jewish ones, portray the Holocaust as the defining evil of the modern age, to the detriment of theorizing other acts of injustice.[28] Furthermore, when writers attempt to universalize the Holocaust, the result is not always successful. Emmanuel Levinas, for example, dedicated *Otherwise than Being* "To the memory of those who were closest among the six million assassinated by the National Socialists, and of the millions on millions of all confessions and all nations, victim of the same hatred of the other man, the same anti-Semitism."[29] Yet Paul Gilroy has argued that Levinas' conception of the "Other" is insufficient to understand what transpired in the Middle Passage.[30] On the other hand, some black thinkers insist that anti-black racism is in a category apart from injustices such as anti-Semitism. For example, Frank B. Wilderson III warns of the "ruse of analogy" that "mystifies, rather than clarifies" the relationship between black suffering and other forms of suffering.[31] His position has been compared ironically to far-right Jewish thinkers who weaponize the Holocaust and antisemitism

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[28] Scott, "Preface."

[29] Levinas, *Otherwise than Being.*

[30] Gilroy, "Vernacular Solidarity."

[31] Wilderson, *Afropessimism*.

as an essential category of human history for dubious political purposes.[32] Some thinkers are both black and Jewish and have commented on both cases. For example, Laurence Mordekhai Thomas rejects attempts to position one atrocity as more central than the other and instead argues they are both instances of radical evil but in importantly different ways.[33] The boundaries of who is considered Jewish and who is considered black have been subject to a large amount of debate as well. Benjamin's family was Jewish but his connection to the religion of Judaism was sometimes tenuous and filtered almost exclusively through his friend Gershom Scholem. Hartman, on the other hand, has Jewish ancestors.

All this is to say that comparing moral catastrophes is a fraught enterprise, but also one that can be productive on occasion. Susan Neiman has discussed the uses and abuse of historical analogy in *Learning from the Germans* in a helpful manner.[34] One thing that should be relatively uncontroversial is that Americans still show a kind of hypocrisy when it comes to the Holocaust in relation to the Atlantic slave trade. The point can be made by simply considering the way the events have been memorialized in the country. Though there exists no full record, there are likely far more monuments and museums dedicated to a crime the U.S. did not commit (the Holocaust) than there are for a crime the U.S. did commit (slavery). Likewise, there are far more monuments to the Confederacy than there are to the victims of enslavement and racial terror. The U.S. has failed to create a "memory culture" around racial injustice in the way that Germany has around

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[32] Sanchez, "Against Afro-Pessimism."

[33] Thomas, *Vessels of Evil*.

[34] Neiman, *Learning from the Germans*, 23–39.

antisemitism. I will just add to Neiman's analysis that, in addition to "learning from the Germans," white Americans, and especially white American Jews, can do more to learn from African American thought as well, myself included.

With all that said, the genre of this work is conceptual history and normative political theory. I do not include a detailed account of the historical injustices in question. This might give the impression of abstractness or distance from these crimes. I do not here practice the kind of writing about history that the main figures in this dissertation, Benjamin and Hartman, practice. When I focus on their work, I am most interested in their approach to historical writing and do not give as much attention to the particular histories that they narrate. There are legitimate criticisms to be made of this approach. My response would be that I view the current work as preparatory for the kind of writing I eventually want to do, not an endpoint.

3. The Precarity of Posterity

Turning to Hartman's work in detail, the major point I want to suggest it conveys is the precariousness of posterity's attempt to engage in the past. At times it seems as if Benjamin's historian is a heroic figure who stands apart from the corrupting influences of the present. For this reason, one might worry about the Benjaminian historian having a kind of savior complex concerning the dead. In 1946, a few months after the war, Karl Jaspers delivered the address "The Question of German Guilt" which asked in what way the German people were responsible for the murderous actions of the Third Reich.[35] Since then, the *Schuldfrage* has become a central part of the discussion around historical injustice. The sense that the historian might also be implicated in barbarism is less prominent in Benjamin. Hartman, on the other hand, details

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[35] Jaspers, *The Question of German Guilt*.

myriad ways in which the historian or other contemporary individual might risk damaging the dead even more. Below, I will consider a few of those ways:

Spectacle

First, there is the worry that the living might turn the injustices of the past into a spectacle. At the beginning of *Scenes of Subjection*, Hartman deliberately chooses not to reproduce Frederick Douglass' account of the beating of Aunt Hester because of the "precariousness of empathy" and the "uncertain line between witness and spectator."[36] For a similar reason, some historians are wary of showing reproductions of lynchings in public settings.

Later in the work, Hartman describes how John Rankin attempts to argue against the institution of slavery by imagining if he and his family were enslaved. Hartman notes that "empathy in important respects confounds Rankin's efforts to identify with the enslaved because in making the slave's suffering his own, Rankin begins to feel for himself rather than for those whom this exercise in imagination presumably is designed to reach."[37] Hartman encourages the reader to interrogate how one's imagination operates when one situates oneself in relation to a prior violent event while reading about or viewing it.

Dangers of the Archive

Second, the way that the living relate to the dead is necessarily filtered through a biased archive. A historian cannot write from a pristine position outside of the exercise of power

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[36] Hartman, *Scenes of Subjection*, 3.

[37] Hartman, 19.

because "This effort is enmeshed with the relations of power and dominance that it strives to write against; in this regard, it both resists and complies with the official narratives of slavery and freedom."[38] To give a concrete example, she notes that many of the accounts she draws on come from interviews by the Works Progress Administration, which means that all questions and answers are made in light of the power dynamics between the white interviewers and the black interviewees. Filtering such as this "make[s] quite tentative all claims … that would encourage us to believe that we have gained access to the voice of the subaltern and located the true history after all."[39] Therefore, she proceeds with "an acknowledgment of the interventionist role of the interpreter … and the impossibility of reconstituting the past free from the disfigurements of present concerns."[40]

Problematizing the Past

Third, another kind of worry is that the living can represent people in the past "as a problem."[41] She mentions that black people living in the cities in the early part of the twentieth-century U.S. were studied by sociologists, slum photographers, vice investigators, social workers, parole officers, psychiatrists, and psychologists. Such attention treats the subjects as mere statistics and cases. She refers to the way "the sociologists fixed their gaze on the worst

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[38] Hartman, 11.

[39] Hartman, 11.

[40] Hartman, 11.

[41] Hartman, *Wayward Lives, Beautiful Experiments*, xiv.

elements, *gleefully counting the prostitutes and the bastards*."[42] That said, it is not the case that simply trying to view people of the past in all of their humanity is the solution either. As she remarks, recognition of humanity might entail not redeeming suffering but rather intensifying it.[43]

"Opening the Casket"

Finally, by bringing up the lives of the dead in the present, the living can further expose them to damage. In "Venus in Two Acts," she writes (quoting *Lose Your Mother*):

> If 'to read the archive is to enter a mortuary; it permits one final viewing and allows for a last glimpse of persons about to disappear into the slave hold,' then to what end does one open the casket and look into the face of death? Why risk the contamination involved in restating the maledictions, obscenities, columns of losses and gains, and measures of value by which captive lives were inscribed and extinguished? Why subject the dead to new dangers and to a second order of violence?

Ultimately, Hartman's position is one of profound ambivalence. On the one hand, she remarks that she "had to be mindful not to do damage of my own."[44] On the other hand, she concedes that in her mission to "save" the dead from oblivion, "I am guilty as the rest."[45]

Discussing the choices black families had to make in the aftermath of slavery, Hartman asks: "was it better to withhold the stories and say nothing about what the world could do to

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[42] Hartman, 113.

[43] Hartman, *Scenes of Subjection*, 5.

[44] Hartman, *Wayward Lives, Beautiful Experiments*, 34.

[45] Hartman, *Lose Your Mother*, 136.

you?"[46] For some similar and some different reasons, some of which I have discussed above, the contemporary historian of the afterlife slavery and other atrocities has a dilemma.

To return to the theme of the previous section, the difficulties of writing about such topics differ depending on the historical case. Adorno famously wrote that there could be no poetry after Auschwitz, and many Jews have privileged survivor testimony as the most authentic documentation of the Nazi atrocities. With the Atlantic slave trade, there is a different dilemma. Hartman writes:

> Like most people willing to cross the threshold of a slave dungeon, I wanted to give the dead their due. But I was unsure how to accomplish this. The crush of empty space defeated any surety in the power of memory to deter future crimes. … In the dungeon, there were remains but no stories that could resurrect the dead except the stories I invented. No one imprisoned in the dungeon of Cape Coast Castle had ever described it. There was no record left behind by the captives who entered and exited the underground. Not a single account.[47]

Similarly, "There is not one extant autobiographical narrative of a female captive who survived the Middle Passage."[48]

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[46] Hartman, *Wayward Lives, Beautiful Experiments*, 101.

[47] Hartman, *Lose Your Mother*, 116.

[48] Hartman, 3.

Her reflections on her approach in *Lose Your Mother* prompted her to seek out a different way of writing history. Referring to an enslaved girl named Venus and those like her, Hartman writes: "Given the condition in which we find them, the only certainty is that we will lose them again, that they will expire or elude our grasp or collapse under the pressure of inquiry. This is the only fact about Venus of which we can be sure. So, is it possible to reiterate her name and to tell a story about degraded matter and dishonored life that doesn't delight and titillate, but instead ventures toward another mode of writing?"[49]

This "other mode of writing" tempts her to "fill in the gaps and to provide closure where there is none. To create a space for mourning where it is prohibited. To fabricate a witness to a death not much noticed."[50]

Hartman does not counsel against representations of the dead, but she says it should be done with extreme care. She continually grapples with the question of whether "the possibilities outweigh the dangers of looking (again)?" She writes:

> Usually, the injunction to remember insists that memory can prevent atrocity, redeem the dead, and cultivate an understanding of ourselves as both individuals and collective subjects. Yet, too often, the injunction to remember assumes the ease of grappling with terror, representing slavery's crime, and ably standing in the other's shoes. I am not proscribing representations of the Middle Passage, particularly since it is the absence of a public history of slavery rather than the saturation of representation that engenders these compulsive performances, but instead pointing to the danger of facile invocations of

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[49] Hartman, "Venus in Two Acts," 6–7.

[50] Hartman, 8.

> captivity, sound bites about the millions lost, and simulations of the past that substitute for critical engagement.[51]

4. Critical Fabulation

Despite all these difficulties, Hartman still finds it valuable to try to engage with history. At the conclusion of the introduction to *Scenes of Subjection*, Hartman states her support for the "political utility and ethical necessity of historical fiction."[52] To work against such dangers, Hartman herself uses a technique she refers to as "critical fabulation." She describes it as follows:

> By playing with and rearranging the basic elements of the story, by re-presenting the sequence of events in divergent stories and from contested points of view, I have attempted to jeopardize the status of the event, to displace the received or authorized account, and to imagine what might have happened or might have been said or might have been done. By throwing into crisis "what happened when" and by exploiting the "transparency of sources" as fictions of history, I wanted to make visible the production of disposable lives (in the Atlantic slave trade and, as well, in the discipline of history), to describe "the resistance of the object," if only by first imagining it, and to listen for the mutters and oaths and cries of the commodity.[53]

To carry out this method, a large amount of historical work is necessary. She says that her works constitute "a history written with and against the archive. Admittedly my own writing is unable to exceed the limits of the sayable dictated by the archive. It depends upon the legal records, surgeons' journals, ledgers, ship manifests, and captains' logs."[54] This reliance, she

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[51] Hartman, "The Time of Slavery," 774.

[52] Hartman, *Scenes of Subjection*, 14.

[53] Hartman, "Venus in Two Acts," 12.

[54] Hartman, 12.

continues, "means that her work falters before the archive's silence and reproduces its omissions."

Indeed, the archive becomes the subject of an attack. She speaks of "redressing the violence that produced numbers, ciphers, and fragments of discourse, which is as close as we come to a biography of the captive and the enslaved."[55] By taking issue with the archive, Hartman says she aims to "flout the realist illusion customary in the writing of history."[56]

Hartman's remedy for the "realist illusion" is to weave together "the fictive and the historical."[57] In *Wayward Lives, Beautiful Experiments,* she explains: "I have pressed at the limits of the case file and the document, speculated about what might have been, imagined the things whispered in dark bedrooms, and amplified moments of withholding, escape and possibility, moments when the vision and dreams of the wayward seemed possible."[58]

Writing of W.E.B. DuBois, she notes that "in a novel, he possessed the ability to transform a ruined girl who grew up in a brothel into a heroine, but achieving the same in a

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[55] Hartman, 3.

[56] Hartman, 12.

[57] Hartman, 12.

[58] Hartman, *Wayward Lives, Beautiful Experiments*, xiv–xv.

sociological study proved nearly impossible. Literature was better able to grapple with the role of chance in human action and to illuminate the possibility and the promise of the errant path."[59]

Critical fabulation, she writes, "required me to speculate, listen intently, read between the lines, attend to the disorder and mess of the archive, and to honor silence."[60] Hartman writes that she learned about this technique from the subjects she studied, learning *from* rather than just *about* the past. Her style of "close narration" puts "the voice of narrator and character in inseparable relation."[61] The figures she studied for the book made "living and art," and she tries to capture the "social *poiesis* that sustains the dispossessed."[62] For example, one subject of her writing was Esther Brown. Hartman explains that, while she lived without developing a formal credo or works of art, her way of life itself was poetic: "What she created was Esther Brown."[63]

One virtue of critical fabulation is that, by filling in the gaps, one can speak in a way that addresses those whose names are not even known by the living.[64] Individuals can serve as

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[59] Hartman, 93.

[60] Hartman, 34.

[61] Hartman, xiii.

[62] Hartman, 227.

[63] Hartman, 235.

[64] Hartman, 15.

synecdoche. In *Wayward Lives, Beautiful* Experiments, Hartman also achieves this through the device of the chorus:

> "The chorus is the vehicle for another kind of story, not of the great man or the tragic hero, but one in which all modalities play a part, where the headless group incites change, where mutual aid provides the resource for collective action, not leader and mass, where the untranslatable songs and seeming nonsense make good the promise of revolution. The chorus propels transformation. It is an incubator of possibility, an assembly sustaining dreams of the otherwise. *Somewhere down the line, the numbers increase, the tribe increases.* The chorus increases. *So how do you keep on?* She can't help it … *The struggle is eternal. Somebody else carries on.*[65]

Next, as important as what the historian writes is what they do not write. "Narrative restraint, the refusal to fill in the gaps and provide closure, is a requirement of this method, as is the imperative to respect black noise—the shrieks, the moans, the nonsense, and the opacity, which are always in excess of legibility and of the law and which hint at and embody aspirations that are wildly utopian, derelict to capitalism, and antithetical to its attendant discourse of Man."[66]

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[65] Hartman, 348.

[66] Hartman, "Venus in Two Acts," 12.

What in sum can be accomplished through critical fabulation? One thing is that it can "bring the past closer."[67] In "Venus in Two Acts," Hartman writes that "If this story of Venus has any value at all it is in illuminating the way in which our age is tethered to hers." I have already noted the importance of intergenerational solidarity in creating meaning for the living and dead by being part of something larger than oneself. I think that is an achievement. Beyond that, however, Hartman has more questions than answers:

> Is it possible to construct a story from "the locus of impossible speech" or resurrect lives from the ruins? Can beauty provide an antidote to dishonor, and love a way to "exhume buried cries" and reanimate the dead?9 Or is narration its own gift and its own end, that is, all that is realizable when overcoming the past and redeeming the dead are not? And what do stories afford anyway? A way of living in the world in the aftermath of catastrophe and devastation? A home in the world for the mutilated and violated self?10 For whom—for us or for them?[68]

One question Hartman does not engage with directly in the works I have drawn from is the question of who should engage in critical fabulation. There is a large amount of current debate about the ethics of identity when it comes to producing art. Hartman is a black woman and writes primarily about black women. One of her most sustained reflections on how identity shapes the way one engages in research came following a 1994 conference on "Black Women and the Academy." I will quote it at length: "Ironically, the very call of the conference and the terms of its enunciation—black women in the academy—forced us to contend with the limits of our proper name and to remind us that the appeal to identity is always double-edged. For in the call to action issued by "black women in the academy" is both a rejection of the dominant and

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[67] Hartman, *Lose Your Mother*, 17.

[68] Hartman, "Venus in Two Acts," 3.

injurious ways in which black women are named, and an appeal to identity as a true and proper naming."

5. The Attack on History

Whereas I have argued that Benjamin's account can be construed to apply to the entire past, it is clear that Hartman is interested chiefly in those who have suffered injustice, not those who have perpetrated it. However, her analysis is important because she focuses more on harming the dead than Benjamin did, and it is precisely the charge that the dead are being harmed by redress efforts that I am trying to address in this dissertation. Therefore, in this section, I will canvas opponents of redress who rely on a harm claim and use her ideas to tentatively develop them. In the end, I will consider how her technique of critical fabulation might inform one's response to this.

I want to be clear that I do not think that the harm being alleged towards perpetrators is equivalent to the kinds of harm that Hartman is diagnosing, nor that the use of her analysis is only instrumental. It is simply that I believe she provides one of the most realized accounts of posthumous harm and therefore it is natural to pivot from there to my focus.

Claims that efforts to redress the past (such as removing monuments, renaming buildings, altering curricula, and so forth) harm the dead are ubiquitous. Below is a representative narrative that has become popular on the right. Robert Spencer, speaking with Barry Nussbaum, states:

> Well, history is written by the victors, Barry. So, it depends on who wins this impending new civil war that it looks like we're facing. The Left certainly understands the adage he who controls the past controls the present, and he who controls the present controls the future in a way that I don't think that patriots understand it. Consequently, they have been able to take control of the academic establishment virtually with an ironclad grip such that they have written all both academic and popular histories for Americans over the last few decades. They have raised a whole generation of Americans who believe that the Founding Fathers were essentially racist, slave-owning hate mongers, and imperialist colonialists. Not to be respected, not to be revered, certainly, and they have been taught

> to essentially hate their own country, hate their own history, their own heritage, and the end game is very clear. If you don't like America, you're not going to fight to defend it. If America is under attack, which can come in all kinds of forms, and I think that it's unarguable that America is under attack today, you're not going to work to try to preserve, protect and defend it. So, the war for history is all-important. People generally think of history as dates and memorizing things and dusty books and boring classes in school and so on. I hope that the last few months have awakened Americans to the fact that history is much more than that, and particularly the Left's full-out assault on our heritage, pulling down statues. First, they said they were just going to go after the racists, the confederates, and the slave owners. Then, just as President Trump predicted, they started to go after the Founding Fathers, Washington, Jefferson, and even abolitionists like Abraham Lincoln and Ulysses Grant, as well as Frederick Douglass himself. All had their statues pulled down a few months ago. It was clear that this is an attempt to ultimately destroy America and that it is all-important to fight back in this arena.[69]

It is important to note that Spencer's analysis has some Benjaminian themes. For example, the idea that history is written by the victors is reminiscent of his "Theses." Additionally, it accepts that the fight over the dead is an "all-important" part of the fight over the living.

While I do not think that many making this point about the dead being under attack have a detailed account of what it actually means to harm the dead, I think returning to the categories from the Hartman analysis might be clarifying.

Spectacle

One of Hartman's insights is that when we look at the past, there is a question about where we place ourselves in the story, so to speak. One worry she had was that while witnessing an act of injustice we might 'join the crowd' of those enjoying the pain of the victim. Alternatively, by identifying ourselves too much with the victim, we might be committing another kind of error by misjudging the distance between us and them. Conservative critics of redress efforts argue that there is a similar problem of how living people enter into the scene

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[69] American Truth Project, "America's History Is Under Attack!"

when viewing the past. If living individuals properly entered the scene, they would not be as confident that they were on the right side of history and might have been on the side of the perpetrator. Therefore, they have no standing to try to contradict the dead.

Dangers of the Archive

Wilfred McClay writes that "One of the worst sins of the present—not just ours but any present—is its tendency to condescend toward the past, which is much easier to do when one does not trouble to know the full context of that past or try to grasp the nature of its challenges as they presented themselves at the time."[70] Not all of the context is available even in the case of individuals who left behind more documentation of their lives, so a full reckoning of their actions might still be difficult. Without a full context or full access to their thoughts, how can we truly judge?

Problematizing the Past

Many opponents of redress measures also allege that contemporary actors are treating the dead as "problems" or "problematic" rather than as persons. A lesson McClay would point towards is a kind of humility rather than judgmentalism. He wrote that one should read the past "with constructive intentions and a certain generosity that flows from the mature awareness that none of us is perfect and that we should therefore judge others as we would ourselves wish to be judged, blending justice with mercy." [71]

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[70] McClay, *Land of Hope*, xiv.

[71] McClay, xiv.

"Opening the Casket."

Another claim that is made on behalf of the dead perpetrators is that many of them were not causing any harm to the living and so attacking them is unnecessary. In this case, bringing their memory to life inflicts harm with no real benefit. Samuel Biagetti points to the case of Edward Hyde:

> Clarendon Elementary School had been named for Clarendon Avenue, on which it is situated, named in turn after a county in South Carolina, which in turn received its name from Edward Hyde, Earl of Clarendon, the Lord Chancellor to Charles II who, as the committee spreadsheet pointed out, was impeached in 1667 for violations of habeas corpus.[12] It is difficult to imagine how the indirect, three-step transferal of a proper name from a seventeenth-century earl to a San Francisco elementary school could possibly harm anybody, unless names whose origin nobody knows carry the hidden power, through some mysterious alchemy, to influence children in the direction of violating tenets of English constitutional law.[72]

The argument implies that for many historical figures, it is best just to leave them dead.

I hope this demonstrates that there are a variety of ways the living might be said to harm dead perpetrators, just as Hartman showed was possible for victims. In the next chapter, I will suggest that a kind of critical fabulation or way of narrating the lives of the dead perpetrators may help work against some of these objections. The dead perpetrators leave gaps just as the dead victims do, and I will argue that a kind of imaginative act might be key in showing why the former might be redeemed properly.

Finally, I want to remind the reader that there are other reasons to oppose redress measures other than that they harm the dead. One could make an argument, for example, about legitimate expectations of people who hold fast to past figures. There are responses to be made to such arguments—for example, that would not explain why there is more consternation when a

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[72] Dunn, "Iconoclasm of the Vanities."

name is changed for a political reason rather than an economic one—but it is beyond the scope of this dissertation to fully canvas the possibilities. What I hope to show in the next chapter, however, is that a proper understanding of what it means to help and harm the dead will create a challenge for these alternative arguments as well. At the same time, it will certainly be the case that some will undertake redress actions with indifference or even a spirit of animosity towards the dead rather than interest in redemption. I do not wish to say these approaches are wrong. I am simply saying that my position is also a possible one to have.

Chapter V: Are Perpetrators of Past Injustice Redeemable?

1. History vs. Justice

In this chapter, I reach the central question of this dissertation: how should societies approach issues surrounding past perpetrators of injustice, particularly those who occupy prominent public spaces? The debate is often cast as a contest between the demands of history and the demands of justice. In this chapter, I argue that this view is incorrect. Instead, I argue that one can respect the demands of both history and justice when redressing past injustice. In other words, I am defending the conceptual possibility of acting on behalf of a past wrongdoer by addressing and mitigating the effects of their wrongdoing. Furthermore, I argue that to not redress the crimes of the past is to miss an opportunity to redeem past perpetrators' lives.

In the next section, I will criticize the most prominent way redemption is usually conceived of in relation to past perpetrators, a view I call "status quo redemption" (Section 2). I have given it this name because those making this argument believe redemption does not entail altering present arrangements significantly to achieve redemption. The subsequent three chapters will each look at one alternative way of justifying the redemption of past perpetrators that entails measures to correct the wrongs: Informal Representation (Section 3), Public-Identity Re-empowerment (Section 4), and Counterfactual (Section 5). I will explain in the latter section why that approach is one I find most promising. Finally, I will conclude with a discussion of how I think the counterfactual account 'raises the bar' for other objections to redress efforts (Section 6).

2. Status Quo Redemption

Among those who are interested in rejecting calls to redress history, the idea of redemption is sometimes used. Many of those employing a redemption argument do not believe it follows that the living should do anything to adjust present institutions, symbols, structures, or ideologies in

light of the possibility of redemption. Alternatively, they support a very minimal contextualization of past narratives, such as in the case of the UK's "retain and explain" approach. This policy, approved by the Ministry of Housing, Communities, and Local Government, entails the following: "What has stood for generations should be considered thoughtfully, not removed on a whim, any removal should require planning permission and local people should have the chance to be properly consulted. Our policy in law will be clear, that we believe in explaining and retaining heritage, not tearing it down."[1]

An example of a status-quo approach that explicitly references redemption is historian Richard Lim's article "Yes, Even George Washington is Redeemable." [2] The article argues that careful attention to the complexities of Washington's life, particularly his "remarkable transformation" regarding the issue of slavery that culminated in him freeing after his death the people he enslaved, shows that critics who want to take down his monuments are misguided.

Another kind of redemption story applied to past perpetrators is a kind of posthumous counterfactual speculation. Thus, Condoleezza Rice describes how, when she was being sworn in as secretary of state, she looked up at Benjamin Franklin's portrait and thought: "What would he have thought of this great-granddaughter of slaves and child of Jim Crow Birmingham pledging to defend the Constitution of the United States, which had infamously counted her ancestors

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[1] Jessel, "Jenrick Plans Laws to Protect Statues and Monuments from 'Baying Mob.'"

[2] Lim, "Yes, Even George Washington Can Be Redeemed."

‘three-fifths of a man?’ Somehow, I wanted to believe Franklin would have liked history’s turn toward justice.”[3]

Both of these examples of purported redemption stories fall under what I call “status quo redemption.” I call them this because they argue or imply that past figures are redeemable but that their redemption does not necessitate any changes in the present. Statues should be left up, policies should not be changed, and so forth.

As I see it, there are at least four problems with status-quo redemption: 1) efforts to show past perpetrators are redeemable give little attention to those upon whom the perpetrators inflicted violence (Lim’s article about Washington makes no mention of how the lives of those whom Washington enslaved might be redeemed), 2) efforts to redeem past perpetrators leave in place the contemporary legacies of their injustice, 3) if we inflict violence upon someone in our own lives, we should perhaps want future persons to try to ameliorate the effects of our injustice, not excuse them? and 4) it is hard for one to judge whether a past perpetrator would have changed their views.

In these arguments, there is often confusion about whether an individual is *redeemable* as opposed to whether they are already *redeemed*. Most defenders of past figures jump from asking whether the past figure is redeemable to assuming that it is already done. According to my view, someone may be redeemable without redemption having happened yet. Indeed, I argue that it is partially up to the future to determine whether or not redemption is possibly achieved.

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[3] Adom, Getachew, “The New Black Internationalism.”

3. Informal Representation

Now I will turn to alternative ways of redeeming the dead that entail a transformation of present circumstances. First, I will focus on theories of representation. There are many ways in which the dead can be said to authorize action after their dead. An obvious example is that individuals can appoint others to execute their will have they pass away. But it also may be the case that the dead can be represented by the living when they do not explicitly authorize the living to act on their behalf. One way to make this point is to rely on a theory of informal representation.

As Wendy Salkin notes, informal representatives are a ubiquitous part of politics.[4] Yet Salkin writes their role has come under attack for many reasons: they are unauthorized, unaccountable, inaccurate, elitist, homogenizing, overpowering, concessive, overcommitting, occlusive, inegalitarian, and oppressive.[5] Nevertheless, Salkin argues in their favor, pointing to their potential for "voicing groups' neglected interests, making overlooked groups visible, stirring group consciousness in members of oppressed or marginalized pluralities, serving as communicative conduits between represented groups and their unresponsive lawmakers, and negotiating on represented groups' behalf."[6] To make such claims validly, Salkin argues, informal political representatives must act or speak on behalf of the represented with justice

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[4] Salkin, "Democracy within, Justice Without."

[5] Salkin, 2.

[6] Salkin, 3.

pertaining to outside audiences and to have a democratic relationship with respect to immediate deliberative relationships.

Neither Salkin nor Michael Saward,[7] another theorist of informal political representation, discusses the idea of representing the dead. Yet it is not hard to see how one could turn their theory in that direction. Indeed, we might note that we speak of the "legacy" of an injustice. The word "legate" described initially someone sent on a mission somewhere else, with the same root as the word "delegate." An account perhaps might consider living individuals in a way as legates or delegates of past acts of wrongdoing, sent by the dead to make things right on their behalf.

Often informal representation comes from family members. One might think one has a "right" to speak on behalf of one's ancestors. For example, a descendant of Robert E. Lee spoke out in favor of the statues of the Confederate leader being removed. One might also think that present individuals may be able to voice claims on behalf of the dead because of their position in society. Perhaps Rice can speak on behalf of Benjamin Franklin because she is a member of the government and is positioned properly with respect to his views. A conception of informal representation would give living individuals a way of speaking on behalf of specific dead people, and one could use this to argue for their redemption through action in the present (though it may also be used to defend the status quo). Wheeler argues along these lines that the living can benefit their ancestors by redressing their sins on their behalf.[8]

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[7] Saward, *The Representative Claim*.

[8] Wheeler, "Reparations Reconstructed."

Let me examine more closely how one could work to redress sins on behalf of one's family members. The following example is based on Bernard Boxill's case of a bomb maker and draws on my prior discussion of meaning.[9] Suppose as part of a war my grandfather was a member of the military and during an unjust invasion deployed many landmines in the countryside of a subjugated state. Even after the war is over, these mines continue to cause death and injury when they are activated. The removal of the deadly mines would affect my grandfather's legacy even if they would not change his initial act. With the mines' removal, his actions would cease to be a problem for contemporary citizens, his name would not come up in the news repeatedly in an unflattering manner, and the total effects of his actions would be better than if deaths from the mines continued indefinitely. Similarly, someone interested in the legacy of their forebears in the U.S. ought to be committed to the cause of ensuring that our country's own "landmines" are removed to the extent possible.

This view follows directly from the view I laid out in Chapter III about how meaning can be altered after the fact. The meaning of the grandfather's action is dependent on the subsequent consequences of his action. Therefore, attending to the aftereffects of it causes his original action to be seen in a new light.

One big obstacle that this line of thinking faces is if members of the public do not believe current conditions are the effects of past acts of wrongdoing. They would deny that there are "landmines." For example, regarding monuments, Dunn writes that "No contemporary observer has, to my knowledge, pointed to a single example of a person becoming more racist than they would otherwise be, or changing their beliefs in any significant way because they walked past a

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[9] Boxill, "A Lockean Argument for Black Reparations," 66.

statue of James Madison or Theodore Roosevelt."[10] Coates notes that, according to a 2014 YouGov and Huffington Post poll, 78 percent of white Americans said the legacy of slavery is either a "minor factor" or "no factor at all" in contemporary wealth inequality. Some 68 percent said the same about Jim Crow. Addressing how societies come to see the proverbial "presence of the past" or the long durée of history is beyond the scope of this study, but it is nevertheless a crucial premise for the argument. Despite the many accounts linking the aftereffects of slavery to the present, this connection does not seem to have become part of a national consensus.

My reason for opposing an informal representation argument is simple: it does not seem to work very well in practice. Regarding slavery in the U.S., there have been many descendants of Confederate soldiers and generals who have come forward to advocate for reconstructing the way society understands the Confederacy.[11] However, these efforts do not seem to have made a big difference. This is obviously a practical argument and not a philosophical one, but the larger point might be that an authorization account that is not a legal one might be difficult to be seen as legitimate. The Lorax might be able to claim to speak for the trees, but claims by living people to be the true representatives of dead perpetrators are unlikely to be taken seriously.

4. Public-Identity Re-empowerment

This second strategy follows up on my earlier point that cases of historical injustice are a threat to human agency. One way of conceiving this threat is through the notion of public-identity disempowerment. Laura Valentini defines public-identity disempowerment as a situation

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[10] Dunn, "Iconoclasm of the Vanities."

[11] Bender, Lippman, and Cammarata, "Why the Descendants of Confederate Generals Are Happy to See Their Names Go."

in which an individual lacks the power to construct their outward identity.[12] In other words, one is disempowered in this way when others do not respond to one's agency but rather view one as filtered through things unrelated to one's actions. Valentini argues that public-identity disempowerment lies behind prejudice, bullying, and cultural exclusion. However, she also believes it is relevant to cases of perpetration of injustice.

One of her cases is as follows:

> Billy is a 'golden boy': middle-class, athletic, white, good at school, polite, and well-mannered. Inebriated after a school party, he rapes a young woman. Billy does not see himself as a rapist, though, and blames what has happened on 'alcohol' and the 'party culture' at his university. Public opinion and the jury at his trial also refuse to conceptualize Billy as a rapist. He is eventually convicted, but his punishment is not even remotely as harsh as his deeds deserve.[13]

Valentini claims that even though Billy benefits from the biased jury, he is still suffering a wrong because he is not being viewed by the public based on the actual nature of his actions. She writes, "Billy is lucky to almost get away with it, and yet, in a world in which he does, he too does not enjoy the good of justice. He is prudentially better off but morally worse off."[14]

While Valentini only focuses on harm to the living, one might make a similar argument about the dead. By not holding perpetrators of past violence accountable at the time, previous societies were disempowering them in this way because they have severed the connection between the perpetrators' agency and a just consequence. Future generations, however, by holding the past perpetrators accountable, are doing them justice by ensuring their agency is

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[12] Valentini, "On Public-identity Disempowerment."

[13] Valentini, 475.

[14] Valentini, 475–76.

respected. According to this argument, perpetrators themselves have been wronged by the limitations of their societies. This wrong to them is surely not in the same sense or degree as the wrongs to their victims. Still, their lives have been reduced in value.

I think this is something important about this argument. However, I see three main weaknesses in it. First, I think few people will be motivated strongly by the notion that the perpetrators' agency has been violated. Anecdotally, I believe most people's intuition is that one should get away with what one can get away with and that being able to do so is 'part of the game.' An individual should not be set back retrospectively by society's error.

Second, and relatedly, I believe many will find something paternalistic in this. It relies in a way on the idea that one can benefit someone by punishing them or that one can benefit someone while doing something against their will (if not their agency).

Third, I do not think this argument would have much appeal beyond philosophers because it is not intuitive and therefore is not something one could make part of a wider political rhetoric.

5. Counterfactual

A third option is what I will call a counterfactual case for redemption. Compared to the previous approach, this is quite simple. This approach asks what the perpetrators of past injustice would want the living to do on their behalf should they have been able to know what we know now. The intuition is that many of us should want people in the future to redress our wrongs that we are unable to address in our own lives. So too should we do the same for those who come before us. It is particularly a helpful argument against the worry that past perpetrators were 'products of their time' and could not have acted differently. To that, this account would say: if one imagines that one is out of that context, how would one act?

One of the virtues of this approach is that one can imagine it being politically efficacious. Without being too grandiose, it is plausibly the kind of exercise that could be done equally in a philosophy class and on a political stage. (Or at least it is easier to explain than the other options).

This approach combines attention to both the will of the dead as well as their benefit, but not in the straightforward way I presented them in Chapter III. The counterfactual case retains some connection with the agency of the perpetrator. While one is not acting in accordance with their explicit will—indeed, it is likely going against their explicit will—it is doing so in accordance with their *hypothetical* will as understood through the counterfactual. In other words, I am not interested exclusively in what the dead willed but in what they *could* will or *would* will should they have a different position. This method also benefits the dead in the same way that the landmine case would. The web of meaning could be manipulated in a way to make the perpetrator's life appear in a different light.

This approach also avoids the harms that I discussed at the end of Chapter IV. The dead are not treated as a spectacle where we have a superior position to the judged. It does not rely on an incredibly detailed examination of the archive. It does not treat the dead as problems to be problematized. Finally, it 'opens the casket' not to punish but to offer an opportunity for redemption.

What if, even with the counterfactual, the dead would still choose to stand fast to the harm they have committed? In that scenario, I think they would forfeit their right to have their interests respected. Their punishment would be warranted. Thus, either way, one would have grounds to engage in redress efforts.

This response might cause one to raise the question: why not just view the dead perpetrators as having relinquished their right to be respected when they committed the first act of injustice? This is one impulse that explains why many who support redemption for the living deny it for the dead; the dead already 'had their chance.' To respond to that, I would return to many of the arguments that I laid out in Chapter I. To remind the reader of one central one: that would be to give up on the notion that humans are redeemable. In the counterfactual case, one can insist on 'second chances' while also ensuring that second chances are real *chances* and not simply amnesty.

If one thinks my argument proves too much, I will mention that some might wish to preserve the style of my argument but decouple it from being able to apply it to specific dead perpetrators. Thus, one could fall back on a more general claim that as long as *some* dead individuals would now be horrified by and wish to correct their actions given what we know now, then one is authorized to redress the actions of the dead on behalf of that subset of the population. This view would still allow one to dissolve the tension between history and justice, but not give one the ability to pick out specific past individuals to run through the counterfactual.

One might raise a similar worry to what one had about public-identity re-empowerment, that most people if given the option would choose to 'get away with' their crimes rather than have them addressed. I believe the intuition, in this case, is different. Recall that the worry, in that case, was that the perpetrator themselves was being harmed by having their agency disrupted. My claim was that most perpetrators would be okay with waiving this good for the great good of achieving benefits. In the counterfactual case, the harm is not to the perpetrator but to the victims who are affected by the web of consequences. Therefore, the calculation would be adjusted so that I think many people's intuitions would be reversed.

Finally, it has been objected to me that this style of argument is that it carries some of the same problems as other hypothetical consent accounts such as that of John Rawls. That is, it reduces individuals to bloodless rational agents. The fact that whether or not the past perpetrator would choose to redress their crimes, the conclusion is that the living should choose to redress their crimes might strike some as not granting a real choice. One response I will say is that this account is very un-Rawlsian in that what I am interested in is not individuals separated from their histories but specifically how individuals are connected to the entire web of the human community. Rather than reducing individuals to a narrow rational calculus, the point is to see human action on as wide and interconnected a sphere as possible. Furthermore, there are many situations in which the outcome is destined to happen, but that does not mean the individual lacks a choice in how that outcome will come about. There are many discussions in theology as well as art that make this clear. For example, one trope in war movies is that the heroes will die no matter whether they fight or flee. But their choice of how they perish makes a great deal of difference.

6. 'Raising the Bar'

I have tried to show that it is possible to be interested in the moral status of past perpetrators while maintaining a commitment to altering present arrangements. Indeed, contemporary action to redress historical injustice can be taken in the name of the past at the same time as it works toward justice in the present. Not only would they not be harmed by efforts to redress their legacy, but those failing to engage in redress efforts would be missing an opportunity to work toward their redemption. In this way, I want to say my argument does not just parry the objection that redress efforts harm the dead but 'raises the bar' on other kinds of objections one might raise. For example, if one appeals to a legitimate expectations argument for

maintaining the status quo, one would have to explain why one would be turning down an opportunity to redeem the perpetrators.

One last concern I want to raise briefly is what would happen to this argument if it was the case that the living were in a *worse* epistemic position than the dead. If that is the case, we may be making errors ourselves in what we choose to correct and we cannot count on the future to deliver us absolution. Does the counterfactual case not implicitly rely on a doctrine of moral progress that thinkers like Benjamin and Hartman were trying to distance themselves from? I believe the answer is yes and no, and I will pick up this theme in the final chapter.

Chapter VI: The Normativity of "Never Again"

1. *Erinnerungskultur* and *Willkommenskultur*

In the mid-2010s, as over a million people fleeing the conflict in Syria and other adverse conditions looked for refuge in Europe, Germany led the way in accepting migrants. "Germany opened its borders and its arms to us," [1] Syrian refugee and elementary school teacher Adiba Hamed told the *New York Times*. "It's the only country with such a clear message." What was notable about Germany's reaction was both the number of migrants they took in as well as how those accepted were received. Germans flew flags from around the world on their balconies, wrote messages and hung banners around cities, and mobilized to collect supplies and look for jobs for the newly arrived. This show of support was given the name *Willkommenskultur*, or "culture of welcome."

Many Germans understood their "culture of welcome" to be motivated by the country's *Erinnerungskultur* or "culture of memory"—that is, its desire to remake itself following the genocide it committed under the Nazi regime. "The world sees Germany as a country of hope and opportunity, and that was certainly not always the case," German Chancellor Angela Merkel said in allusion to the troubled past.[2] The historical dimension to the culture of welcome can be

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[1] Bennhold, "As Germany Takes In Refugees, It Also Rehabilitates Its Image."

[2] Eddy, "Angela Merkel Calls for European Unity to Address Migrant Influx."

seen when Barack Obama declared that Germany was on "the right side of history" during his visit in 2016.[3]

Among those in support of Germany's "culture of welcome" were many Jewish citizens. "Jews know first-hand about flight, expulsion, and displacement," [4] Nina Peretz, a German synagogue leader, told *Haaretz*. "So, it is our obligation to ensure that the inhumanity of the Holocaust never happens again."

I do not mean to hold up Germany's culture of welcome as an unqualified triumphant moment. It was quite short-lived as a backlash to it reshaped German politics.[5] Business interests surely worked alongside humanitarian ones in motivating the "culture of welcome," which after all was originally a tourism and economic slogan. Furthermore, many invoked German history as a reason to *oppose* accepting migrants under the pretext, for example, of protecting Jews.[6] And many Jews for their part were silent or opposed to the "culture of welcome."[7]

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[3]ABC News, "Obama Says Merkel 'on Right Side of History' over Refugee Stance."

[4] *Haaretz*, "Tensions Simmer as German Jews Fight Over Whether to Welcome Refugees."

[5] Conrad and Aðalsteinsdóttir, "Understanding Germany's Short-Lived 'Culture of Welcome.'"

[6] Conrad and Aðalsteinsdóttir.

[7] *Forward*, "As Berlin Opens Arms to Refugees, Why Are German Jews Silent?"

Nevertheless, I argue this particular instance of historical consciousness, of the desire of a country and people to ensure that the past does not repeat itself, offers a powerful example of what redemption of the past might look like. By committing not to repeat a past injustice in the present, living actors transform the meaning of that past event for victims and perpetrators alike. I am particularly interested in examples of projects smaller than the national level because, for reasons I discussed in Chapter IV, I think they are more likely to be successful. Rather, than being aimed a redeeming the Holocaust as a whole, the culture of welcome aimed at addressing a specific part of the historical legacy, namely the fate of those seeking refuge. This example also shows how redemptive projects can be jointly effective for those on both sides of the victim-perpetrator divide. "Jews wanted to be part of this," [8] Peretz said. "Jews and Germans working together to help refugees is a powerful symbol."

Too often, however, it is insisted that either one who is a perpetrator can do nothing for the victims or that the interests of perpetrators and victims are somehow in tension. While that may be true in some cases, in this chapter I want to highlight how joint projects between those on the side of the victims and those on the side of the perpetrators can be meaningful and effective. This is also a way of making more concrete the discussions I have been advancing.

Making an argument for action that bridges the victim-perpetrator divide is also important because many argue that the language of victims and perpetrators itself is incomplete. Of course, there are the familiar arguments of opponents of redress measures that living individuals should not be punished for the actions of their ancestors which they did not commit

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[8] *Haaretz*, "Tensions Simmer as German Jews Fight Over Whether to Welcome Refugees."

("I never owned slaves"). And these same voices would be quick to argue that contemporary descendants of victims are not themselves victims because of the non-identity problem, the lack of a proximate cause, or other philosophical concerns. These kinds of arguments have their responses. But in addition to them, there are many sympathetic to redress measures who also challenge the distinction between victims and perpetrators. For example, Mihaela Mihai notes that historical mythologizing has the effect of "reducing history's cast of characters to 'perpetrators,' 'victims,' and 'heroes,' to the exclusion of those who do not neatly fit any of these reductive roles"[9] In instances of mass violence, she continues, individuals often in the "in-between area of widespread complicity with systemic violence."[10] Hartman uses the term "descendants" as a way "not to indicate the slave's potential heirs, but to indicate the actual recipients of the slave's negative inheritance—the ongoing production of lives lived in intimate relation to premature death."[11] (Notably in the "culture of welcome" example above the "beneficiaries" of the invocation of the "never again" are not Jews but rather those who occupy the same social place as them, namely the position of a refugee). Finally, echoing Albert Camus's famous phrase "neither victims nor executioners," Michael Rothberg has argued for a view that goes "beyond victims and perpetrators" and instead focuses on the idea of

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[9] McCarthy, "Vergangenheitsbewältigung in the USA."

[10] Mihai, *Political Memory and the Aesthetics of Care*, 23.

[11] Best and Hartman, "Fugitive Justice," 13, fn. 6.

"implication."[12] Thus this chapter examines one way of building a consensus amongst those implicated in historical injustice and how it may use non-repetition to help the dead.

I will first shift attention to non-repetition or "never again" from Germany to the U.S. where a "culture of memory" is nascent. I will discuss a successful invocation of "never again" with the example of the abolition of the death penalty in Virginia and an unsuccessful example in the case of voting rights in Georgia (Section 2). I will then examine the phrase in more detail (Section 3), canvasing some of the many criticisms of it (Section 4). Focusing on one criticism, I will examine the view, which I call the Informational Interpretation" of "never again," that all that the phrase really amounts to is that we have some obligation to learn from the past (Section 5). Against that, I put forward what I call a Redemptive Interpretation of "never again," which, drawing on Chapters III and V, argues that "never again" can be understood as a way of altering the meaning of the past while also creating new conditions in the present (Section 6). Finally, I will explain why I think non-repetition can form the basis for coalition building between descendants of victims and perpetrators (Section 7).

2. "Jim Crow 2.0"

In 2021, Virginia became the first former Confederate state in the U.S. to ban the death penalty. According to an *NPR* story about the decision, "Opponents of the death penalty cite the high cost, the possibility of executing the innocent, and the disproportionate racial impact."[13] One component of this last argument is that such disproportionate racial impact has a specific

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[12] Rothberg, *The Implicated Subject*.

[13] Evans, "Virginia Governor Signs Law Abolishing The Death Penalty, A 1st In The South."

historical legacy. "The death penalty is lynching's stepchild," Virginia Sen. Mamie Locke remarked.[14] Similarly, Del. Jay Jones called the death penalty "the direct descendant of lynching."[15] Virginia Sen. Scott Surovell, during the debate about capital punishment, said, "I think at the end of the day, we look back 50 years from now—the electric chair, the lethal injection table—they're going to be sitting in a museum, they're going to be sitting next to the stocks from Jamestown and Williamsburg. They're going to be sitting next to the slave auctioneer block." [16]

Advocates have remarked on the connection between the lynching of black Americans and the death penalty for over a century. Recently, Bryan Stevenson, a lawyer who has defended many death row inmates in the U.S. South, noted that Germany abolished the death penalty "because of [its] history."[17] Why was there not a similar level of historical consciousness in the U.S.? he asked.

Commenting on the death penalty-lynching connection, Stuart Banner writes:

> If the race-of-defendant and race-of-victim disparities could be eliminated tomorrow, many would still urge that capital punishment be abolished, for reasons having little to do with the race of the defendant or the victim. The emphasis on racial disparity is often more a rhetorical tactic than a substantive criticism. But it is a rhetorical tactic that plays very well,

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[14] Equal Justice Initiative, "Virginia Abolishes the Death Penalty."

[15] Evans, "Virginia Governor Signs Law Abolishing The Death Penalty, A 1st In The South."

[16] Cain, "Richmond Politics 02/03."

[17]Stevenson, "We Need to Talk about an Injustice."

> probably better than the straightforward moral argument against capital punishment, because it can draw on our collective memory of three and a half centuries of American history.[18]

Are appeals to history like the death penalty-lynching comparison mere rhetoric, as Banner alleges? Or is there something substantively valuable about them? Answering such questions is especially important when trying to unpack situations in which such appeals are unsuccessful. An example of an as-yet unsuccessful appeal to history occurred in 2021 when, after Georgia passed new voting laws, prominent Democrats including President Joe Biden labeled the measures "Jim Crow 2.0." Such rhetoric was not enough to convince Georgia to change course. What was gained by objecting to the criticisms by pointing to history? And should this appeal to history have been more persuasive than it was?

3. What Is "Never Again"?

To understand such appeals to history, it would be helpful to examine the phrase "never again" and, more broadly, the idea of non-repetition in ethics. While advocates in the examples above did not say explicitly "never again lynching" or "never again Jim Crow," their invocations of history suggest that the past has some kind of purchase on how the present acts and that the living should orient themselves around an ethical imperative drawn from the past. So, the lessons one learns from examining the slogan "never again," might also apply to cases when it is not used explicitly.

The phrase "never again" has uncertain origins, with various sources citing a 1926 poem by the Ukrainian poet Yitzhak Lamdan entitled "Masada," a 1961 Swedish documentary called

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[18] Sarat, *From Lynch Mobs to the Killing State*, 110.

Mein Kampf, and the writing of Theodor Adorno.[19] The phrase is most associated in the U.S. with Meir Kahane, founder of the Jewish Defense League, who wrote a book with that title in 1972.

There are at least three different ways to understand who the subject of "never again" is. First, it has been understood by certain groups (e.g., Jews in the wake of the Holocaust or contemporary gun responsibility advocates in the wake of mass shootings) as a call for the *victims* not to allow themselves to be in the position to be victimized again. In addition, it has acquired a universalized meaning according to which it is the duty of *all humankind* not to allow a grave injustice such as genocide to happen again. The phrase has also been adopted in places like Germany where it refers to the *perpetrators' descendants* and urges them not to accept a repeat of their *forebears'* actions or actions similar to those they have committed. For the reasons mentioned above, I am interested in all of these interpretations, though of course what actions follow will depend on circumstances.

I want to highlight however that the idea of non-repetition when it comes to perpetrators has a long and important history within Judaism. To give just one example, in Maimonides' *Laws of Repentance*, he addressed the question of who has reached complete repentance. Maimonides responds: "A person who confronts the same situation in which he sinned when he has the potential to commit [the sin again], and, nevertheless, abstains and does not commit it because of his *teshuvah* [repentance] alone and not because of fear or a lack of strength."[20] For Maimonides,

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[19] Philologos, "What Is the Source of the Phrase 'Never Again'?"

[20] Maimonides, *Mishneh Torah*.

non-repetition is the capstone of repentance, the way a subject knows that they are truly not the same person they once were.

4. Criticism of "Never Again"

As the phrase "never again" (and its variation in other languages such as *nie wieder* and *nunca mas*) has spread around the world, it has come under criticism. Paul Rusesabagina, a Rwandan politician whose actions during that country's genocide were portrayed in the film *Hotel Rwanda*, says "never again" threatens to be "one of the most abused phrases in the English language and one of the greatest lies of our time."[21] Such criticism is motivated by the fact that, despite the promulgation of "never again" after the Holocaust, genocides have continued to happen. In *A Problem from Hell,* Samantha Power demonstrates how, even though many American officials took seriously the "never again" imperative, tremendous obstacles prevented effective intervention in conflicts such as Bosnia and Rwanda.[22] One might think that the phrase and the mindset behind it are either empty or ineffective.

Robert Meister has criticized the notion of "never again" and the edifice of human rights discourse he says it's based on for being ideological. "Compassion for past suffering is a moral state that justifies one's continuing to benefit from past conditions that one now would have opposed," he writes.[23] The discourse of "never again" acts as a counter-revolutionary stance that forestalls large-scale redistribution, he claims.

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[21] Rusesabagina and Zoellner, *An Ordinary Man*.

[22] Power, *A Problem From Hell*.

[23] Meister, *After Evil*, x.

The Jewish commentator Philologos has criticized the proliferation of "never again" claims from a different direction, objecting to its appropriation by what they consider anti-Jewish causes:

> Today, of course, the expression has been co-opted by campaigns and causes far removed from, and sometimes antithetical to, Jewish survival. The Syrian civil war? Never again! Limiting the entry of refugees to the United States? Never again! The Trump presidency? Never again! The Zionist occupation of Palestine? Never again! Meir Kahane may be wishing in his grave that never again will anyone say "Never again."[24]

I bring up such criticisms to indicate that the idea of "never again" is far from unchallenged. However, before one can respond to them, one needs to answer a basic philosophical objection. The objection, which I shall call the Informational Interpretation of "never again," argues that past injustice should not affect present moral reasons for action except to the extent that *one has learned something of value* from the past that might help ward off a repetition. This interpretation would direct us to study the causes of an injustice happening and be vigilant for similar circumstances. But, beyond applying information, there is no special quality to repeat injustices. I will examine the charge in the next section and then develop my response in the section after that.

5. The Informational Interpretation

The Informational Interpretation says that one avoids a repeat injustice because one has learned from the first instance. [25] "Never again" is a commitment to use our knowledge. According to someone who takes this view, the phrase "never again" is strange for two reasons. First, they find it strange that, say, a second Holocaust is more morally damaging than a first.

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[24] Philologos, "What Is the Source of the Phrase 'Never Again'?"

[25] Pogge, "Historical Wrongs."

This implies the troubling idea that it was less urgent to protect those in danger of earlier atrocities than later ones. How can simply taking place at a different point in time change one's moral relation to an act of injustice? And secondly, they have a problem with the scope of the duty based on the first act of wrongdoing. Does saying "never again" to the Holocaust mean one is supposed to have greater reason to prevent the mass killing of those who were persecuted by the Nazis? Or does it mean to apply to *any* mass killing of humans?

I believe the Informational Interpretation is partially right. One of the many reasons we need historians and activists is to diagnose what went wrong in each instance of wrongdoing and convey to the present what action may be possible to prevent future harm. And proper knowledge about the past can ensure those in the present have an awareness of institutions and practices that contain harmful meanings. But I do not think that knowledge is the only consideration. The Informational Interpretation can trivialize our obligations by simplifying them into the truism that "we must learn from the past." "Never again" ought to be thought of as more than that.

Note that, if informational considerations were all that there was, then the three vantage points of "never again" I outlined in the opening section (victims, humanity at large, and perpetrators) would essentially collapse into one. The U.S., for example, would have just as much reason to try to avoid a second Holocaust as Germany. This does not fit my intuition that there are differences in the way individuals and states are implicated in past injustices based on their particular history. Recalling my discussion of meaning, it is the case that the meaning of different actors' actions is more or less effective at changing the meaning of the past because of how they are positioned in connection with the past.

6. The Redemptive Interpretation

The Informational Interpretation is mainly forward-looking. It asks how the past can be used to avoid injustices in the future. The account I am arguing for can supplement the Informational Interpretation, what I will call the Redemptive Interpretation is backward-looking. It argues that the way one responds to a current injustice can change the meaning of past injustices with which it is connected. Failure to prevent the repetition of injustice is bad not just because we ought to know better, but because *what the event would mean* changes.

I take this to be the explanation for why it is "symbolically powerful" when non-Jewish Germans and Jewish Germans work together in welcoming migrants. The meaning of the past relationship between non-Jewish German and Jewish Germans is altered by their cooperation. In other words, the new chapter of the story colors how one reads the previous episodes. How Germany treats migrants now changes the way that one judges the status of migrants during the Holocaust.

To be sure, knowledge from the past is still important on the redemptive account. Recall Benjamin's insistence on learning from the sparks of the past. But learning and using that knowledge is a way *of paying tribute to the dead*. This knowledge is not abstract, it is embedded in the relationship the living have with the dead.

The redemptive account will mean different things seen from the side of the perpetrator compared with the side of the victims. They may not need or choose to work together in all circumstances. But I want to counter the idea that one can only work to redeem one's own side of the equation.

In "Venus in Two Acts," speaking of a girl who was killed during the Middle Passage, Hartman writes,

> My account replicates the very order of violence that it writes against by placing yet another demand upon the girl, by requiring that her life be made useful or instructive, by finding in it a lesson for our future or a hope for history. We all know better. It is much too late for the accounts of death to prevent other deaths, and it is much too early for such scenes of death to halt other crimes. But in the meantime, in the space of the interval, between too late and too early, between the no longer and the not yet, our lives are coeval with the girl's in the as-yet-incomplete project of freedom. In the meantime, it is clear that her life and ours hang in the balance.[26]

The first part of these comments, "It is much too late for the accounts of death to prevent other deaths, and it is much too early for such scenes of death to halt other crimes" would seem to take the pessimistic line that slogans or attempts to learn from the dead are not sufficient to stop future crimes. In other words, the Informational Interpretation is not enough. But the second part of the passage illustrates, I think, why the Redemptive Interpretation makes a stronger point. To see our lives as "coeval" with the past is to view ourselves as in a relationship with the dead. It is (to use another phrase from Hartman) to have our story "tethered" to the story of the past. And so, I think the virtue of the Redemptive Interpretation is to see not that this is a guaranteed way of preventing future violence but as a way of attending to the dead by establishing a relationship between our fate and theirs. It makes the living's actions dedicated to the dead in the way Lincoln advocated for in his famous Gettysburg address when he said "It is rather for us to be here dedicated to the great task remaining before us—that from these honored dead we take increased devotion to that cause for which they gave the last full measure of devotion—that we here highly resolve that these dead shall not have died in vain."[27]

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[26] Hartman, "Venus in Two Acts," 14.

[27] Lincoln, "Gettysburg Address."

There are many worries one might have with this account. I will just mention a few here. First, there is the question of what one should include in the proposition. What exactly should not be repeated? In the culture of welcome, the actions the Jewish Germans and non-Jewish Germans were undertaking were different from what was the case during the Holocaust. Someone interested in disputing the invocation of history can always point to discrepancies between then and now. Recall Heraclitus's maxim about not stepping into the same river twice. To give a recent example, responding to Joe Biden's point about "Jim Crow 2.0," Maryland Governor Larry Hogan wrote:

> Jim Crow was a terrible injustice and remains a stain on our country, but that is not where we are today. The 2020 election had the highest voter turnout in the nation's history, including among Black, Latino, and Asian American voters; 59.4 percent of eligible African Americans voted, compared with 65.3 percent of white Americans. And that discrepancy in the percentage of white and Black voters is partially reflective of age—white voters tend to be older, and older Americans are more likely to vote—not systematic disenfranchisement. The voting-law changes made by state legislatures since 2020 also do not take us back to Jim Crow. Many of these laws simply return voting practices to those in effect before the pandemic. Are we really supposed to believe that the voting laws in place in 2012—when our nation's first Black president and then–Vice President Biden were reelected—are equivalent to Jim Crow? Democrats, including Biden, who make that comparison are denying the great progress America has made in opening our electoral and political systems. Refusing to recognize this genuine progress is insulting to the legacy of courageous and persistent leaders who sacrificed so much to get us to where we are today.[28]

Is it possible to approve of the historical analogy when it supports the argument you like but, when you do not, simply claim that the history is not being repeated? Is redemption of history objective or subjective thing? Redemption in whose eyes? Note that it is possible to object to the analogy on behalf of the victims as well. Someone opposed to the new voting laws might also say it is disrespectful to those who suffered under Jim Crow to make the analogy.

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[28] Hogan, "This Isn't Jim Crow 2.0."

One way of resolving the tension between the objective and subjective can be found in Simone de Beauvoir's notion of the "situation."[29] When speaking of the situation of women, she does not commit herself to essentializing the category. Nor is she speaking of all women. Rather she is pointing to an individual's "grasp on the world." As Charlotte Knowless notes, two individuals may be performing the same objective actions—walking down the street, say—but the action will represent a different situation for them depending on a variety of factors: "A woman walking down a street may feel threatened, or find herself constantly having to dodge out of other people's way, whereas a man walking down the same street may stride confidently along the pavement without having any of these experiences."[30]

Situations occur in the past and may continue into the present, similarly to how in a novel a scenario or theme in the first part of the book may return later. Just as future action can change the meaning of past lives, future action can change the nature of the relationship between individuals and of situations they find themselves in. The Redemptive Interpretation makes clear why action in the present that does not rise to the level of a past injustice might nonetheless be criticized for its connection to that past wrong. If the action in the present is nevertheless an expression of an oppressive situation, then it may be damaging to both the past and present even if it is not "objectively" wrong on the same level.

Another worry about "never again" is that someone might believe that nothing can be done to prevent future violence. While some activists addressing problems such as mass

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[29] Beauvoir, *The Second Sex*.

[30] Knowles, "Beauvoir on Women's Complicity in Their Own Unfreedom."

shootings or automobile deaths have invoked "never again," there are other problems that are ubiquitous such that it does not seem the commitment will amount to much.

One response is that one simply does not know whether current oppression will continue. Even if one grants that it is unlikely for things to change, the historical analogy may still help in a way the Informational Interpretation does not. Seeing the presence of the past, even if one does not think it can be overcome, can potentially transform the meaning of the present action. Not only can it allow one to see a situation more clearly in the relief against the past, but solidarity with the past can at least deepen what is felt by others.

Finally, what kind of reason is "never again," and how strong is it? One might worry that in any given instance, something else is doing the real argumentative work. This worry goes back to the Informational Interpretation objection. Is it not the case that the duty to prevent any genocide is the important thing? I do not wish to deny that. However, The Redemptive Interpretation still helps. Not only can it help the dead, but it can also help people in the same situation in the present. Rather, it can help the dead *by* helping the living.

7. Solidarity

In January 1963, Rabbi Abraham Joshua Heschel gave the opening address to a conference on race and religion that included many important members of the Civil Rights Movement. Heschel declared that "Seen in the light of our religious tradition, *the Negro problem is God's gift to America*, the test of our integrity, a magnificent spiritual opportunity."[31] This understanding, by which one group's suffering represents a "magnificent spiritual opportunity" for another group, strikes one today as surely the wrong way of conceiving redemption. The

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[31] Heschel, *Insecurity of Freedom*, 97.

Redemptive Account, I hope to have shown, demonstrates a way that those on the side of the perpetrators and those on the side of the victims may engage in actions together in support of redeeming a shared history in a way that does not instrumentalize either party. While I have not laid out specific actions that should be undertaken, I hope to have provided a narrative framework that can be used in a variety of settings to build solidarity around redressing past wrongdoing.

Chapter VII: Left Conservatism

1. Left Conservatism

In J.R.R. Tolkien's *The Lord of the Rings* trilogy, the Army of the Dead (also known as the Dead of Dunharrow) is a group of men who were cursed to roam the earth because they broke their promise to come to the aid of a king named Isildur in the fight against the villainous Sauron.[1] Near the end of the epic, Isildur's heir, Aragorn, visits the Army of the Dead and commands them to be freed from their curse by fulfilling their oath. The Army of the Dead comes to Aragorn's aid and is instrumental in winning the war against Sauron.

Tolkien, whose use of the name "Dunharrow" recalls Jesus' harrowing of hell,[2] dramatizes in this episode something like the argument I am trying to make about redemption. Rather than simply condemn past perpetrators, I aim to think through how they can be 'summoned up' to achieve redemption while also benefiting those affected by their errors. I have tried to show how the dead benefit and are not harmed by having their sins attended to, as well as how this way of viewing them interacts and complements other types of redress approaches. In this final chapter, I will lay out how this intervention about past perpetrators fits in with a broader orientation towards the past as a whole, an orientation I call "left conservatism." I believe that the debate about past perpetrators is not simply an issue of the moment but something that reveals deep questions about conservatism as traditionally conceived in the U.S.

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[1] Tolkien, *The Lord of the Rings*.

[2] McIntyre, "The Paths of the Dead."

Generally, at least in the U.S., conservatives have been the party of history. The left, on the other hand, has been the party of the future. Developments in thinking about historical injustice are causing this to change. The value of the past has come into question, not from those on the left wishing to unchain the living from the dead in the spirit of Thomas Paine but from those looking for a different way of relating to the dead. Traditional conservatives have done very little to try to understand this movement, either dismissing it as nothing new or as resting on a pathology. Most disappointing is the lack of attention of Jewish conservatives who, despite having benefitted tremendously from memory culture, are not attuned to how other groups wish to bring about a working through of their own history.

I have attempted to sketch one way of relating to the past in the preceding chapters. In this chapter, I will consider the disposition that lies behind these views. I refer to this disposition with the label "left conservatism." My goal in adopting this label for my view is certainly not to try to establish a movement or anything so grand, but merely to make explicit how I believe the arguments that I am making in this dissertation follow from a commitment to certain conservative ideals. I also want to be clear that in this chapter I do not presume that Benjamin, Hartman, or anyone else I have cited favorably in this dissertation would share my view.

I will first survey current uses of the term "left conservatism" and explain where my interpretation of it differs (Section 2). Next, I will see how my interpretation fits into other varieties of conservatism (Section 3). Then, I will argue that my brand of left conservatism follows from an alternative reading of the Burkean social contract between generations (Section 4). I will next illustrate my point by using the example of Aristotle (Section 5). Finally, I will revisit the question of progress in light of the dissertation as a whole (Section 6).

At the end of the introduction to *Reconsidering Reparations*, Olúfẹmi O. Táíwò includes a note explaining "what this book is not." One effect of racism, he writes, is that it "keeps you answering other people's questions." He continues: "an entire industry of racial commentary, from think pieces to blogs to academic studies and whole fields of researchers, centers upon convincing imagined skeptical whites or Global Northerners that the social sky is in fact blue. … Most worrying, we spend so much time and energy responding to others' mistakes that we lose the ability to distinguish *their* questions from *ours*." With this in mind, Táíwò writes, "this book is written for a general audience, but not *that* general. I am not trying to convince people who oppose the project of racial justice from the outset to support the specific view of reparations I advocate here." In other words, Táíwò says, his arguments are not intended for Senator Mitch McConnell and "his ilk."

I agree with Táíwò's point. The terms of the debate about reparations and historical injustice are deeply flawed. (Recall Hartman's agnosticism about reparations for such reasons.) Many people making arguments against reparations do not bother to read the literature carefully—or even at all. And countless instances of U.S. government expenditures that primarily benefit white Americans do not get nearly the amount of scrutiny that proposed redress measures for black Americans receive.

I will only add that it is important for *someone* to try to engage with, if not the Mitch McConnells of the world, at least figures such as Yoram Hazony, whom I will treat here as a representative of contemporary popular conservatism. Otherwise, important and widespread premises will persist unexamined.

I have always thought that purely theoretical concern for historical injustice makes more sense when grounded on conservative principles than liberal or socialist ones. This chapter is my attempt to spell out that case.

2. Varieties of Left Conservatism

"Left conservatism," at first sight, might seem to be a confusing phrase. It is used infrequently, but when it is used, left conservatism refers either to those on the left with conservative tendencies or those on the right with left-wing ones. Let me examine some instances of each.

The most sustained attention to the term "left conservatism" was at a 1998 conference at the University of California at Santa Cruz. According to the organizers of the conference, "A specter is haunting U.S. intellectual life: the specter of Left Conservatism." They elaborate:

> "Within academia and without, in events such as the Sokal affair, in the anti-theory polemics in *The Nation* and the *Socialist Review,* in work by authors such as Katha Pollit, Alan Sokal, and Barbara Ehrenreich, there is evidence of a phenomenon that might be properly labeled Left Conservatism: that is, an attack by 'real' leftists on those portrayed as theory-mongering, hyper-professional, obscurantist pseudo-leftists. Left Conservatism's hostility to the anti-foundationalist theoretical work of the 1980s and 1990s shares features with left opposition to the radical anti-rationalist politics of the 1960s. The current polemics bring to the fore long unresolved questions about how the left conceives the nature and stakes of critical work, over the past fifty years and into the future."[3]

Featured at the conference were several familiar names, including Wendy Brown, Judith Butler, and Joseph Buttigieg (father of Pete Buttigieg). The conclusions of the conference,

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[3] Connery, "The Flyer."

particularly the arguments of Butler, were subsequently analyzed by Jeremy Moss in an essay entitled "Foucault and Left Conservatism."[4]

Whereas the use of the term at that conference is meant to be negative, there are other cases in which left-wing thinkers consciously appropriate conservative ideas. A prominent example of this is G.A. Cohen, a Marxist who nevertheless attempts the project of "rescuing conservatism from the conservatives" (published as "Rescuing Conservatism: A Defense of Existing Value").[5]

The case of Benjamin is also an interesting one. At first glance, finding an element of conservatism in him might seem strange because he considered himself later in his life a "radical communist" and his ideas are generally associated with left-wing thinkers like those in the Frankfurt School. The typical attitude of someone on the right towards Benjamin is expressed by Walter Laqueur who dismisses Benjamin as a left-wing academic fad.[6]

But a closer look shows there might be significant room for agreement. Wolin has chronicled the conservative influence early in his life and concludes he had "conservative revolutionary" tendencies.[7] Wolin writes, "It is a stark and incontestable reality that Benjamin found he had more in common with the theoretical strategies of right-wing intellectuals than he

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[4] Moss, "Foucault and Left Conservatism."

[5] Cohen, "Rescuing Conservatism."

[6] Laqueur, "The Walter Benjamin Brigade."

[7] Wolin, *Walter Benjamin*, xxvii.

did with contemporaries on the left."[8] Scholem wrote that Benjamin was "keenly aware of what he called 'the strange interplay between reactionary theory and revolutionary practice.'"[9] Benjamin considered the conservative jurist Florens Christian Rang the "ideal reader" of the *Trauerspiel*,[10] courted Carl Schmitt (to whom, he wrote, his *Trauerspiel* owed a debt), and wrote that he found Leo Strauss "sympathetic" after reading Strauss' book on Spinoza.[11] Brown has labeled Benjamin's attitude "Left Melancholy," a term that Benjamin originally used to describe other leftists of his time.[12] Wolin continues that according to Benjamin "the foremost danger of modernity is that its radical disrespect for tradition runs the grave risk of totally eradicating our links with the past, thus squandering that invaluable 'temporal index of redemption' which tradition contains."[13]

Two other left-wing movements are worth mentioning. One position is the attempt to extend the values that conservatives cherish to groups not normally associated with conservatives. Hazony writes "that an important part of Anglo-American conservative thought is

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[8] Wolin, xxxvii.

[9] Wolin, xxix.

[10] Eiland and Jennings, *Walter Benjamin*, 155.

[11] Wussow, "Leo Strauss and Walter Benjamin."

[12] Brown, "Resisting Left Melancholy."

[13] Wolin, *Walter Benjamin*, 216.

this: "When faced with the disastrous consequences of a particular course of action, we must retrace our steps and restore, as much as possible, the conditions that existed before setting out on this course."[14] Could a conservative apply this to historical injustices such as the slave trade or the conquest of the Americas? Left conservatism might involve protecting and promoting the traditions, practices, and communities, of those outside of what Patricia Hill Collins has called the "European, masculinist knowledge validation process."[15] An example might be CARICOM's reparations demand for an Indigenous Knowledge Project.[16] On a smaller scale, one thinks of efforts like Melvin L. Rogers and Jack Turner to establish a "provisional canon" of African American political thought to fill a space not covered by extant treatments of black thinkers in American political theory and democratic theory.[17]

Secondly, the rise of "intergenerational justice" has contributed to a rise in diachronic thinking on the left. An example of this can be found in Táíwò's notion of "thinking like an ancestor," [18] which has similarities with Edmund Burke's conception of a social contract between the generations, an idea I will return to later in this chapter.

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[14] Hazony, *Conservatism*, xx.

[15] Collins, *Black Feminist Thought*.

[16] "CARICOM Ten Point Plan for Reparatory Justice."

[17] Rogers and Turner, *African American Political Thought*.

[18] Táíwò, *Reconsidering Reparations*.

At the same time, left conservatism has been used to describe right-wing figures who take some positions traditionally thought to be on the left wing. For example, according to Eric Kauffman, "a new intellectual force is emerging in the West: left-conservatism."[19] According to him, "This belief system combines a conservative view on cultural questions like national identity and immigration with left-wing positions on economic issues like public services." Kauffman points to the electorate of Donald Trump as an example of left conservatism's influence.

For a more historically nuanced view, Alexander Isaac Jacobs has examined the left conservatism or "Tory socialism" of the middle of the twentieth century.[20] Focusing on figures such as Reinhold Niebuhr, Carl Becker, and Irving Kristol, Jacobs argues that left conservatism's failure "deprived the United States of a variety of conservatism that proved instrumental in creating the more robust welfare states of Europe."

When it comes to issues of historical injustice, "left-conservative" could refer to several figures whose basic premises yield much more left-wing conclusions than have traditionally been thought.

Perhaps the most well-known example is Robert Nozick, whose emphasis on a "historical" view of justice rather than Rawls's "patterned" view opened the door for a considerable amount of discussion about restitution and reparations.[21] But as Jordan Walters

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[19] Kaufmann, "The Rebirth of Left-Conservatism."

[20] Jacobs, "Progress and Pessimism."

[21] Nozick, *Anarchy, State, and Utopia*.

explains, that discussion did not follow immediately, at least not until Charles W. Mills' 2004 essay "Ideal Theory as Ideology" drew attention to this feature.[22] Walters writes:

> [P]ublications citing Nozick's book which mention "reparations" are relatively few in the years following its publication: 1974-1984 = 18 instances of "reparations" within citing articles. The 1990s to the early 2000s are also quite slim: 1984-1994 = 31; 1994-2004 = 78. It is only following Mills' influential article, "'Ideal Theory' as Ideology," that many readers of Nozick seem to draw the connection *en masse*, with 2004-2014 reaching 293 instances of "reparations" within citing articles. … What is presumably at issue for Mills, however, is that relatively few readers of Nozick took seriously what follows from his theory.[23]

More recently, Eric Nelson has argued that Nozick's theory does not make a sound case for restitution or reparations in general. Nevertheless, Nelson does conclude that restitution might be warranted in certain situations. Though he notes that such a case would need to be articulated further, he writes that " [i]f, for example, we know that European colonists expropriated land from a given Native American tribe, and we know that the tribe in question continues to exist (i.e., we can identify descendants of the original victims), my argument does not rule out the possibility that reparations might legitimately be claimed by these descendants."[24]

Similarly, Alasdair MacIntyre, in "Is Patriotism a Virtue?" endorses reparations in passing:

> A central contention of the morality of patriotism is that I will obliterate and lose a central dimension of the moral life if I do not understand the enacted narrative of my own individual life as embedded in the history of my country. For if I do not so understand it I will not understand what I owe to others or what others owe to me, for what crimes of my

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[22] Mills, "'Ideal Theory' as Ideology."

[23] Walters, "'Non-Ideal Theory' as Ideology."

[24] Nelson, *The Theology of Liberalism*, 201 fn 50.

> nation I am bound to make reparation, for what benefits to my nation I am bound to feel gratitude. Understanding what is owed to and by me and understanding the history of the communities of which I am a part is on this view one and the same thing.[25]

This particular aspect of the essay has received little attention—and MacIntyre himself has said little about reparations—even though the essay as a whole has had a considerable afterlife as debates over patriotism in the U.S. have increased in recent years. (A notable exception is, Michael Sandel, who has written about MacIntrye in relation to the "communitarian" case for reparations).[26]

A final example of a conservative figure taking what might be considered the "left" view on historical injustice is Pope John Paul II. He issued almost 100 papal apologies, reformed the language of the church,[27] and in the year 2000 asked Catholics worldwide to undergo a "purification of memory."[28] Some contemporary Catholics and Catholic institutions have followed in his penitent footsteps, for example, Georgetown University and Michael Griffin and Daniel Philpott, the authors of *The Politics of Penance*,[29] but the mainstream Catholic response has not been to adopt those teachings of the late pope for guidance amidst contemporary cultural battles.

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[25] Macintyre, *Is Patriotism a Virtue?*, 16.

[26] Sandel, *Justice*.

[27] Accattoli, *When a Pope Asks Forgiveness*.

[28] Kalbian, "The Catholic Church's Public Confession."

[29] Griffin and Philpott, *The Politics of Penance*.

The examples I have listed, except for the actions of Pope John Paul II, represent scattered comments by conservative writers, not a substantial treatment. To understand how thought on historical injustice might be embedded in a conservative framework, one needs to first examine in more detail the nature of conservative thought itself.

3. Where Left Conservatism Fits In

I will start with two distinctions. First, one might differentiate conservative views based on whether they are concerned with preserving the status quo or concerned with a kind of return to some previously existing set of conditions. A status quo conservative might offer a principled defense of the existing conditions in society. They would prefer that things stay the same rather than change.

A return-oriented conservative might be more interested in realizing some aspect or aspects of a prior time. There is a joke that you can tell the kind of conservative someone is by asking them which year society went to hell (e.g., 2008, the 1960s, or the Renaissance). I associate this kind of conservative, who locates societal decline at a certain point in time, more with "return" conservatism as opposed to "status quo" conservatism. Some have distinguished between conservatives and reactionaries;[30] they would map on to this distinction. It is also possible for an individual to be concerned with both sides. Finally, status quo conservatives might become return conservatives as society changes.

Status quo conservatives are concerned with history to some degree, but usually only in an incidental way. They may be concerned with history defensively; that is, to rebuff arguments that the status quo was achieved through illegitimate means. But the essential challenge to such a

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[30] Towler, "Reactionary or Traditional Conservatism?"

position comes from those who wish to shake things up, not those who dispute some aspect of history. I will not engage with status quo conservative arguments here.

Within the category of return conservatives, there is a further distinction to be made about what kind of past one that one should return to. For Leo Strauss, whom I will discuss below, the way of one's forefathers brought one closer to righteousness, truth, and religion. Other thinkers might find one of those more appealing than the others. One might be interested in returning to the simplicity of the past in contrast to the damaging complexity of modern society. Alternatively, one might find in the past superior morals. For MAGA conservatives, the past is viewed as a source of greatness. For others, it is a place to find examples to use as a source of identity formation.[31] Originalists on the right might be concerned with the original meaning of a constitution or tradition. These do not exhaust the possibilities, and many embrace multiple elements. The point I want to emphasize, however, is that in all cases some value in the past can be reactivated in the present through the exercise of certain political activities.

I view my brand of left conservatism as a kind of return conservatism. However, what matters about the past for me is that its injustice needs to be attended to. In arguing for this position, I take inspiration from Judith Shklar's injunction to "put cruelty first."[32] In my version of left conservatism, this injunction is applied to the past. The figures of the past are not just people to learn from and hold as role models and venerate, they are also ones to care for, rectify, and connect with. There is a relationship of mutuality between the past and present in the name

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[31] McClay, "How to Think about Patriotism."

[32] Shklar, "Putting Cruelty First."

of attending to cruelty and suffering. In Cohen's terms, the sufferers of the past have value. A classic definition of conservatism comes from Edward Coke, who remarked that "that, which has been refined and perfected by all the wisest men in former succession of ages and proved and approved by continual experience to be good and profitable for the Commonwealth cannot without great hazard and danger be altered or changed."[33] According to my view of left conservatism, the workings of the wisest men are not the only things handed down that are of value.

One additional point of connection between left conservatism in my view and traditional conservatism is a kind of anti-politics. By that, I mean that politics misses important parts of life and trying to remedy things entirely through grand political campaigns – what I have called comprehensive redemptive projects – is unwise.

4. The Burkean Social Contract and the "Pay it Backward" Model

Throughout this dissertation, I have emphasized the interrelationship between the living and the dead. One of the most well-known advocates of a kind of collaboration between the generations is Burke. In a famous passage, he writes that "society is indeed a contract. It is a partnership in all science; a partnership in all art; a partnership in every virtue, and in all perfection. As the ends of such a partnership cannot be obtained in many generations, it becomes a partnership not only between those who are living, but between those who are living, those who are dead, and those who are to be born."[34] This passage tends to be given more prominence

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[33] Allen, *English Political Thought*.

[34] Burke, *Revolutionary Writings*.

amongst Burke's conservative readers like Russell Kirk and Yuval Levin than his left-leaning ones. The conservative authors who champion the social contract between the generations usually emphasize the debt that the living have to the past and the responsibility they have toward the future. I call this a "pay it forward" model, which expresses itself in gratitude and the passing on of tradition. (Etymologically, "tradition" means "to hand over" or "to give across"). Hazony defines a conservative as one who wants to "propagate beneficial ideas, behaviors, and institutions across generations."[35]

In the present chapter, however, I want to consider the opposite theme, a "pay it backward" model. In particular, I suggest that the people of the past have a debt to the living for helping to improve the meaning of their moral experience. In other words, the living are partially responsible for the fate of the dead. They have, as I explained in Chapter III, "weak messianic power" to work on the dead's behalf. (And, I will suggest, the living owe gratitude to the *future* for doing the same for them).

Burke described the social contract between the generations as a "perfection in all virtue." In my view, the standard "pay it forward" account of the Burkean social contract does not promote the virtue of the dead. It may continue their projects in some ways, but not their project of being a moral being, which is arguably the most important project one can have. The "pay it forward" model instead freezes ancestors in time and prevents their moral arc from having an extended journey. It denies the dynamism that is possible. It is important to ask the question of what past actors' views were on particular issues. But it is also important to ask what they would believe now, given what we currently know.

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[35] Hazony, *Conservatism*, xvi.

Similarly, this approach offers a complementary take to Arendt's understanding of the web of action.[36] She was interested in the actions of forgiving past errors and promising to correct future ones. My view, on the other hand, emphasizes the living peoples' promises to the dead to redress their actions and the living's plea for forgiveness to the future for our inevitable mistakes.

I believe the intergenerational social contract offers a perspective from which to work through the anxiety that our actions have a web of consequences we cannot control. To reconnect our desire to be moral with actual moral outcomes, we can authorize people in the future to redress wrongs on our behalf. And to ensure we are "doing our part" in the intergenerational partnership, we should try to redress the wrongs committed by past actors whose standing we are in a better position to judge and who need us to correct the mistakes they have committed.

A response to such a proposal might be that instead of handing off our sins to future generations we should try harder to do the right thing in the present. And after all, many people err simply because of a weakness of will, failure to pay attention to relevant facts, or because they think others will do the right thing for them. Thomas Jefferson, for example, thought that the task of emancipation would fall to future generations and so did not engage in it himself. I do not disagree that it is important to do as much as one can not to err in the present moment. But there are often multiple sides to moral dilemmas, and it is not easy to tell in the present which arguments will win out. Some wrongs are beyond any discourse in the present. Furthermore, for some components of morality, one knows that no amount of listening and introspection would help. Habits and perspectives are hard to change. For example, if I asked myself what it would

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[36] d'Entreves, "Hannah Arendt."

take for me to believe the doctrines of the Church of Jesus Christ of Latter-day Saints were true, the answer would be I would have to no longer be myself. But if their doctrine ends up being the correct view, it would seem I had no chance to join the correct side.

My solution of the intergenerational partnership in morality can be regarded as a kind of "moral insurance scheme." Instead of assuming perfection of moral knowledge, it starts from the assumption that we are all doing things in the present that we should wish to repent for if we were to learn of our mistakes in the future. Someone might reply with an *ad hominem* that I simply do not want to be viewed as a bad person, so I want future generations to treat me with charity. That might be part of the motivation. But more importantly, I believe this scheme is based on a concern for those who suffer the negative consequences of our actions. I believe Oedipus' instinct is correct (in theory if not in practice): I should want to know if I have committed an act of wrongdoing and be able to take action, not just for my own sake but from regard for the party or parties I have harmed. Good intentions alone are not enough. Like Hamlet, I should want all my sins remembered so that I can ensure that they are properly attended to. Thus, I am a consequentialist. That the knowledge that I have committed an act of injustice comes to light tomorrow or one hundred years from now is not important. Someone suffering violence in one hundred years on account of my actions is distressing and needs to be attended to.

Another objection, presented by R. Jay Wallace, would be that if we want redemption for our perhaps unavoidable sins in the present, why should we look to the past as a field of action as opposed to simply single-mindedly devoting ourselves to good deeds like the alleviation of inequality or deprivation in the present? Why do we need the backward-looking component? Wallace has his reasons for thinking this solution falls short. My view is that this is why my

account is not *only* nakedly self-interested. If I only care about my moral status, then the status of individuals to whom I have attachments will suffer, and thus I will suffer through them.

My proposal recognizes the fact that the business of morality is communal. No one person builds the roads of correct moral conduct, to use John Locke's analogy, but rather correct positions are arrived at through the trial and error of tremendous numbers of people (and for some, the intervention of divinity). It also requires a kind of luck to be in the right epistemic environment.

Some try to use the fact of fallibility to say that to err is human so we should not have to do anything as a result. For example, after the *Access Hollywood* tape release in the lead-up to the 2016 election, the English language edition of *Pravda* ran an article entitled "Lincoln, Gandhi, King, and Trump," arguing that damning quotations can be found in the record of every "great humanitarian." The article concluded, "under the current criteria for public office every one of these esteemed men above would be forbidden a place in the public square. The absurdity of such abnormally high standards for behavior should give intelligent people great pause before casually casting out perceived transgressions." My conclusion is not that we should lower our standards because no one would meet them, but rather that almost everyone needs help in living a moral life and it is our responsibility to help each other, past, present, and future, in the pursuit of moral rightness.

Once I have established that living people are willing to accept the charge of working on behalf of the dead in the expectation that future generations will work on their behalf, the next and perhaps biggest question is: what exactly can you do on behalf of the dead to help in their quest for moral perfection? I share the sentiment with Bernard Williams that, even in cases of moral unluckiness, redress is the appropriate response. All the more reason when there are cases

that go beyond that. In Chapter III, I defined redemption as a manipulation of the field of meaning of which past individuals are a part. And so, I will first repeat the answer that I gave there: any action you can do that engages in that semantic field and turns it for the better may count. The main principle to follow is simply to listen to the perspective of current descendants of the victims who are the best representatives of the deceased, for, as Thomas Aquinas writes, atonement must be made "according to the will of the person offended" (and their descendants or the common good if the offended party is not living). Nevertheless, descendants do not all speak in one voice and so it is important to have an internal sense as well. I do not want to stifle creativity by prescribing precise steps that must be adhered to. Overall, I hope to have shown that the "pay it backward" model most accurately depicts how one can attend to the cruelty of the past and one's inevitable acts of injustice, and in doing so it can be self-interested without being self-centered.

5. What Would Aristotle Do?

There are three different ways this focus on past cruelty can be interpreted compared with more traditional understandings of conservatism. I will call them the complementary, the instrumental, and the exclusionary accounts.

According to the complementary view, both the cruelty of the past and its other qualities such as truth or greatness can be relevant. This view would simply say that traditional conservatives have neglected to focus on this important dimension of the past pertaining to cruelty and so that further attention to it is warranted. This neglect is not costless. Rather, recalling the first definition of "historical injustice" from Chapter I, one would consider those who neglect past suffering are committing a further wrong against those who have already suffered.

According to the instrumental view, the other qualities of the past are useful insofar as they help address past cruelty. For example, a certain author may be of little interest except insofar as they might be used to bring attention to a victim or group of victims of history. At the beginning of this dissertation, I noted I was only going to focus on the redemption of people, not on other entities like traditions, constitutions, nations, and so forth. This was done for practical reasons: giving a proper hearing to such a project would extend research impracticably. But it was also for a principled reason: to put the interests of traditions or nations above the interests of individuals is, in my view, a terrible mistake. According to the instrumental view, such entities should be preserved only to the extent that they are contributing to and enriching the lives of persons. They have no freestanding value.

According to the exclusionary view, the *only* part of the past that matters is past injustice, and the past has no other claims on the present. This view questions the pedigree of what is passed down from generation to generation, considering the relics of culture to be tainted with barbarism. It would correspond to the fears of conservatives like Hazony who complain about people "overthrowing everything that is productive and valuable."[37] As Cohen argues, what is unjust is simply without value.[38]

I confess I have some trouble deciding which interpretation I find most attractive. To clarify for myself, I will consider the case of teaching Aristotle. On the complementary view, teaching a course about Aristotle would require one to highlight the aspects of Aristotle's work

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[37] Hazony, *Conservatism*, 153.

[38] Cohen, "Rescuing Conservatism."

that one considers to have been responsible for grave injustice, particularly his arguments about natural slavery. If one is "putting cruelty first," then perhaps that would be the lead part of one's lecture. But there would be a discussion of the other "positive" aspects of Aristotle as well, such as his views on virtue.

According to the instrumental view, one would only teach about a positive element if it happened to be something relevant to thinking about how to alleviate injustice. For example, one could discuss the "potluck theory" if one believes Aristotle as a democratic theorist is a useful way of trying to attend to the injustices caused by hierarchy.

On the exclusionary view, however, one simply would not teach Aristotle and devote that time to other figures.

I do not think that one could adjudicate which view is most attractive without knowing more about the particular contexts of the lessons and what is most likely to be effective. The only point that I will make is that I think that all three views are compatible with believing Aristotle is redeemable and that all three views are things that Aristotle could choose were he to be able to judge the legacy of his actions from a different perspective. Furthermore, to not pursue one of these methods would be to forfeit an opportunity to work towards his redemption, even if one has other reasons for maintaining the status quo.

A famous saying attributed to Aristotle is *Amicus Plato, sed magis amica veritas* ("Plato is dear, but the truth is dearer"). This is sometimes cast as a disparaging remark by a pupil to his former teacher. On the contrary, it can be said that Plato himself would hold the truth to be more dear than mere friendship. Therefore, there is no contradiction between truth and attachment. I am trying to say something similar about predecessors in general: it is in the interest of the dead

for us to pursue truth (and justice) through the use of our weak messianic power on their behalf. The choice between justice and attachment is a false one.

I should also emphasize that while I have focused on the redemption of one individual in this particular case, most acts of injustice will encompass many individuals within the web of action. Therefore, a single redress action or project will be redemptive to many of the dead at once.

6. Returning to Progress?

To conclude this dissertation, I want to return to the question of progress. Progress has been an important theme throughout this work, from its role in the formation of the Guilted Age to whether the living can judge the dead sufficiently to make the counterfactual case work to whether one can understand "never again" without it. It is also, as I will discuss below, something which conservatives in the U.S. have mostly been against. In what follows, I want to examine how thinking about historical injustice might reconfigure how one thinks about progress. To do so, I will consider a famous lecture by Leo Strauss.

Across two November nights at the Hillel House of the University of Chicago in 1952, Strauss delivered the address that would become the essay "Progress or Return? The Contemporary Crisis in Western Civilization." Unlike such other famous dichotomies as Poetry vs. Philosophy or Athens vs. Jerusalem, it was clear which side of the alternative Strauss was on. Progress, Strauss says, has led Western society to an "abyss."[39] The doctrine of progress entailed that "once mankind has reached a certain stage of development, there exists a solid floor beneath

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[39] Strauss, "Progress or Return?," 17.

which man can no longer sink." World War II and the Holocaust refute this notion, Strauss says. "We can say that the idea of progress, in the full and emphatic sense of the term, is based on wholly unwarranted hopes."[40]

What should be done? His answer was in the title as well: return, which is his translation of the Hebrew concept of *teshuvah*. Society, and Jews in particular, must heed "the overwhelming power of the past."[41] He writes: "Today, *teshuvah* sometimes means, not a return which takes place within Judaism, but a return to Judaism on the part of many Jews who, or whose fathers, had broken with Judaism as a whole."[42] According to Strauss, "Redemption consists in the return of the youngest, the most remote from the past, the most future ones, so to speak, to the pristine condition. The past is superior to the present."[43]

Strauss qualifies his argument somewhat, noting that return is "perfectly compatible with hope for the future."[44] Jews can still expect the Messiah, but it must be admitted that Moses is

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[40] Strauss, 27.

[41] Strauss, 22.

[42] Strauss, 18.

[43] Strauss, 18.

[44] Strauss, 18.

still higher than the Messiah (furthermore, as Strauss noted, "Belief in the Torah was always the way in Judaism, whereas messianism frequently became dormant.").[45]

Additionally, Strauss does not deny that there has been progress in some way. "These present-day Jews who return to the tradition try to do in the element of reflection what traditionally was done unconsciously or naïvely. Their attitude is historical rather than traditional." These Jews are forced to be "post-critical." Which is more decisive, then, the old part or the post-critical part? "Are we wiser than our ancestors in the decisive respect or only in a subordinate respect?"[46] Strauss ended up not answering the question directly, but he seemed to indicate his answer by advocating a return to the roots of the Bible and Greek philosophy.

In Chapter I, I described how scholars such as Torpey have identified the collapse of belief in progress as one contributing factor to the growth of thinking about historical injustice. This is certainly true for both Benjamin and Hartman. In the "Theses on the Philosophy of History," Benjamin attacked the doctrine of progress for preventing people from appreciating the catastrophe of history because they were expecting better outcomes in the future. Famously, the storm blowing from paradise in Thesis IX is called "Progress." Hartman likewise has been critical of progressive narratives. "There is a certain kind of uplift and progress narrative that was

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[45] Strauss, 18.

[46] Strauss, 23.

saying, 'Oh, no, no, don't waste any time thinking about the past. Move on. Pull yourself up by your bootstraps.'"[47]

Like Strauss, Benjamin and Hartman pivot from rejecting progress to a concern with the past. But they draw different conclusions about what to do. They too advocate a return, but not in the same manner as Strauss. Thinkers like Benjamin and Hartman embody a position that rejects a certain view of progress, relativism, and return. Hartman writes that "Like the myth of the mother, the promise of return is all that remains in the wake of slavery."[48] This position is interested in the past and engages with it through a strong moral lens. Their view is an option that Strauss did not consider.

While arguing for the superiority of the past to the present, Strauss leaned heavily on the question of truth, not justice. The concern with the past that he imagines contemporary seekers having is with the coherence of past views, for example, the effects of biblical criticism. He is less concerned with moral improvement. He does not mention the issue of slavery at all (besides one mention that assimilation is for Jews an "inner enslavement").[49] Nor does he raise any issues about ancient teachings of the status of men and women: "whatever the Bible and philosophy may tell us about the nobility of certain women, in principle both insist upon the superiority of

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[47] Okeowo, "How Saidiya Hartman Retells the History of Black Life."

[48] Hartman, *Lose Your Mother*, 99–100.

[49] Strauss, "Progress or Return?," 21.

the male sex."[50] Other areas of improvement go unmentioned as well. The kind of return that Strauss advocated is not an option for many. The proverbial ancestral home is either ruined or has caused the ruin of others.

Strauss did not foresee the emergence of the body of thought around historical injustice. Contemporary conservatives are no better at diagnosing it. For example, Hazony stereotypes the contemporary left as following an updated version of Marxism. This overlooks the fact that what one might call memory advocates have in some respects exactly the opposite approach to history from Marx. Whereas Marx famously argued that social movements must take their poetry from the future, not the past and that the "dead must bury the dead," one could say many of today's activists are deeply committed to including history within social movements. (Similarly, liberal egalitarians were historically uninterested in claims regarding historical injustice, as Katrina Forrester has shown).[51]

Leo Strauss noted that "the term 'progress' in its full and emphatic meaning has practically disappeared from serious literature." One of the starting points for my project was to look at thinkers like Benjamin and Hartman who reject the idea of progress. The concepts of redemption, progress, and optimism are often criticized together. I had initially wanted to show that one can be a pessimist and reject the possibility of progress while still maintaining some idea of attending to the dead. But I now have come to believe that my understanding of redemption

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[50] Strauss, 34.

[51] Forrester, "Reparations, History, and the Origins of Global Justice"; Carcieri, "Rawls and Reparations"; Ficek, "Rawls, Race, and Reparations."

relies on a particular conception of progress – one that can be defended. While a "conservative" is often opposed to a "progressive," I believe progress understood in a certain way is compatible with a (left) conservative perspective.

There are many understandings of progress that I will not defend. For example, I still maintain with Benjamin that the transactional view of progress whereby the suffering of the past is redeemed through its benefits to future persons is morally unacceptable. And I agree with Hartman that the narrative of progress can "turn [] history into one great museum in which we revel in antiquarian excess."[52]

What does attract me, however, is the view that the living are heirs and inheritors of past suffering and that we must make the world a better and more just one in the name of the dead. Through our actions, the dead can be a part of a historical process and a historical community. By connecting our actions with theirs, the history of which they are a part is better than it would have been if we simply forgot them.

I do not want people to be misled by the label. What I am calling "progress" is very different from what conservatives usually attack. It is quite reminiscent of conservatism. For example, Hazony describes conservatives as being committed to a kind of "historical empiricism."[53] The premises of conservatives, he says, are derived from experience, and may be

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[52] Hartman, "The Time of Slavery," 773.

[53] Hazony, *Conservatism*, 30.

challenged and improved in the light of experience."[54] Attention to historical injustice is likewise an appeal to experience and in particular an appeal to the experiences of those who have suffered grave injustices. It is not an exercise in abstract or speculative reasoning, as I have argued in my criticism of the Informational Interpretation of non-repetition. Rather, it is a kind of learning that transforms the relationship between the living and the dead.

Just as Strauss counseled *teshuvah* in the last century, Hazony urges those who adhere to left-wing views to "discover that they have been on the wrong course, repent, and set out on a new and better course."[55] I do not wish to tell people how they should think or what they should do. However, I hope it is now clear that there is another possible way of understanding the imperative of *teshuvah*.

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[54] Hazony, 101.

[55] Hazony, xix.

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